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Schedule 1 – Solution Line Terms for Airport Services

جدول رقم 1: شروط خدمات المطار

1. Definitions

In addition to the definitions contained in the General Terms and Conditions of this Agreement, the following words have these meanings in this Exhibit 2 for Airport Services:

Airport means Kuwait International Airport, where or with regards to which the Service(s) will be provided, and includes terminals existing and future terminals planned to be constructed in accordance with the Master Plan of Kuwait Airport during the Contract period.

Airport Authority means the Directorate General of Civil Aviation as a government agency having authority on all Airport operations and/or who is duly authorized to represent it.

Airport User(s) means the airlines and/or ground handling agents who have entered into an agreement with Second Party for the provision of Services at the Airport(s). First Party is considered to be an Airport User if First Party utilizes the Services to operate one or more software applications.

Airport User Agreement means an agreement to be executed between Second Party and the respective Airport Users for the provision of the Services at the Airport.

Airport User Charges means the total monthly charges to be paid by each Airport User for the provision of the Services, calculated by multiplying a fee per departing passenger, as specified in the Pricing Schedule for Airport Services, by the applicable passenger count to be provided by First Party, or by in accordance with the number of passengers produced by the System of the Second Party, if applicable (passenger count).

First Party Data means, in respect of a Service, the data and files provided by (or on behalf of) First Party to Second Party for that Service and, unless otherwise specified in any Service Schedule, the output provided to First Party as a result of First Party's use of the Services.

First Party User means any individual, whether employed by First Party or by a third-party

1. التعريفات

بالإضافة إلى التعريفات الواردة في الشروط والأحكام العامة من هذه الاتفاقية، يكون للكلمات التالية هذه المعاني في هذا المعرض رقم 2 لخدمات المطار:

المطار يعني مطار الكويت الدولي، حيث سوف يتم تقديم الخدمات ويتضمن المباني القائمة بتاريخ التوقيع على هذه الاتفاقية والمباني المقرر انشاءها حسب المخطط الهيكلي خلال مدة هذا العقد .

سلطة المطار تعني الإدارة العامة للطيران المدني كجهة حكومية لديها سلطة على جميع عمليات المطار و/أو من يتم تفويضها أو ينوب عنها.

مستخدم المطار تعني شركات الطيران و/أو وكلاء المناولة الأرضية الذين أبرموا اتفاقا مع الطرف الثاني لتوفير الخدمات في المطار (المطارات). وتعتبر سلطة المطار كمستخدم المطار إذا استخدم الطرف الاول الخدمات لتشغيل تطبيق أو أكثر من تطبيقات البرامج.

اتفاقية مستخدم المطار تعني الاتفاقية التي سوف يوقعها الطرف الثاني مع مستخدمين المطار من أجل تقديم الخدمات في المطار.

رسوم مستخدم المطار تعني مجموع الرسوم التي يجب على كل من مستخدمي المطار دفعها بشكل شهري لقاء الخدمات، وتُحسب على أساس مبلغ محدّد ومعين في جدول الأسعار لخدمات المطار مضروب بأعداد المغادرين وفقاً للأعداد المزوّدة من الطرف الاول أو وفقاً للأعداد التي ينتجها نظام الطرف الثاني إن وجد (تدقيق أعداد المسافرين).

بيانات الطرف الاول تعني - فيما يتعلق بخدمة من الخدمات - البيانات والملفات التي يتيحها الطرف الاول أو نيابة عنه إلى الطرف الثاني بخصوص هذه الخدمة/الخدمات وتعني، ما لم يكن منصوص عنه بخلاف ذلك في جداول هذا الملحق، المخرجات المزوّدة للطرف الاول نتيجة استعمال الطرف الاول للخدمات.

مستخدم الطرف الاول يعني أي فرد يقدّم الخدمات الى الطرف الأول، سواء كان موظف لديه أو لدى طرف ثالث، أو يعمل بشكل مستقل

providing Services to First Party, or self-employed, authorized by First Party or such third party to use a Service.

ومنفرد، ومرخص له من الطرف الأول أو ذلك الطرف الثالث لاستعمال الخدمات.

First Party User Identifier means a unique code issued to each First Party User, which when used with certain equipment, allows each First Party User to access and use a Service.

معرّف مستخدم الطرف الاول يعني شيفرة (كود) فريدة تصدر لكل مستخدم للطرف الاول وتسمح له، عند استخدامها مع معدات/ أجهزة معينة، بالوصول الى الخدمة واستعمالها.

Embargoed Airline(s) means an airline(s) that is subject to Export Laws, and which Second Party may inform First Party, from time to time, there about, and to whom Second Party shall not issue invoices for Airport User Charges as of the date such airlines are subject to embargo.

شركات الطيران المحظورة تعني شركات الطيران المفروض عليها عقوبات بموجب قوانين التصدير، والتي يُبلّغ الطرف الثاني الطرف الأول بها من وقت لآخر، والتي لن يقوم الطرف الثاني بإصدار فواتير لتحصيل رسوم مستخدم المطار من تاريخ فرض العقوبات عليها .

Equipment is defined in clause 6.1 of these Solution Line Terms.

المعدات يتم تعريفها في المادة 6.1

Existing Agreements means the existing agreements between Second Party and the respective members of the Airport Operating Committee (AOC) for the provision of the Existing Airport Services.

الاتفاقيات القائمة تعني الاتفاقيات الحالية بين الطرف الثاني وأعضاء لجنة شركات الطيران العاملة في المطار من أجل تقديم خدمات المطارات الحالية

Existing Airport Service(s) means the Second Party services
"Airport Connect Open",
"Airport Connect CUSS Kiosk",
"Bag Manager" and
"Bag Message".

خدمات المطارات الحالية تعني خدمات الطرف الثاني وهي:
"Airport Connect Open",
"Airport Connect CUSS KIOSK",
"Bag manager",
"Bag Message".

Incident means, unless otherwise defined in the applicable Service Schedule, any event which is not part of the standard operation of a Service and which causes or may cause an interruption or reduction of the quality of the Services.

حادثة تعني - ما لم يتم تعريفه خلاف ذلك في جدول الخدمات المطبق - أي حادثة ليست جزءًا من العمل الاعتيادي للخدمة والذي تتسبب أو قد تتسبب في انقطاع الخدمة أو الحدّ من جودتها.

Incident Record has the meaning set out in clause 5.1.1 of these Solution Line Terms for Airport.

سجل الحادثة يحمل المعنى المحدد له في المادة 5.1.1 من شروط خدمات المطار.

New Airport Service(s) means the "Airport Management Solution (AMS)"", comprising the Second Party Services:
"Airport Central"
"Airport Resource Manager"
"Airport Integrator".

خدمات المطار الجديدة تعني:
"Airport Management Solution (AMS)" والمتضمنة خدمات الطرف الثاني:
"Airport Central"
"Airport Resource Manager" ;
"Airport Integrator".

PA-DSS means the Payment Application Data Security Standard, defined by the Payment Card Industry Security Standards Council. The PA-DSS applies to those organizations that develop

معيار أمن بيانات تطبيقات الدفع يعني المعيار الذي وضع تعريفه مجلس معايير أمن صناعة بطاقات الدفع. وينطبق هذا المعيار على المنظمات التي تطور تطبيقات الدفع التي تخزن أو تعالج أو تنقل بيانات حاملي

payment applications that store, process, or transmit cardholder data as part of authorization or settlement, where these payment applications are sold, distributed or licensed to third parties.

البطاقات كجزء من تفويض أو تسوية، حيث تُباع تطبيقات الدفع هذه أو تُوزع أو تُرخص لأطراف ثالثة (الغير).

PCI DSS means the Payment Card Industry Data Security Standard, defined by the Payment Card Industry Security Standards Council, being a common set of internationally applicable requirements specifically designed to provide protection of cardholder data and to ensure that companies that process, store or transmit cardholder data maintain a secure environment.

معيار أمن بيانات صناعة بطاقات الدفع يعني المعيار الذي وضع تعريفه مجلس معايير أمن صناعة بطاقات الدفع، وهو مجموعة مشتركة من المتطلبات المقبولة دوليًا المصممة تحديدًا لتوفير حماية لبيانات حاملي البطاقات ولضمان حفاظ الشركات التي تعالج أو تخزن أو تنقل بيانات حاملي البطاقات على بيئة آمنة.

Per Passenger Charge is defined in Pricing Schedule for Airport Services**. Concession Fee** and Second Party Fee are defined in Clause 2 of this Exhibit.

رسم المسافر معرّف في جدول الأسعار لخدمات المطار. **رسم الامتياز واتعاب الطرف الثاني** لهما المعاني المبيّنة المادة رقم 2 من هذا المعرض.

Service(s) means the Existing Airport Services, the New Airport Services and any Airport Services provided to First Party.

الخدمة/الخدمات تعني خدمات المطار الحالية، خدمات المطار الجديدة وأي من خدمات مطار مقدّمة الى الطرف الأول.

Services Conditions has the meaning set out in clause 2.4.

شروط الخدمة تحمل المعنى المحدد لها في المادة 2.4

Second Party Network means the communications network which Second Party now or in the future integrates, leases, owns or shares and uses for itself and/or on behalf of its customers.

شبكة الطرف الثاني تعني شبكة الاتصالات التي يقوم الطرف الثاني الآن أو في المستقبل بدمجها أو تأجيرها أو امتلاكها أو مشاركتها واستخدامها لنفسه و/أو نيابة عن عملائه.

Second Party Service Desk has the meaning set out in clause 5.1.1.

مكتب خدمة الطرف الثاني يحمل المعنى المحدد له في المادة 5.1.1.

Site means the location at the Airport where a Service is to be provided.

الموقع يعني المكان المعيّن في المطار حيث تُقدم فيه خدمة.

Software means software supplied by Second Party as part of the Service.

برمجيات تعني البرامج المقدّمة من الطرف الثاني كجزء من الخدمات.

Termination Charges means any fees and charges, associated with the termination of a Service (or an element of a Service) as set out in the Pricing Schedule for Airport Services or elsewhere in this Services Agreement.

رسوم الإنهاء تعني أية رسوم وأتعاب مرتبطة بإنهاء خدمة (أو عنصر منها) كما هو محدد في جدول الأسعار لخدمات المطار أو منصوص عنها في هذه الاتفاقية.

2. Service(s)

2.1. First Party hereby authorizes Second Party to provide the Services at the Airport exclusively throughout the Term of this Agreement or service period and in this respect do all acts required to affect the provisions of this Agreement, against a fee for the First Party to be paid by the Second Party that amounts to a portion of the Per Passenger Charge as detailed in the Pricing Schedule for Airport Services (“Concession Fee”).

2.2. In consideration of Second Party’s provision of the Airport Services pursuant to this Exhibit 2, Second Party shall be entitled to its fees in accordance with the Pricing Schedule for Airport Services (“Second Party Fees”).

2.3. Upon execution of this Services Agreement, First Party shall immediately issue a circular to all Airport Users informing Airport Users that the use of manual baggage reconciliation or passenger processing services will not be permitted at the Airport and hence all Airport Users must use the Services prescribed by this Exhibit 2 in accordance with the draft circular attached to this Exhibit 2 as Schedule number 16. As such, all Airport Users must execute an Airport User Agreement with Second Party within thirty (30) days from the date of the circular. At the end of the thirty days period, Second Party shall inform the First Party a list of Airport Users that has not executed the Airport User Agreement for the latter to do what is necessary to comply with all the provisions of the circular that will be issued by the Directorate General of Civil Aviation in this regard.

2.4. Second Party may provide Service(s) subject to additional terms and conditions set out in the relevant Service Schedule (**Service Conditions**) and/or extend the Services to new terminals that may be built at the Airport in future, in such case, the additional Service and/or the Services at

2. الخدمة/الخدمات

2.1 يرخص الطرف الأول الى الطرف الثاني تقديم الخدمات في المطار بشكل حصري خلال فترة هذه الاتفاقية أو فترة الخدمة والقيام بكل ما هو لازم لوضع هذه الاتفاقية حيز التنفيذ مقابل رسم يستوفيه الطرف الأول من الطرف الثاني هو عبارة عن جزء مقتطع من رسم المسافر كما هو محدّد في جدول أسعار خدمات المطار ("بدل الامتياز").

2.2 مقابل تقديم الطرف الثاني لخدمات المطار عملاً بأحكام هذا المعرض رقم 2، يتقاضى الطرف الثاني اتعاب وفقاً لما هو منصوص عنه في جدول الأسعار لخدمات المطار ("أتعاب الطرف الثاني").

2.3 عند توقيع اتفاقية الخدمات الحالية، يقوم الطرف الأول فوراً بإصدار تعميماً الى كافة مستخدمي المطار يعلمهم بموجبه بان الاستخدام اليدوي لخدمات معالجة المسافرين ونظام مطابقة الحقائب العادي لم يعد مسموحاً في المطار ويتوجب على مستخدمي المطار باستخدام الخدمات المنصوص عنها في هذا الملحق رقم 2 وذلك وفقاً لنموذج التعميم المرفق بهذا المعرض رقم 2 كجدول رقم 16. وعلى ذلك، على جميع مستخدمي المطار توقيع اتفاقية مستخدم المطار مع الطرف الثاني خلال ثلاثين يوم من تاريخ التعميم المذكور. عند نهاية مهلة الثلاثين يوم المذكورة يقوم الطرف الثاني بإبلاغ الطرف الأول بقائمة مستخدمي المطار الذين لم يوقعوا اتفاقية مستخدم المطار وذلك من أجل قيام الأخير بما هو لازم لإلزام مستخدمي المطار بالالتزام بجميع بنود التعميم الذي سيصدر من الإدارة العامة للطيران المدني في هذا الشأن.

2.4 يجوز للطرف الثاني توريد خدمات تخضع لشروط وأحكام موضحة في ملحق الخدمة/الخدمات ذي الصلة (**شروط الخدمة/الخدمات**) و/أو إضافة الخدمات في مباني الركاب الجديدة التي يُمكن بناءها في المطار في المستقبل، وفي هذه الحالة تكون شروط الخدمة الإضافية و/أو الخدمات في المبنى الجديد متوافقة مع شروط وأحكام هذه الاتفاقية وتخضع لإجراء تغيير الخدمات المنصوص عنها فيها.

the new terminal, shall comply with the terms of this Agreement and shall be treated as a change and managed through the Change Management Procedure listed in the Agreement.

3. Airport User Agreements

3.1 The second party shall enter into an airport u ser agreement with airport users in order to provi de services and to meet airport user fees accordi ng to the price scale. Airport users shall always c omply with the terms and conditions of an airport user agreement, including their acceptance of th e payment of airport fees to the second party und er the supervision of the General Administration of Civil Aviation.

3.2 Agreed that the second party provides services to airport users who signed with the second party to the Airport User Agreement, and on this basis, and pursuant to the provisions of the Airport Services Price Scale, the second party shall pay to the first party instead of the privilege of an airport user agreement on a quarterly basis (by the end of each 30 days from the end of each chapter), provided that the second party has received the user fees for the specified months from specified airport users(except by the prohibited airlines)

3.3 The second party shall deposit all amounts due to the first party without any delay with regard to the underpaid companies during the period referred to in the previous item, with the exception of the companies that failed to pay, take legal action against those companies, and notify the first party of the legal procedures that have taken place against the underdeveloped companies in accordance with the legal frameworks of the agreements concluded between the second party and the airlines and the companies operating at Kuwait International airport .

4. Implementation

4.1. First Party acknowledges that Second Party is already the incumbent service provider of the Existing Airport Services at the Airport pursuant to the Existing Agreements.

.3 اتفاقيات مستخدمي المطار

3.1 على الطرف الثاني الدخول في اتفاقية مستخدم المطار مع مستخدمي المطار من أجل تقديم الخدمات ومن اجل استيفاء رسوم مستخدم المطار وفقاً لما هي محددة في جدول الأسعار، ويتوجب على مستخدمي المطار الامتثال على الدوام لشروط وأحكام اتفاقية مستخدم المطار بما في ذلك قبولهم دفع رسوم مستخدم المطار الى الطرف الثاني تحت إشراف الإدارة العامة للطيران المدني .

3.2 من المتفق عليه ان الطرف الثاني يوفّر الخدمات الى مستخدمي المطار الذين وقّعوا مع الطرف الثاني على اتفاقية مستخدمي المطار، وعلى هذا الأساس، وعملاً بأحكام جدول الأسعار لخدمات المطار، يدفع الطرف الثاني الى الطرف الاول بدل الامتياز على اتفاقية مستخدم المطار على أساس فصلي (بنهاية كل ثلاثة أشهر) خلال ثلاثين يوماً من نهاية كل فصل، شرط أن يكون الطرف الثاني قد قبض رسوم مستخدم المطار للأشهر المحددة من مستخدمي المطار المعنيين (باستثناء الشركات الناقلة المحظورة) .

3.3 يتوجب على الطرف الثاني إيداع كافة المبالغ المستحقة للطرف الأول دون أي تأخير يتعلق بالشركات المتخلفة عن السداد خلال الفترة المشار إليها في البند السابق بإستثناء الشركات التي تخلفت عن السداد وإتخاذ الإجراءات القانونية من قبل الطرف الثاني بحق تلك الشركات وإخطار الطرف الأول بالإجراءات القانونية التي تمت حيال الشركات المتخلفة وفق الأطر القانونية للإتفاقيات المبرمة بين الطرف الثاني وشركات الطيران والشركات العاملة في مطار الكويت الدولي .

.4 التنفيذ

4.1 يقر الطرف الأول بان الطرف الثاني هو حالياً مزوّد الخدمات الحالية في المطار وفقاً للاتفاقيات القائمة.

4.2. In the event that First Party wishes to implement New Airport Services, Second Party shall commence the implementation of such Services, as the case may be, upon the fulfillment of the following conditions:

4.2 في الحالة التي يطلب فيها الطرف الأول تنفيذ خدمات المطار الجديدة ، يقوم الطرف الثاني بالبدء بتنفيذ هذه الخدمات، بحسب الحال، حين تحقق الشروط التالية:

4.2.1. The issuance by the First Party of a circular to the Airport Users in accordance with section 2.3 of this Exhibit 2.

4.2.1 إصدار الطرف الأول تعميماً الى مستخدمي المطار وفقاً للتعميم المذكور في المادة 2.3 من المعرض رقم 2.

4.2.2. The signature of the Airport User Agreements by the Airport Users with the Second Party.

4.2.2 توقيع مستخدمي المطار لاتفاقية مستخدمي المطار مع الطرف الثاني.

4.3. Not Used

4.3 غير مستخدم

4.4. Where Acceptance Testing is required as part of the implementation and delivery of a Service, unless anything else is agreed in writing between the parties (in an Implementation Plan or otherwise), the following provision shall apply:

4.4 عندما تكون اختبارات القبول مطلوبة كجزء من تنفيذ وتسليم خدمة، وما لم يتم الاتفاق غير ذلك كتابةً بين الطرفين (في خطة التنفيذ أو غيرها)، تنطبق الشروط التالية:

4.4.1. First Party agrees that software, by its nature, may have minor defects or errors that do not affect the functionality of such software and therefore, if minor defects in the Software are identified during Acceptance Testing, such defects shall not hinder the acceptance process and the signature of an Acceptance Certificate on this basis. Second Party undertakes to correct the said minor defects at the earliest possible, unless Second Party determines that such correction should take place in a subsequent release of the Software.

4.4.1 يوافق الطرف الاول على أن البرمجيات، بطبيعتها، قد يكون بها عيوب أو أخطاء بسيطة لا تؤثر على وظيفتها ولذلك إذا تم تحديد عيوب بسيطة في البرمجيات خلال اختبارات القبول فإنها لن تعيق عملية القبول والتوقيع على شهادة القبول على هذا الأساس. ويتعهد الطرف الثاني بتصحيح العيوب البسيطة المشار إليها بأقرب فرصة ممكنة ما لم يُحدد الطرف الثاني أن هذا التصحيح ينبغي أن يتم في إصدار لاحق من البرمجيات.

5. Services Desk

5. مكتب الخدمة/الخدمات

5.1. Second Party will provide First Party with:

5.1 سوف يوفّر الطرف الثاني للطرف الاول:

5.1.1. a Service desk that will be available for the lodgment of Incident(s) by First Party on a 24 hour a day, 7 days a week basis (**Second Party Service Desk**); and

5.1.1 مكتب خدمة متوفر لتلقي البلاغات عن وقوع الحادثة/الحوادث على مدار 24 ساعة،7 أيام في الأسبوع (**مكتب خدمة الطرف الثاني**)؛ و

5.1.2. details of the Second Party Service Desk, including contact details.

5.1.2 تفاصيل مكتب خدمة الطرف الثاني بما في ذلك تفصيل بيانات الاتصال.

5.2. First Party must report all Incident(s) to the Second Party Service Desk and give accurate details of the Incident, and all other information necessary for Second Party to investigate the Incident. Additionally, Second Party shall promptly report an Incident to the First Party and the procedures it has taken towards such to the First Party. At this point an Incident record will be logged by the Second Party Service Desk in its Services management systems (**Incident Record**) and First Party will be informed of the Incident Record number.

5.2 يجب على الطرف الاول الإبلاغ عن كافة الحادثة/الحوادث إلى مكتب خدمة الطرف الثاني وتقديم تفاصيل دقيقة عن الحادثة وكل المعلومات الأخرى الضرورية للطرف الثاني للتحقيق في الحادثة. بالإضافة إلى ذلك، كما يلتزم الطرف الثاني بإبلاغ الطرف الأول عن حادثة معينة وعن الإجراءات اللازمة التي اتخذها نحو هذه الحادثة. وعندها، يقوم مكتب خدمة الطرف الثاني بتسجيل الحادثة في أنظمة إدارة الخدمة/الخدمات الخاصة به (**سجل الحادثة**) ويتم إبلاغ الطرف الاول بالرقم المسجّل به الحادثة في سجل الحادثة.

6. Equipment

6. المعدات

6.1. Second Party will provide equipment as part of a Service (**Equipment**), then:

6.1 يقوم الطرف الثاني بتوفير معدّات كجزء من الخدمات (المعدّات) وعندها:

6.1.1. Except as provided by the provisions of section 21 of the General Terms and Conditions, title to such Equipment remains with Second Party and First Party shall have no interest or right in such Equipment; and

6.1.1 بخلاف ما هو منصوص عنه في المادة 21 من الشروط والاحكام العامة، تبقى المعدات بملكية الطرف الثاني، ولا يكون للطرف الأول حق أو مصلحة فيها.

6.1.2. Second Party retains the right to substitute the whole or any part of the Equipment with equipment of similar or improved specification, on reasonable prior notice to First Party, if Second Party deems such substitution necessary or desirable for the delivery of the Services.

6.1.2 يحتفظ الطرف الثاني بالحق في استبدال المعدّات ككل أو أي جزء منها بأخرى ذات مواصفات مماثلة أو محسنة، بإعطاء إخطار مسبق بمدة معقولة إلى الطرف الاول، إذا رأى الطرف الثاني أن هذا الاستبدال ضروري أو مرغوب فيه من أجل تقديم الخدمة/الخدمات.

6.2. Unless otherwise provided in a Schedule or elsewhere in this Agreement, Second Party will be responsible for the transportation of the Equipment to the Site and installation, as well as for any customs clearances and formalities.

6.2 ما لم يُنص على خلاف ذلك في أي من الجداول أو في هذه الاتفاقية، يكون الطرف الثاني مسؤولاً عن نقل وتركيب المعدات إلى الموقع إضافة إلى أي تخليصات وإجراءات جمركية.

6.3. First Party will be deemed to have accepted delivery of Equipment on the day of delivery to the Site, unless First Party notifies Second Party in writing, within seventy-two (72) hours from the day of delivery, providing valid reasons for non-acceptance.

6.3 يُعتبر أن الطرف الاول قبل استلام المعدات في يوم التسليم إلى الموقع ما لم يُبلغ الطرف الاول الطرف الثاني كتابة خلال (72) ساعة من يوم التسليم بعدم القبول مع بيان الأسباب الوجيهة لذلك.

6.4. The Second Party must confirm the continuation of the warranty of the devices

6.4 على الطرف الثاني التأكيد على استمرار ضمان الأجهزة والمعدات وتكون تحت مسؤولية الطرف الثاني وتقيده بجداول

and equipment and it is under the responsibility of the Second Party and its adherence to its periodic maintenance schedules, provided that the Second Party provides a suitable place to keep the devices and equipment that are considered spare parts.

اعمال الصيانة الدورية لها، على أن يقوم الطرف الثاني بتوفير مكان مناسب للاحتفاظ بالأجهزة والمعدات التي تعتبر قطع غيار.

6.5. The second party bears all costs related to storage, whether they are (equipment - devices - etc..).

6.5 يتحمل الطرف الثاني كافة التكاليف الخاصة بالتخزين سواء كانت (معدات – أجهزة -إلخ ..).

6.6. Following installation of the Equipment, Second Party will arrange for the disposal of any installation debris (cardboard boxes, packaging, and any other leftovers of whatever nature, etc.).

6.6 بعد تركيب المعدات يلتزم الطرف الثاني بالتخلص من أي مخلفات تنتج من التركيب (صناديق الورق المقوى (الكرتون) ومواد التغليف وغيرها وأي مخلفات أخرى من أي نوع كانت تابعة للطرف الثاني).

6.7. Where First Party is the user of the Equipment, First Party will have responsibility for the proper operation of the Equipment within the provisions of any applicable warranties and undertakes:

6.7 إذا كان الطرف الاول هو المستخدم للمعدات، يكون الطرف الاول مسؤولا عن الاستخدام السليم للمعدات ضمن الضمانات المعمول بها، ويتعهد:

6.7.1. to operate the Equipment in accordance with Second Party's or the relevant manufacturer's operating instructions and any applicable local, national and/or international regulations;

6.7.1 باستخدام المعدات طبقًا لإرشادات التشغيل الخاصة بالطرف الثاني أو الشركة المُصنعة ذات الصلة وأية لوائح تنظيمية محلية و/ أو وطنية و/ أو دولية مطبقة؛

6.7.2. to ensure that proper environmental conditions as recommended by Second Party or the relevant manufacturer are maintained for the Equipment and that the exterior surfaces are kept in reasonable condition;

6.7.2 بضمان المحافظة على الظروف البيئية المناسبة للمعدات الموصى بها من الطرف الثاني أو الشركة المصنعة ذات الصلة وكذلك المحافظة على الأسطح الخارجية في حالة معقولة؛

6.7.3. not to make any modifications to the Equipment, or disconnect, remove, alter or interfere with the Equipment; and

6.7.3 بعدم القيام بأية تعديلات للمعدات أو فصل أو إزالة أو تغيير أو تدخل في المعدات؛ و

6.7.4. not to physically connect to the Equipment any accessory, exhibit or additional equipment other than that which has been supplied by or approved by Second Party.

6.7.4 بعدم شبك ملحقات أو معدات إضافية بالمعدات غير التي يتم توريدها أو اعتمادها من الطرف الثاني.

6.8. In the event this Agreement is terminated by the First Party before the end of the fourth year of its Term, and in case First Party does not wish to purchase the

6.8 في حالة فسخ الاتفاقية من قبل الطرف الأول قبل انتهاء الأربع سنوات الأولى من مدة هذه الاتفاقية وعدم رغبة الفريق الأول بشراء المعدات، يضمن الطرف الاول أن المعدات التي تُعاد

Equipment, First Party will ensure that Equipment that is returned to Second Party is in good working condition, except for fair wear and tear.

إلى الطرف الثاني سوف تكون في حالة تشغيلية جيدة، فيما عدا التقادم الناجم عن الاستعمال العادي.

6.9. Second Party may charge third parties, in cooperation with First Party, an additional charge (calculated on Time and Materials basis) to attend to, repair or perform maintenance on any Equipment if the problem arises out of or in connection with:

6.9 يجوز أن يطالب الطرف الثاني الغير بأتعاب إضافية، بالتعاون مع الطرف الأول (محسوبة على أساس "الوقت والمواد") لتصليح أو للقيام بصيانة بأي من المعدات أو إصلاحها إذا كانت المشكلة ناتجة عن:

6.9.1. Third Party's or its Representatives' negligent acts or omissions;

6.9.1 أفعال وإهمال وتقصيرات الغير أو ممثليه ؛

6.9.2. Third Party's or its Representatives' improper treatment, maintenance or use of the Equipment;

6.9.2 معاملة أو صيانة أو استخدام المعدّات بطرق غير سليمة ا من الغير أو ممثليه؛

6.9.3. modifications or maintenance of the Equipment that were not performed by or on behalf of Second Party;

6.9.3 إجراء تعديلات أو صيانة على المعدات بواسطة شخص غير الطرف الثاني أو بالنيابة عنه من قبل الغير؛

7. Software

7. البرمجيات

7.1. Where Second Party Supplies Software to First Party, then Second Party grants to First Party a license for the Software on the license terms specified in the relevant Service Schedule provided that the Software is most updated version at the date of the signature of the Agreement.

7.1 في الحالة التي يزوّد الطرف الثاني الطرف الأول بالبرمجيات، يقوم الطرف الثاني بإعطاء الطرف الأول ترخيص استعمال البرمجيات وفقاً لشروط التراخيص الممنوحة المحددة في الجداول العائدة لها وعلى ان تكون نسخة البرمجيات الاحدث المتوفرة بتاريخ التوقيع على العقد.

7.2. If no license terms for the Software are set out in the relevant Service Schedule, then:

7.2 في حال عدم نص الجداول المختصة على تراخيص للبرمجيات، يُطبق الآتي:

7.2.1. Second Party grants (to First Party a non-exclusive, personal and non-transferable license to:

7.2.1 يمنح الطرف الثاني الى الطرف الاول ترخيصًا غير حصري وشخصي وغير قابل للانتقال لكي:

(a) use in object code form the Software with the relevant Services or Equipment during the Service Period; and

(أ) يستخدم البرمجيات مع الكود المتّصل مع الخدمة/الخدمات أو المعدّات ذات الصلة خلال فترة الخدمة/الخدمات؛ و

(b) copy the Software in machine-readable format for purposes of back-up only, up to a maximum of one (1) copy per Site.

(ب) ينسخ البرمجيات بشكل قابل للقراءة من الأجهزة لأغراض عمل نسخة احتياطية، بحد أقصى نسخة واحدة (1) لكل موقع.

7.3. First Party must comply with any software provider license terms subsequently brought to its attention.

7.3 يجب على الطرف الاول التقيّد بشروط ترخيص البرمجيات والتي يتم إعلامه بها في وقت لاحق.

7.4. First Party must not use, or permit any person to use, the Software in any way not expressly permitted by this Agreement. Without limiting the generality of the foregoing, unless expressly permitted by this Agreement, First Party will not:

7.4 يجب على الطرف الاول ان لا يستخدم البرمجيات أو أن يسمح لأي شخص باستخدامها بأي طريقة لا تسمح بها صراحة هذه الاتفاقية. بدون تقييد عمومية ما سبق، وما لم تسمح به صراحة هذه الاتفاقية، لن يقوم الطرف الأول بـ:

7.4.1. allow any third party to use the Software (including through outsourcing), unless agreed in advance by Second Party (;

7.4.1 السماح لأي طرف ثالث باستخدام البرمجيات (ويشمل ذلك السماح من خلال الاستعانة بالغير) ما لم يُتفق عليه مسبقًا مع الطرف الثاني؛

7.4.2. use the Software on behalf of, or for the benefit of, another person (including not using the Software to provide any form of outsourcing, application Services, Services provider, bureau-type Services or an equivalent Services);

7.4.2 استخدام البرمجيات نيابة عن شخص آخر أو لفائدة هذا الشخص (بما في ذلك عدم استخدام البرمجيات لتوفير أي شكل من أشكال الاستعانة بالغير أو خدمة تطبيقات، أو مزود الخدمة، أو خدمة مكتبية أو خدمة مماثلة)؛

7.4.3. use, integrate or combine the Software with other software not installed, provided or approved by Second Party;

7.4.3 استخدام أو دمج أو جمع البرمجيات مع برمجيات أخري لا يركبها الطرف الثاني أو يورّدها أو يعتمدها؛

7.4.4. decompile or reverse-engineer the used Software (unless First Party has a lawful right to do so in which case First Party must only do so to the extent permitted by the relevant law);

7.4.4 تفكيك و/أو إعادة برمجة النظام المستخدم (ما لم يكن الطرف الاول يملك حقًا قانونيًا للقيام بهذا وفي هذه الحالة يجب على الطرف الاول القيام به إلى الحد الذي يسمح به القانون ذو الصلة فقط)؛

7.4.5. copy, reproduce or transmit to the public any of the Software; or

7.4.5 بنسخ أو إعادة إنتاج أو نقل/ إرسال أي من البرمجيات إلى العامة؛ أو

7.4.6. cause or permit any person to do any of the things referred to in clauses 7.4.1 to 7.4.5.

7.4.6 بالتسبب أو السماح لأي شخص بفعل أيًا من الأمور المشار إليها في المواد 7.4.1 حتى 7.4.5.

7.5. First Party will:

7.5 سوف يقوم الطرف الاول:

7.5.1. keep a record of all authorized copies of the Software and will ensure that all copyright or other Intellectual Property Rights notices pertaining to the Software are properly maintained or reproduced. Second Party shall be entitled to request copies of such records;

7.5.1 بالاحتفاظ بسجل لكل النُسخ المرّخصة للبرمجيات وسيضمن أن الإخطارات والإشعارات المتعلقة بحقوق الطبع والنشر أو "حقوق الملكية الفكرية" الأخرى ذات الصلة بالبرمجيات يتم الاحتفاظ بها أو إعادة إنتاجها بالطرق السليمة. ويحق للطرف الثاني طلب نسخ عن سجل الرخص؛

7.5.2. ensure that all such measures as Second Party may prescribe from time to time for the protection of the

7.5.2 بضمان التزامه بجميع التدابير التي يقررها الطرف الثاني من وقت لآخر لحماية البرمجيات من الاستخدام غير المصرح به؛ و

Software from unauthorized use are adhered to by First Party; and

7.5.3. notify Second Party immediately of the existence or the suspected existence of any unauthorized use of the Software.

7.5.3 بإبلاغ الطرف الثاني فوراً عن وجود أو الاشتباه في وجود أي استخدام غير مصرح به للبرمجيات.

8. First Party Data

8. بيانات الطرف الاول

8.1. The parties agree that:

8.1 اتفق الطرفان على ما يلي:

8.1.1. First Party will load into, store and maintain current in the relevant System all First Party Data Which First Party is required to load, store or maintain for the relevant Services;

8.1.1 يقوم الطرف الاول بتحميل وتخزين والحفاظ على حداثة كافة بيانات الطرف الاول في النظام ذي الصلة والتي من المطلوب أن يقوم الطرف الاول بتحميلها أو تخزينها أو الحفاظ عليها لغرض الخدمة/الخدمات ذات الصلة؛

8.1.2. First Party will maintain regular back-ups of all First Party Data in accordance with good air transport industry practice standards, and First Party will make such back-ups available to Second Party as reasonably required by Second Party; and

8.1.2 يحتفظ الطرف الاول بنسخ احتياطية من كافة بيانات الطرف الاول طبقًا لمعايير الممارسات الجيدة في مجال النقل الجوي وسيجعل الطرف الاول هذه النسخ الاحتياطية متاحة للطرف الثاني حسبما يتطلبها على نحو معقول؛ و

8.1.3.

8.1.3

9. General First Party Obligations

9. التزامات الطرف الاول العامة

9.1. First Party will, at:

9.1 سيقوم الطرف الاول على بـ:

9.1.1. co-operate with and provide all reasonable assistance to Second Party to enable Second Party to perform its obligations under this Agreement and supply the relevant Services to First Party, including by:

9.1.1 التعاون وتقديم كل مساعدة معقولة للطرف الثاني لتمكينه من تنفيذ التزاماته الواجبة في هذه الاتفاقية وتقديم الخدمات ذات الصلة الى الطرف الأول، بما في ذلك عن طريق:

9.1.2. providing Second Party and its Representatives access to each Site and a suitably qualified and informed Representative to accompany Second Party's Representative(s) to and at the Site provided that the Second Party bears the cost of such access;

9.1.2 توفير وصول الطرف الثاني وممثليه إلى كل موقع وتوفير ممثل مؤهل ومطلع بصورة مناسبة لمرافقة ممثل (أو ممثلي) الطرف الثاني إلى الموقع على ان يتحمل الطرف الثاني رسوم هذه التصاريح؛ و

9.1.3. preparing the Site where Equipment is to be installed and allocating the required space at such Site;

9.1.3 تحضير الموقع الذي سيتم تركيب المعدات به وتخصيص المساحة المطلوبة لها في هذا الموقع؛ و

9.1.4. providing the necessary facilities for the operation of Equipment at the Site, such as power supply, electrical installations and cabling; and

9.1.4 توفير التجهيزات اللازمة لتشغيل المعدات في الموقع مثل مصدر الطاقة والتركيبات الكهربائية والكابلات؛ و

9.1.5. In the event that First Party desires to add Software and or Equipment to connect to the Services, first party ensures that all Software and Equipment connected to the Service(s) by it, or on its behalf, is technically compatible with the relevant Services and that such Software and Equipment complies with and is used in accordance with Second Party's directions or procedures, local, national or international laws and regulations or any applicable Airport Authority regulations.

9.1.5 في حال رغب الطرف الأول إضافة برمجيات و/أو معدات للاتصال بالخدمات، يضمن الطرف الأول ان تكون جميع البرمجيات والمعدات الموصلة بواسطة الطرف الاول أو بالنيابة عنه متوافقة فنيًا مع الخدمات ذات الصلة، وأن هذه المعدات والبرمجيات متوافقان ويُستخدمان طبقًا لتوجيهات أو إجراءات الطرف الثاني أو القوانين والتنظيمات المحلية أو الوطنية أو الدولية أو أي تنظيمات واجبة التطبيق خاصة بسلطة المطار؛

9.2. First Party will not:

9.2 لن يقوم الطرف الاول:

9.2.1. directly or indirectly, connect to the Second Party's Network except after having the written approval from the Second Party;

9.2.1 بالاتصال بشبكة الطرف الثاني بطريقة مباشرة أو غير مباشرة إلا بعد اخذ الموافقة المكتوبة من الطرف الثاني.

9.2.2. Second party will not directly or indirectly connect to the First Party's network except after having the written approval from the Second Party

9.2.2 لن يقوم الطرف الثاني بالاتصال بشبكة الطرف الأول بطريقة مباشرة أو غير مباشرة إلا بعد اخذ الموافقة المكتوبة من الطرف الأول.

9.3. First Party shall, throughout the term of this Services Agreement, provide to Second Party on a monthly basis, by the 4th day of each month, the actual Passenger counts for the preceding Month of all Airport Users, respectively, in either 'Comma-Separated Values' (CSV) format or Microsoft Excel file (**Passenger Count**), where "Month" means a calendar month and where passenger shall mean a passenger departing from the Airport.

9.3 خلال مدة هذه الاتفاقية، على الطرف الأول ان يقدم الى الطرف الثاني شهرياً، بحلول الرابع من كل شهر أعداد المسافرين الفعليين عن الشهر الذي سبق من كل مستخدمي المطار على حدة على شكل Excel او CSV (عدد المسافرين). الشهر يعني من بداية كل شهر حتى اليوم الأخير منه ضمناً والمسافرين يعني المغادرين من المطار.

Second Party agrees that the Passenger Count provided by First Party shall be accepted by it for the purposes of computation of the Airport User Charges and Concession Fees.

يقبل الطرف الثاني عدد المسافرين المقدّم من الطرف الأول لغايات احتساب رسوم مستخدم المطار وبدل الامتياز.

is clarified that:

من المتفق عليه انه:

9.3.1. the following categories of persons are included within the scope of departing passengers:

9.3.1 ان فئات الأشخاص الواردة أدناه يدخلون في فئة المغادرين:

(a) all passengers who change flights through the transit area at the Airport (include: all passengers that transfer and/or transit their flights with same airlines and/or on/with different airlines);

(أ) جميع المسافرين الذين يقوموا بتبديل رحلاتهم في المطار من خلال صالة الترانزيت (يدخل في فئة المسافرين هذه: جميع المسافرين الذين يقوموا بتحويل رحلاتهم في المطار سواءً على ذات شركة الطيران او على/بين شركة طيران أخرى)؛

(b) All passengers departing from the departing lounge at the Airport Kuwait (males, females, children, infants); and

(ب) جميع المسافرين الذي يغادرون من صالة المغادرين في المطار (ذكور، إناث، أطفال، ورضّع)؛ و

(c) all passengers travelling on non-scheduled and charter flights.

(ت) جميع المسافرين على الرحلات غير المجدولة وعلى رحلات المؤجرة (التشارتر).

9.3.2. the following categories of passengers are excluded from the departing passengers' categories:

9.3.2 ان فئات المسافرين الواردة أدناه لا يدخلون من ضمن فئة المغادرين وهم:

(a) passengers who are on direct transit arriving at the Airport and remaining on board the arrival aircraft for an onward journey in the same aircraft;

(أ) المسافرين الذين هم في الترانزيت والذين يصلون الى المطار ويبقون على متن الطائرة لتكملة رحلتهم في نفس الطائرة؛

(b) operating airline crew on the flight (as identified by the general declaration);

(ب) طواقم شركات الطيران العاملين على الرحلات (معرّفين في general declaration)؛

(c) passengers of a flight which return to the Airport due to a technical snag or otherwise or any other reason, without completing the original scheduled journey and without landing at any other airport; and

(ت) المسافرين الذين يعودون الى المطار بسبب عطل تقني او غيره او لأي سبب آخر، بدون تكملة رحلتهم الاصلية وبدون أن يحطّوا في أي مطار آخر.

9.3.3. Passengers that are travelling with Embargoed Airlines (whether departing, landing or transiting) shall be excluded from the Passenger Count and does not include (the Passenger Count) the Passengers travelling with Carries that that the

9.3.3 ان المسافرين مع الشركات الناقلة المحظورة (سواء كانوا مغادرين، أو قادمين أو عن طرق الترانزيت) لا يدخلون في عدد المسافرين، كما ان عدد المسافرين لا يتضمن أولئك الذين يسافرون مع الشركات الناقلة التي تمّ تعليق الخدمات لها.

provision of services thereto have been suspended.

10. Second Party will provide a template copy of the User Agreement to First Party prior to its signature with Airport Users.

.10 يقوم الطرف الثاني بعرض نموذج اتفاقية مستخدم المطار على الطرف الأول قبل توقيعها مع مستخدمي المطار؛

11. Third Party Approvals

.11 موافقات الجهات الأخرى

11.1. If the delivery of any Services (or element of a Service) requires:

11.1 إذا تطلب تسليم أي خدمة (أو عنصر من خدمة):

11.1.1. Any Government Agency permit or approval;

11.1.1 إصدار ترخيص أو موافقة من اي جهة حكومية معنية؛

11.1.2. any Airport Authority permit or approval; or

11.1.2 أي ترخيص أو موافقة من سلطة المطار

11.1.3. any other third-party permit or approval;

11.1.3 أي تصريح أو موافقة من جهة ثالثة؛

First Party agrees to provide reasonable assistance to Second Party to obtain such permits or approvals.

يوافق الطرف الاول على توفير مساعدة معقولة إلى الطرف الثاني للحصول على هذه التصاريح والموافقات.

11.2. If the use of any Services (or element of a Service) by First Party requires permits or approvals similar to those mentioned in clause 11.1, Second Party agrees to provide reasonable assistance to First Party to obtain such permits or approvals.

11.2 إذا تطلب استخدام الطرف الاول لأية خدمات (أو عنصر من الخدمات) تصاريح أو موافقات مشابهة لتلك المذكورة في المادة 11.1، يوافق الطرف الثاني على تقديم مساعدة معقولة الى الطرف الاول للحصول على هذه التصاريح أو الموافقات.

12. Data Security

.12 أمن البيانات

12.1. Second Party undertakes to protect data from virus infection or third-party intervention.

12.1 سوف يلتزم الطرف الثاني بحماية البيانات من العداء الفيروسي او تدخل من طرف ثالث.

13. Intellectual Property Rights

.13 حقوق الملكية الفكرية

13.1. Second Party hereby grants to First Party a non-transferable, non-exclusive license to use the Second Party Materials solely for the purposes of this Agreement for the Term. First Party undertakes not to use, or authorize any third party to use, the Second Party Materials for a purpose outside the scope of this Agreement.

13.1 يمنح الطرف الثاني بموجبه إلى الطرف الاول ترخيصاً غير قابل للانتقال وغير حصري لاستخدام مواد الطرف الثاني لأغراض هذه الاتفاقية حصراً خلال المدة. ويتعهد الطرف الاول بعدم استخدام مواد الطرف الثاني أو التصريح لأي طرف ثالث باستخدامها لغرض خارج نطاق هذه الاتفاقية.

14. Indemnities

.14 التعويضات

14.1. First Party will have the same rights and will afford Second Party the same indemnities

14.1 سيكون للطرف الاول نفس الحقوق وسوف يُعطى الطرف الثاني نفس التعويضات بنفس الدرجة التي يُعطيها الطرف

to the same degree as Second Party affords to First Party under clause 15 (of the General Terms and Conditions with respect to an IP Claim), in case of any Claim made against Second Party during the Service Period of a Service:

الثاني إياه بموجب المادة 17 (من الشروط والاحكام العامة فيما يتصل "بمطالبة ملكية فكرية")، في حال أية "مطالبة ملكية فكرية " ضد الطرف الثاني خلال "فترة الخدمة/الخدمات" الخاصة بخدمة يتقدم بها:

14.1.1. by any person, alleging that Second Party's use of any First Party Data, equipment, software, systems or anything else, which First Party or its Affiliates have provided to Second Party to enable Second Party to provide such Services, is an infringement of such person's Intellectual Property Rights;

14.1.1 أي شخص، زاعمًا أن استخدام الطرف الثاني لأي "بيانات الطرف الاول" أو معدات أو برمجيات أو أنظمة أو أي شيء آخر قام الطرف الاول أو أي من الجهات التابعة له بتوفيرها للطرف الثاني لتمكينه من تقديم تلك الخدمات هو انتهاك "لحقوق الملكية الفكرية" لهذا الشخص؛

14.1.2. by any person, alleging that Second Party's use of any Personal Data, which:

14.1.2 أي شخص يزعم أن استخدام الطرف الثاني لأي بيانات شخصية، التي:

(a) First Party or its Affiliates have provided to Second Party to enable Second Party to provide such Services, or

(أ) قام الطرف الاول أو تابعوه بتقديمها إلى الطرف الثاني لتمكينه من تقديم تلك الخدمات، أو

(b) which Second Party has processed on behalf of First Party or its Affiliates in the course of provision of such Services

(ب) قام الطرف الثاني بمعالجتها نيابةً عن الطرف الاول أو تابعيه خلال تقديم تلك الخدمات،

infringes the privacy of any person or breaches any Privacy Law.

ينتهك خصوصية أي شخص أو يخالف قوانين الخصوصية.

14.1.3. by any third-party Services provider of First Party or an Affiliate of First Party, relating to any act or omission of First Party, its Affiliate or any of their Representatives.

14.1.3 أي طرف ثالث يقدم خدمات الطرف الاول أو "جهة تابعة للطرف الاول فيما يتصل بأي فعل أو تقصير من الطرف الاول أو "الجهات التابعة له " أو "ممثليه".

15. Suspension and Cancellation of Services

15. تعليق الخدمة/الخدمات وإلغاؤها

15.1. Both parties agree to consult with each other to find the appropriate solutions as to overcome any Service suspension/cancellation in the event the permits or approvals listed under section 11.1 of Exhibit 2.

15.1 يتفق الطرفان على التباحث في إيجاد الحلول المناسبة لتفادي تعليق أو إلغاء الخدمات في التي يُسحب فيها أي ترخيص أو موافقة مشار إليهما في المادة 11.1 من شروط المعرض رقم 2.

15.2. Second Party, after notifying the First Party in writing, may limit or suspend the provision of a Service to an Airport User at

15.2 يمكن للطرف الثاني بعد إخطار الطرف الأول خطياً بذلك، إخطار أي من مستخدمي المطار بموجب إخطار يُرسل اليه قبل ثلاثين (30) يوم تُخطره فيه بتعليق او بالحدّ من استخدام

any time on thirty (30) days written notice to CUSTOMER if said Airport User:

خدمة من خدمات المطار المقدمة له وذلك إذا أقدم مستخدم المطار على ما يلي:

15.2.1. fails to pay the Airport User Charges or any other amounts due to Second Party under their Airport User Agreement for that Service within the expiry of the payment period specified therein, except where Airport User has disputed them in good faith;

15.2.1 لم يدفع رسوم مستخدم المطار عن اي خدمة من خدمات المطار او أي مبلغ آخر مستحق للطرف الثاني بموجب اتفاقية مستخدم المطار خلال المدة المحددة في الاتفاقية، باستثناء الحالة التي يكون طعن بهذه الرسوم عن حسن نية.

16. Termination of Airport User Agreements

16. الفسخ اتفاقيات مستخدمي المطار

16.1. Second Party may terminate an Airport User Agreement on sixty (60) days written notice to Airport User, after having informed the same to First Party in writing, where Second Party has limited or suspended the provision of Services to Airport User under clause 16.2.1 of these Solution Line Terms for Airport services.

16.1 يمكن للطرف الثاني ان يفسخ اتفاقية مستخدم المطار بموجب إخطار يرسل الى مستخدم المطار قبل ستين (60) يوم على الأقل، بعد إخطار الطرف الأول خطيّاً بذلك، وذلك في الحالة التي يكون الطرف الثاني قد حدّ من استخدام أو علّق تقديم خدمة الى مستخدم المطار عملاً بأحكام الفقرة 16.2.1 من شروط خدمات المطار.

16.2. If the Airport User pays all the outstanding dues during the above-mentioned periods, Second Party shall not exercise the termination.

16.2 في حال دفع مستخدم المطار الرسوم المتوجبة عنه خلال المدة المذكورة أعلاه، لن يقوم الطرف الثاني بفسخ اتفاقية مستخدم المطار.

17. Per Passenger Charge and Concession Fee

17. رسم المسافر وبدل الامتياز

17.1. The Per Passenger Charge, Concession Fee and Second Party Fees are set out in the Pricing Schedule for Airport Services.

17.1 يتم تحديد رسم المسافر، بدل الامتياز، وأتعاب الطرف الاول في جدول الأسعار المتعلق بخدمات المطار.

Schedule 2 – Service Overview for Airport Services

1 Service Overview

1.1 Second Party will continue to provide the following Existing Airport Services at the Airport:

1.1.1 Airport Connect Open;

1.1.2 Airport Connect CUSS Kiosk;

1.1.3 Bag Manager; and

1.1.4 Bag Message.

1.2 Second Party will commence implementing the following New Airport Service(s) once Second Party has received signed Airport User Agreements from all Airport Users operating at the Airport:

1.2.1 Airport Management Solution (AMS) comprising:

(a) Airport Central; and

(b) Airport Resource Manager; with

(c) Airport Integrator.

1.3 Not Used

1.4 Not Used

Schedule 3 – Service Schedule for Airport Connect Open (Existing Airport Service)

1 Definitions

The following words have these meanings in this Schedule:

Core Room	means the location of the server(s) supporting the Service.
Service	means the service described in paragraph 2 of this Schedules.
Service Hardware means	the following components of the Service: a) workstations and peripherals; b) server, firewalls, router and other infrastructure; and c) operating software and third-party software for all components

2 Service Description

2.1 Service Overview

2.1.1 Airport Connect Open (**Service**) is designed to equip airports with a network of workstations and peripherals that can be used interchangeably by the airport and the airlines and handling agents operating at the airport to access in real time their respective IT applications.

2.1.2 The Service supports:

(a) access to relevant departure control systems using industry standard protocols;

(b) simultaneous use of several applications on workstations;

(c) use of the following peripherals used in passenger processing, such as, boarding pass printers, bag tag printers, document printers, boarding gate readers, bar code readers, card readers, passport readers, self-bag drops and self-boarding gates.

2.1.3 Second Party will continue to provide the Airport Connect Open Service previously implemented at the Airport.

2.1.4 As part of the Service, Second Party will provide Service resilience and redundancy, as well as hardware and software monitoring.

2.1.5 As part of the Service, Second Party will provide a managed service, where Second Party will provide additional services such as:

(a) hardware installation and maintenance (including liaising with the relevant manufacturer in connection with hardware warranty services);

(b) software installation and maintenance; and

(c) local and/or remote support.

3 Service Dependencies

3.1 In order to enable implementation of this Service for new Airport Users, or continued use of this Service by existing Airport Users, Airport Users designated to use the Service must ensure that they:

3.1.1 have performed testing of their applications against the Service platform. This can be achieved through the utilization of the Service platform remote test bed;

3.1.2 have their applications certified and/or integrated by Second Party prior to deployment at the Airport and pay Second Party the applicable certification and/or integration charges;

3.1.3 provide to Second Party connection configuration data for connecting their departure control systems to the Service; and

3.1.4 provide network connectivity to each Airport User's departure control system host prior to installation. For example, for the workstations and self-service devices such as CUSS kiosks.

3.2 **Dedicated First Party Peripherals**

First Party may only use equipment that has been approved by Second Party in conjunction with the Service (**Approved First Party Equipment**). Such Approved First Party Equipment includes First Party's own dedicated peripherals if the peripheral is listed on the Second Party certified hardware list and is certified in advance by Second Party for use in conjunction with the Service.

3.3 **Service Upgrade and End-of-Life**

3.3.1 The Second Party Managed Services EOL Policy referred to in paragraph 3.3.3 will apply to the Second Party software deployed at the Core Room.

3.3.2 The Second Party ICT & Equipment EOL Policy referred to in paragraph 3.3.3 will apply to all Service Hardware.

3.3.3 Second Party end-of-life (EOL) policies are located at these links:

(a) Managed Service EOL Policy:

https://www.second party.aero/globalassets/docs/other/eol/managed-service-eol-policy-120218.pdf

(b) ICT and Equipment EOL Policy:

https://www.secondparty.aero/globalassets/docs/other/eol/ict-and-equipment-eol-policy-130618.pdf

3.3.4 In relation to certified applications on the Service's platform, the First Party agrees that all:

(a) First Party applications used by the First Party; and

(b) third party applications that the First Party desires to use,

must be kept at no later than current IATA CUSS or CUPPS technical specification compliance plus 2 prior versions where 1.1 and 1.2 are each deemed a version.

For example, when IATA CUSS specification version 1.8 is launched, applications certified up to version 1.5 shall be deleted, and applications certified to comply with IATA CUSS technical specification versions 1.6, 1.7 and/or 1.8 are allowed.

3.4 **Operational Improvement and Security**.

3.4.1 Second Party and the First Party agree that all source data received by the Service from any source may be anonymized and aggregated by Second Party to provide analytics for service improvement. This provision is subject to all other parts of the Agreement, and Second Party shall at all times comply with its obligations under the Agreement and under all applicable laws and follow best practices for research.

3.4.2 To minimize security risks associated with access to public networks and the internet, First Party agrees to for itself and on behalf of other third parties (i.e., airlines) using the platform service to obtain prior written consent from Second Party to attach to such networks, and to use Second Party approved firewalls and network connectivity for access from the CUTE Service. All requests to add connections to the internet including hardware and other network devices must have the prior written approval of Second Party.

3.5 Unauthorized Resupply. The Service cannot be used for, or re-supplied to, other parties unless explicitly agreed by Second Party. First Party agrees that it shall not in any circumstances use the Service for, or re-supply the Service to, United States "black-listed" parties, being US "SDGTs" – Specially Designated Global Terrorists. The First Party acknowledges that such use of the Service for, or re-supply of the Service to, US SDGTs may result in termination of the Service immediately.

3.6 Except to the extent not permitted at law, Second Party shall not be liable for any Services failures, delays or loss to First Party caused by First Party's failure to perform/comply with the service dependencies listed herein.

4 PCI Compliance

4.1 The Service is technically capable of supporting Payment Card Industry Data Security Standard (PCI DSS) compliance subject to paragraph 4.5 below; however, if the First Party seeks to obtain PCI DSS compliance certification, the First Party must perform its own PCI DSS security review of its end-to-end processes (including payment processing activity that is not part of the Service) to achieve PCI DSS compliance certification. The First Party agrees that Second Party takes no responsibility for PCI DSS compliance other than providing the Service in a way that is technically ready to support PCI DSS, subject to paragraph 4.5.

4.2 Should Second Party suffer any claim or demand from a third party which arises from any security breach or any failure by the First Party or any First Party system, operation, product or service (including any interfaces) to comply with PCI DSS (except those claims generated by the gross negligence or willful misconduct of Second Party) First Party shall indemnify and hold Second Party harmless against all fines, losses, damages, costs and/or expenses (including reasonable legal fees) arising therefrom.

4.3 The First Party acknowledges that it is the responsibility of the First Party to ensure that the facilities and functions of the Service as described in this Service Agreement meets its requirements in relation to security. First Party is responsible for all end-to-end security (including physical site security) as required by PCI DSS.

4.4 Nothing contained herein shall obligate Second Party to incur any additional costs for any equipment upgrade or replacement necessary by a change of PCI standards.

4.5 The First Party agrees that it is the First Party's responsibility for all Service Hardware compatibility with PCI Council standards, failing which: (a) Second Party makes no representations as to the ability of the Service to achieve PCI DSS compliance certification, and (b) Second Party shall have no liability in relation to any

failure of PCI DSS compliance due to non-compatibility of Service Hardware with PCI DSS requirements. Unless otherwise agreed, all required upgrade to Service Hardware shall be funded at First Party's expense.

4.6 **MSRs and Database Updates**

4.6.1 The Parties agree that the processing of credit card data using any MSR (magnetic swipe reader) on keyboards, standalone units, or in kiosks or bag drops is not PCI compliant and not authorized by Second Party. Second Party has no responsibility and no liability if, in connection with the Service, the First Party processes credit card data using any such MSR. For the avoidance of doubt, this exclusion does not apply to any MSR physically incorporated into a chip and pin payment terminal that is PCI PTS compliant and using EMV chip card technology.

4.6.2 The Parties agree that Second Party is not responsible and has no liability for information, such as credit card numbers, passport numbers, DOB or other personal data that are processed by being entered by means of an MSR or through keyboard key-strokes into the system for airline database updates, whether performed by First Party staff or by agents of the First Party.

Schedule 4 – Service Schedule for Airport Connect CUSS Kiosk (Existing Airport Service)

1 Definitions

The following words have these meanings in this Schedule:

CE stands for conformité européenne, French for "European conformity". By affixing the CE marking to a product, a manufacturer – on his sole responsibility – declares that it meets EU safety, health and environmental requirements.

CSA means the Canadian Standards Association, a not-for-profit standards organization.

CUSS means common-use self-service.

FCC means the Federal Communications Commission, a United States federal government agency, regulating non-federal government use of the radio spectrum, interstate telecommunications and international communications that originate or terminate in the US.

IATA means the International Air Transport Association.

LAN means local area network, a computer network that spans a relatively small area

PC means personal computer.

Service means the service described in paragraph 2 of this Schedule.

UPS means uninterruptable power supply and is a system whose function is to assure continuous supply of electrical power to critical systems, where mains power supply is interrupted or of low quality.

2 Service Description

2.1 Service Overview

2.1.1 Airport Connect CUSS Kiosk (**Service**) is a self-service solution that allows passengers to perform all of the necessary transactions for a flight check-in and generate the required documents, without the assistance of airline or ground handling personnel.

2.1.2 Second Party will continue to provide the Airport Connect CUSS Kiosk Service previously implemented at the Airport.

2.1.3 The Service consists of standard features set out in paragraph 2.2 of this Schedule.

2.2 Standard Features

2.2.1 As part of the Service Second Party provides:

(a) touch screen CUSS kiosks, providing a graphical user interface access to the check-in processes of one or more airlines, compliant with standards approved by FCC, CSA, UL and CE.

(b) Second Party's CUSS platform middleware, compliant with IATA's latest CUSS standard, to run on each kiosk;

(c) Microsoft Windows software, to run on each kiosk; and

(d) Second Party's common launch application to run on each kiosk, providing a screen which invites the passengers to use the kiosk and displayed when the kiosk is powered up and working but not currently in use.

2.2.2 Airport Users must provide their own applications, which they want to use on the CUSS kiosks for passenger check-in, customized to their own unique business rules, host connectivity requirements and their multimedia presentation requirements (i.e., brand image). The applications must be tested at the Airport Users' cost by Second Party prior to implementation of the Service to ensure that they operate correctly on the Second Party CUSS platform and do not disrupt the operation of other applications on the CUSS kiosks. Notwithstanding such testing, Second Party does not assume responsibility for the successful operation of the Airport Users' applications on the Second Party CUSS platform.

3 Service Dependencies

3.1 In order to enable continued use of this Service, First Party should:

3.1.1 ensure continued provision of power connections in accordance with local safety standards, one connection per kiosk including a power cord long enough to reach the kiosk connector; and

3.1.2 ensure continued provision of network connectivity to each Airport User's departure control system host prior to installation of the CUSS kiosks.

4 Service Conditions

4.1 Operational Improvement and Security

4.1.1 Second Party and the First Party agree that all source data received by the Service from any source may be anonymized and aggregated by Second Party to provide analytics for service improvement. This provision is subject to all other parts of the Agreement, and Second Party shall at all times comply with its obligations under the Agreement and under all applicable laws and follow best practices for research.

4.2 End-of-Life (EOL) Policy

4.2.1 The Second Party ICT & Equipment EOL Policy applies to the Service. This policy is available at the following link: https://www.second_party.aero/globalassets/docs/other/eol/ict-and-equipment-eol-policy-130618.pdf.

Schedule 5 – Service Schedule for Bag Manager (Existing Airport Service)

1 Definitions

The following words have these meanings in this Schedule:

ABS means an automated baggage system operated at an airport which uses baggage messages to process baggage including, but not limited to, baggage reconciliation, sortation and tracking systems.

AODB means airport operational database.

Baggage means all locally checked-in baggage and transfer baggage within the airport.

BPM means a baggage processed message sent from an ABS to a DCS (or other ABS) with information indicating and reporting that a bag has been 'seen' or 'processed (mainly used for baggage tracking purposes.

BSM means baggage source message and is a message sent by the departing carrier from its departure control or check-in system, or the system of the handling agent, to the operator of an automated baggage system at the point of departure.

CUTE means common use terminal equipment.

DCS means departure control system and is a host computer used by airlines and handling agents to perform check-in and boarding.

HHT means a handheld terminal.

IATA means the International Airline Transport Association.

Service means the service described in paragraph 2 of this Schedule.

UPS means uninterruptable power supply and is a system whose function is to assure continuous supply of electrical power to critical systems, where mains power supply is interrupted or of low quality.

2 Service Description

2.1 Service Overview

2.1.1 Second Party's Bag Manager (**Service**) is a real-time baggage management and reconciliation system that assists First Party in managing the tracking, tracing, and reconciliation of all Baggage.

2.1.2 Second Party will continue to provide the Bag Manager Service previously implemented at the Airport.

2.1.3 The Service consists of standard features set out in paragraph 2.2 of this Schedule.

2.2 Standard Features

2.2.1 The Service is used on the airport's CUTE or other workstations.

2.2.2 The basic functionality of the Service allows the airport, the airlines and the handling agents operating at the airport to:

(a) track Baggage and monitor Baggage related events from check-in to flight departure;

(b) provide real-time advice to airport, airlines and the handling agents' staff regarding the load authorization status of a particular item of Baggage;

(c) provide real-time responses to enquiries in relation to particular pieces of Baggage;

(d) redirect pieces of Baggage that have missed their flight for loading on alternative flights;

(e) allocate containers to flights for the separation of Baggage and record the position of such containers on an aircraft; and

(f) produce reconciliation reports or manifests in relation to Baggage.

2.3 **Optional Features**

2.3.1 Airport Users may choose to receive BPM messages from the Service (at additional cost to the Airport User). Such messages will also be shared with the Second Party Bag Journey platform and made available for authorized Bag Journey users involved in the bag journey in furtherance of IATA Resolution 753.

3 Service Dependencies

3.1 In order to enable continued use of this Service, First Party should:

3.1.1 ensure that all DCSs connected to the Service are sending baggage information messages conforming with IATA's recommended practice 1745 at version 1 or higher to the Service's node;

3.1.2 procure an interface with the airport's AODB for the provision of flight schedule and update information, compliant with Second Party's interface requirements specification, including any software development or middleware necessary for the implementation of such interface;

3.1.3 where advised by Second Party:

(a) procure connectivity between the Service and Second Party's Airport Connect Net network for management and diagnostics of the Service by Second Party and, where necessary, messaging between the Service and certain Second Party messaging services, such as Bag Message and World Tracer; and/or

(b) provide wireless LAN compliant with the IEEE802.11b/g standard or another specified by Second Party.

4 Service Conditions

4.1 **Disclaimer**

4.1.1 First party acknowledges and agrees that second party assumes no liability or responsibility for the impact on the performance of the services (including for availability, security and service levels) where it is agreed that the first party will provide its own hardware and/or software (in whole or in part) in connection with the service and such equipment and/or software causes any disruption to the service. Without limiting the foregoing, where the first party provides computer(s) in connection with the service, a reputable up-to-date antivirus program must be installed and maintained by the

first party for the duration of the service.

4.2 **End-of-Life (EOL) Policy**

4.2.1 The Second Party Managed Services EOL Policy applies to the Service. This policy is available upon request from Second Party.

4.3 **Operational Improvement and Security**

4.3.1 Second Party and the First Party agree that all source data received by the Service from any source may be anonymized and aggregated by Second Party to provide analytics for service improvement. This provision is subject to all other parts of the Agreement, and Second Party shall at all times comply with its obligations under the Agreement and under all applicable laws and follow best practices for research.

Schedule 6 – Service Schedule for Bag Message (Existing Airport Service)

1 Definitions

The following words have these meanings in this Schedule:

.**ABS** means an automated baggage system operated at an airport which uses baggage messages to process baggage including, but not limited to, baggage reconciliation, sortation and tracking systems.

.**BPM** means a baggage processed Message sent from an ABS to a DCS (or other ABS) with information indicating and reporting that a bag has been 'seen' or 'processed (mainly used for baggage tracking purposes).

.**BSM** means a baggage source Message sent from a DCS to the ABS and containing data about a bag or bags that have been checked-in.

.**BTM** means a baggage transfer Message sent from a DCS to an ABS to indicate that a bag is being transferred (only used if airline (Interline) through check-in has failed).

.**BUM** means a baggage unload Message sent from a DCS to an ABS and contains data about bags that need to be unloaded from a flight.

.**DCS** means departure control system and is a host computer used by airlines and handling agents to perform check-in and boarding.

.**IATA** means the International Airline Transport Association, the trade association of the world's scheduled international airline industry.

.**IBM** WebSphere MQ means IBM's message-oriented middleware, previously known as IBM MQ Series.

.**Interlining** means a commercial agreement between airlines to handle passengers travelling on itineraries that require the services of multiple airlines.

.**LAN** means local area network, a computer network that spans a relatively small area.

.**MATIP** means mapping airline specific traffic over IP, an open standard for tunnelling airline protocols via a router.

.**Message(s)** means messages containing baggage information that are exchanged between DCS and ABS in a format prescribed by IATA's recommended practice 1745.

.**Service** means the service described in paragraph 2 of this Schedule.

.**TCP/IP** means transmission control protocol/internet protocol, a protocol for communication between computers, used as a standard for transmitting data over networks and as the basis for standard internet protocols.

.**VLAN** means virtual local area network.

2 Service Description

2.1 Service Overview

2.1.1 Second Party's Bag Message (**Service**) is a hosted message distribution service that channels Messages between multiple airlines' DCSs and multiple airport ABSs.

2.1.2 Second Party will continue to provide the Bag Message Service previously implemented at the Airport.

2.1.3 The Service consists of standard features set out in paragraph 2.2 of this Schedule.

2.2 Standard Features

2.2.1 Whilst the Service is capable of handling BSM, BTM, BUM and BPM and all related Messages specified in the IATA's recommended practice 1745, the scope of the Service provided under this Service Agreement is for the supply of BSM Messages only.

2.2.2 The Service interfaces to a DCS using:

(a) legacy P1024B/C protocol;

(b) Second Party proprietary (Bag Message) message exchange protocol over TCP/IP;

(c) IBM WebSphere MQ messaging over TCP/IP (which can outbound deliver BPMs to Second Party Type B message gateway);

(d) Second Party's Airport Connect Net network; and

(e) MATIP.

2.2.3 The Service interfaces to an ABS using only Second Party's proprietary (Bag Message) message exchange protocol over TCP/IP.

2.2.4 The Service comprises the provision and maintenance by Second Party of:

(a) Service routers which will be located at the Airport(s); and

(b) a single communication path from the Service routers to the Service servers located at Second Party's data center(s).

2.2.5 The Service does not include:

(a) checking the Message's compliance with IATA's recommended practice 1745;

(b) reformatting of the Message;

(c) changing or translating the Message version;

(d) provision of circuits between the relevant DCS hosts and the Service servers located at the Second Party data center(s); and

(e) LAN connectivity at the Airport between the Service routers and the First Party's ABS.

3 Service Dependencies

3.1 In order to enable continued use of this Service, First Party should:

3.1.1 obtain and maintain all necessary permissions for Second Party to implement and provide the Service, including written authority from the relevant DCS host for connection to the Service;

3.1.2 arrange for circuits between the relevant DCS hosts and the Service servers located at the Second

Party data center(s), if they are not in existence already; and

3.1.3 provide LAN connectivity at the Airport(s) between the Service routers and the First Party's ABS.

4 Service Conditions

4.1 DISCLAIMER

Second Party DOES NOT WARRANT THAT 100% OF ALL MESSAGE SENT BY AN AIRLINE DCS WILL BE DELIVERED BY THE SERVICE.

4.2 Operational Improvement and Security

Second Party and the First Party agree that all source data received by the Service from any source may be anonymized and aggregated by Second Party to provide analytics for service improvement. This provision is subject to all other parts of the Agreement, and Second Party shall at all times comply with its obligations under the Agreement and under all applicable laws and follow best practices for research.

4.3 End-of-Life (EOL) Policy

The Second Party Managed Services EOL Policy applies to the Service. This policy is available upon request from Second Party.

Schedule 7 – Service Schedule for Airport Management Solution (AMS) comprising Airport Central and Airport Resource Manager with Airport Integrator (New Airport Service)

1 Definitions

The following words have these meanings in this Schedule:

.**Aeronautical Charges** means charges billed by First Party to airlines and other parties operating at the Airport for facilities and services provided to facilitate the processing of aircraft and passengers through the Airport.

.**Aircraft Movement** means aircraft movements on the ground at the airport, i.e., between the time an aircraft lands at the Airport to the time it takes off (wheels-up) from the Airport.

AMS means Second Party Airport Management Solution.

AODB means Airport's Operational Database.

.**Application** means the Airport Central or the Airport Resource Manager applications.

Application Interface mean software designed and developed to allow the movement of data to/from an external application from/to AODB. The interface will cater for the transitioning or merging of data into the AMS format in order to transfer it but will not support independent business logic / functionality within the interface (this should be done within the appropriate application prior to transfer).

.**Business Process Change** means change to the way the First Party performs its business operations.

.**LAN** means local area network, a computer network that spans a relatively small area.

.**Service** means the service(s) described in paragraph 2 of this Schedule.

.**Superuser** means a First Party User who will (a) use the Application as an end-user, (b) train First Party User(s) as how to use the Application, (c) configure the business rules within the Application for the various departments of the Airport; and (d) discuss with the Second Party business analysts on how to best implement and automate the Airport's business processes in AMS.

.**UATs** means User Acceptance Tests.

.**VPN** means Virtual private network.

2 Service Overview

2.1 Second Party will extend the Airport Management Solution (AMS) currently installed at KIA T4 and integrate to KIA T1. The solution comprises the Airport Central and Airport Resource Manager Services with Airport Integrator Service. It is assumed this will be a completely separate project with no links to KIA T4 except for the infrastructure. In addition, there will be no re-use of interfaces developed for KIA T4.

2.2 Description of Airport Central Service

2.2.1 Second Party will provide the Airport Central (**Service**) which assists First Party in managing the sourcing and storage of Aircraft Movement information and the distribution of such information to its

personnel (directly or indirectly, e.g., via a display system) and its other systems.

2.2.2 Standard Features

(a) The Service is affected through the Airport Central application (**Application**).

(b) The basic functionality of the Service is provided by the airport operational database module of the Application, which allows First Party to:

(i) configure the Application;

(ii) create new or modify existing airport flight schedules; and

(iii) track Aircraft Movements and provide Aircraft Movements information to other First Party systems, such as its flight information display system.

(c) Unless otherwise explicitly specified the reports provided by the system are limited to those standard reports that are available within the core product at the time of purchase.

(d) Second Party will provide the following Software license for KIA T1:

(i) Flight Management/AMS Web;

(ii) AODB; and

(iii) Reporting.

2.3 Description of Airport Resource Manager Service

2.3.1 Second Party will provide Airport Resource Manager (**Service**) which allows First Party to plan and manage allocation of fixed resources at the Airport such as parking stands, baggage carousels, departure gates and counters.

2.3.2 Standard Features

(a) The Service is affected through the Airport Resource Manager application (**Application**).

(b) The functionality of the Application is provided by various modules, which may be procured by First Party separately or together.

(c) Second Party will provide the following Software license for KIA T1:

(i) Parking (Vehicle) / Stand Manager

Allows Contractor to manage aircraft parking stands and busses / drivers (for remote stand positions)

(ii) Gate Manager

Allows Contractor to manage podiums at departure gates.

(iii) Counter Manager

Allows Contractor to manage departure check-in counters.

(iv) Carousel Manager

Allows Contractor to manage baggage claim carousels for arriving flights.

(d) Unless otherwise explicitly specified the reports provided by the system are limited to

those standard reports that are available within the core product at the time of purchase.

2.4 Description of Airport Integrator (MSI)

2.4.1 Second Party will provide Airport Integrator (**Service**), an integration solution that simplifies data exchange between airport systems. It has at its core a bus structure and is completely compatible with open data standard as well as being able to connect to legacy systems.

2.4.2 List of Interfaces

Second Party will provide Interfaces to the following systems:

Name	Direction	Business Purpose
SITATEX	Inbound	Flight time and Pax updates
VDGS (SafeGate)	Bidirectional	Flight updates to the SafeGate, On/Off Block times from SafeGate.
Billing	Outbound	Data for billing of overflying flights
Score	Inbound	Flight seasonal schedule
ATM (Indar)	Inbound	Flight time updates
AFTN	Inbound	Flight time update

3 Service Implementation

3.1 Functional Governance Principles

3.1.1 Second Party has created simplicity and scalability in terms of implementation through the Second Party airports standard configurations (**Templates**) derived from best practice processes at previous Second Party product implementations. These Templates will be used for this Service, as follows

(a) The standard configuration Template will be used by the joint project team of Second Party and the First Party as the default implementation and variations will be documented by such joint project team on a site-by-site basis; and

(b) Any locally specific deviation will be discussed by and between the Parties ad hoc and processed through Change Management Procedure; and

3.1.2 First Party will appoint Superusers will take responsibility for their local configuration and rules with a view to delivering subsequent modifications without further Second Party consultant support.

3.1.3 Second Party will provide a Standard Reference Data set (examples: Airlines, Airports, etc.).

3.1.4 No data migration (including, but not limited to, historic flight-related AODB data) is in scope.

3.1.5 Second Party will provide a set of standard reports. Additions / Deletions / Modifications of this reports' set will be undertaken by the First Party Superusers or, if requested, by Second Party Consultants as a Change Request undertaken by Second Party on a Time and Materials basis.

3.1.6 Any reports training provided by Second Party as part of this Service will be undertaken on a "Train the Trainer" basis to a set of First Party Superusers. The Superusers should have the necessary skills/pre-requisite training in MS Reporting Services (SSRS) to perform this role.

3.1.7 While Second Party will use reasonable efforts to respond to queries, Second Party is not responsible or liable for any errors made by Superusers. The First Party acknowledges and accepts that Superuser error may negatively affect Service performance.

3.1.8 Any significant product development towards the resolution of gap and/or creation of new module within the required functional scope of the Application will be done in an iterative jointly collaborative fashion ("**Developments**"). Second Party will own all Intellectual Property Rights in all Developments. First Party hereby irrevocably assigns, with full title guarantee, to Second Party all Intellectual Property Rights in and to the Developments. The Developments will form part of the Services and First Party will retain the right to use the Services, as modified by the Developments, in accordance with the terms and conditions of this Service Agreement. First Party irrevocably agrees to execute and deliver such instruments and documents as Second Party reasonably requests to evidence or give Second Party the full benefit of the provisions contemplated by this paragraph 3.2.7. Furthermore, First Party waives and shall continue to waive all moral rights under the Copyright Designs and Patents Act 1988 (or any equivalent rights) or any similar rights anywhere in the world in and to the Developments.

3.1.9 The First Party and Second Party teams will work in successive partial steps incrementally covering the functional scope to be addressed. At the end of each step, the team will have review meetings with the objective to gather feedback on the scope just covered and agree on directions for the next step.

3.2 **Technology Governance Principles**

3.2.1 Where hardware provision is not part of this Service, the First Party will provide 3 Core System environments to enable Second Party to effectively carry out its implementation duties:

(a) Production Environment
(b) Test Environment (mirrors the Production Environment)
(c) Implementation / Development Environment

3.2.2 The live AMS database is not to be considered/used as an integration point, even for a read-only viewing function. The AMS data warehouse should be used for that purpose. The structure of the live "internal" database can change at any time without prior notice.

3.2.3 Local support for the Application will be performed by local First Party Superusers. Configuration support of those local Superusers will be made by a local First Party Superusers team. The support for this central team will be performed by Second Party.

3.3 **Testing and Training Principles**

3.3.1 Standard UAT tests will be run by First Party with Second Party in support once centrally and documented. Local UATs will be performed with a view to avoiding duplication of the efforts already engaged at global level.

3.3.2 Training to First Party Superusers by Second Party consultants will be performed centrally one-time in a key location, as part of Service implementation, and subsequently as agreed. Second Party will provide two (2) AMS training workshops covering the in-scope modules.

3.3.3 First Party User training will be performed by First Party Superusers.

3.3.4 Second Party will provide yearly re-training for five (5) years.

3.3.5 The maximum number of participants per training session is 6.

3.4 **Translation and Language**

3.4.1 All software and documentation provided by Second Party shall be delivered in English.

3.4.2 All documentation provided by First Party shall be delivered in English.

3.4.3 All project communication including training will be in English, i.e., all Superusers should speak English.

4 Service Dependencies

4.1 In order to enable implementation of the Airport Management Solution (AMS):

4.1.1 The First Party will instruct any 3rd party system providers, to which an Application Interface is required, to work with Second Party to design and develop such an Application Interface.

4.1.2 The First Party is responsible to identify at least 2 Superusers per Airport implementation.

4.1.3 The First Party must train their staff on the reporting tool to be used. Second Party will train the First Party staff on the Second Party product specific reports.

4.1.4 The First Party will provide Second Party with remote VPN access to the servers on which the Second Party applications will be configured (including but not limited to Development, Test and Production servers).

4.1.5 The Charges for integration services have been assessed on the basis of a standard Application Interface and twenty-five (25) days per Application Interface. In the event the First Party requires more complex Application Interfaces and the time required to perform the integration services exceeds the basis on which the Charges have been calculated, Second Party shall charge the First Party for any additional work on a Time and Material basis at Second Party's then current rates, provided that any such additional work is not attributable to any fault on Second Party's part.

4.1.6 Second Party takes no responsibility for any data inputted into the Service, or for any reports or data generated by the Service dependent on First Party (or its agent's) inputted data. Accuracy of reports is fully dependent upon data input. Second Party does not supply data input as part of this Service. Second Party excludes all liability for any data errors caused by the First Party (or its agent's) inputting of data.

4.1.7 Second Party takes no responsibility for the security of the Service in the First Party's computing environment. The First Party shall be responsible for all network security and local security (e.g., firewalls, virus and malware protection, user access, passwords, administration, network monitoring, physical security and so on). Second Party excludes all liability for any security breach relating to Service users, data input or the local computing environment.

4.1.8 First Party shall provide LAN and Power.

5 Service Conditions

5.1 End-of-Life (EOL) Policy

The Second Party Managed Services EOL Policy will apply to the Service. This policy is located at this link:

https://www.secondparty.aero/globalassets/docs/other/eol/managed-service-eol-policy-120218.pdf

5.2 Operational improvement and security.

Second Party and the First Party agree that all source data received by the Service from any source may be anonymized and aggregated by Second Party to provide analytics for service improvement. This provision is subject to all other parts of the Agreement, and Second Party shall at all times comply with its obligations under the Agreement and under all applicable laws and follow best practices for research.

Schedule 8 –Not Used-Not Used

Schedule 9– Not Used

Schedule 10- Not Used

Schedule 11– Equipment Schedule

1 Equipment for New Airport Service(s)

1.1 Second Party will provide the following Equipment for use with the New Airport Service(s):

1.1.1 Airport Management Solution (AMS)

Description	Quantity
AMS/FIDS workstation	3
Laster printer	3
AMS/FIDS workstation (dedicated for Second Party staff)	1

The existing infrastructure at KIA T1 shall be used for server and client environment.

1.2 Not Used

2 Basis of Supply

2.1 Second Party supplies the Equipment for use with the Service.

3 Additional Equipment

3.1 First Party may order additional equipment using the form appearing in Appendix 1.

Appendix 0 – Additional Equipment – Order Form

See next page.

First Party Name:

_____

First Party Address:

_____

_____

_____

_____

To:

XXXXXXXXXXXXXXXXXXXXXX
Address : XXXXXXXXXXXXXXXX

Dear Sirs,

ORDER FOR ADDITIONAL EQUIPMENT

With reference to a service agreement dated _____ (**Service Agreement**) entered between us, we wish to request additional Equipment as specified in the below table.

This request, if accepted by Second Party, shall constitute an addendum to the Service Agreement and shall be governed by the terms and conditions of the Service Agreement. Notwithstanding the preceding sentence, First Party acknowledges that Second Party may opt to charge First Party at its current charging rates.

Additional Equipment (description and quantities)
Airport or another Site
Charges
Payment Terms
Special Conditions

Sincerely,

First Party

_____ _____

(Signature) (Date)

_____

(Print Name)

For acceptance

Second Party

_____ _____

(Signature) (Date)

_____

(Print Name)

Schedule 12 – Implementation Schedule

1 Definitions

.**Change Request Form** means the form contained in Appendix 1 to this Schedule.

.**Core Room** means a secure location (at the Airport or otherwise) for housing Second Party's core Equipment, used for the delivery of one or more of the Service(s).

2 Applicability of Schedule

2.1 This Schedule applies with regards to the implementation of the following Service(s):

1.1.1 **New Airport Service(s):**

(a) Airport Management Solution (AMS) comprising Airport Central and Airport Resource Manager with Airport Integrator.

3 Start of Implementation

3.1 Implementation of the New Airport Service(s) will start in accordance with clause 4.2 of the Solution Line Terms for Airport Services, i.e. Second Party will commence implementing the Services at the Airport once Second Party has received signed Airport User Agreements from all Airport Users operating at the Airport.

3.2 If the implementation of the Service(s) is delayed by First Party, Second Party reserves the right to charge for the reasonable costs incurred by Second Party because of the delay.

4 Implementation Activities

4.1 In order to implement the Service(s) Second Party will:

4.1.1 ensure the continued provision of cabling (to at least ANSI/EIA/TIA 568A standard pertaining to Category 5 Unshielded twisted pairs and multi-mode 62.5/126 µm fiber cabling) and configuring the LAN as required for the Service(s); and

4.1.2 supply, laying and Termination of 24F SM FO cable between Second Party Core Room T1 and T4 Server Room 2.

4.2 In order to enable implementation of the Service(s), First Party will provide or procure (at no cost to Second Party):

4.2.1 continued use of existing Core Room which conforms to ANSI/EIA/T1A 569 equipment room standards with space for servers including racks;

4.2.2 network connection of the Service(s) to the First Party's own and, where applicable, Airport Users' or third party's IT systems;

4.2.3 connections, communications lines, data links and associated data transmission equipment necessary for provision of the Service(s), as specified by Second Party;

4.2.4 WAN connectivity, as specified by Second Party;

4.2.5 UPS and power;

4.2.6 counters, gates and desk furniture being suitable to accommodate the Equipment;

4.2.7 the Service Dependencies set out in the various Service Schedules contained in this Exhibit 2;

4.2.8 secure storage space for the Equipment;

4.2.9 a pre-production testing environment;

4.2.10 if required by Second Party, administrative office space for the Second Party operations and maintenance team, as specified by Second Party; and

4.2.11 airport passes for all Second Party staff.

5 Project Plan

5.1 A detailed project plan will be prepared by Second Party and agreed with First Party at the beginning of the implementation.

6 Change Control

6.1 During the implementation of the Service(s), any work that is required to be performed over and above the work stated in this Schedule, shall be performed following an agreement between the parties on the scope and any related consequences (for the Charges, the Project Plan, etc.) arising out of or in relation to such additional work.

6.2 Each party may request additional work over and above the work stated in this Schedule, using the change request form, contained in Appendix 1 (**Change Request Form**), signed by appropriately authorized representatives of the parties.

6.3 The following process shall apply to any changes in scope identified between signature of this Service Agreement by the First Party and the cutover of the Service(s):

6.3.1 Change Request Made by First Party

(a) Changes requested by the First Party shall be submitted to Second Party using the Change Request Form for Second Party to assess the impact and cost. Second Party will allocate a change request number. If the analysis of the impact of the change and/or the development of the solution requires the allocation of resources and involves significant cost, Second Party will submit a price for this work to the First Party. The First Party formal agreement to pay for the work must be obtained before the work is carried out.

(b) If Second Party is unable to implement the change requested, the Change Request Form will be returned to the First Party indicating the reason(s) in detail.

(c) When the costs and impact of the change have been assessed Second Party will return the Change Request Form to the First Party for acceptance. If First Party does not accept the change it will return the form completed with the reasons for non-acceptance.

6.3.2 Change Request Submitted by Second Party

(a) If a change is requested by Second Party a completed Change Request form will be submitted to the First Party for acceptance. If the First Party does not accept the change the form will be completed as Not Accepted and returned to Second Party.

6.3.3 Authorizations and Approvals

(a) If the change is accepted the Change Request Form will be signed by an authorized representative of the First Party and Second Party. The authorized Change Request Form shall then become part of this Service Agreement, as an amendment to it.

7 Acceptance Testing

7.1 As part of the project planning, Second Party will specify and agree with the First Party the Acceptance Testing criteria and the execution of the Acceptance Testing.

7.2 The Acceptance Testing document(s) to be issued by Second Party shall include acceptance certificate(s) to be signed by the First Party upon successful completion of Acceptance Testing.

Appendix 1 – Change Request Form

Change Request Form **Number: _____**	
SECTION A **Contract Details**	
Contract Name:	
Parties:	
Reference no:	
Effective date (if known):	
SECTION B **Details of proposed Change**	
Title of the proposed Change:	
Service(s) to which the proposed Change relates:	
Description of the proposed Change: [*Describe the proposed Change in detail with an explanation of its importance*] [*Attach supporting information if appropriate*]	
Clause(s) and/or schedule(s) of the Contract which will be modified (if any): [*if necessary, provide wording of any new / amended provisions*]	
SECTION C **Impact of proposed Change Request** **(For information, impact assessment and resource planning only)**	
Cost Delivery date / timetable / other date Functionality Performance Resources Other system	Documentation Training needs Third Party Other (please specify) _____

Description of impact(s): [*provide a detailed description of the selected impact(s)*]	
SECTION D **Cost**	
Cost implications of the proposed Change: [*Include details of whether the current cost (if any) is reduced or increased*]	
SECTION E **Approval of proposed Change**	
Approval	Second Party and First Party confirm that they have each read the information contained in this Change Request Form, approve the proposed Change Request as set out above, and agree that the Contract shall be treated as having been amended accordingly: **<u>For and on behalf of Second Party</u>** **Signed:** ……..…… (Authorized Signatory) **Name:** …… **Title:**…… **Date:** ...…… **<u>For and on behalf of First Party:</u>** **Signed:** …….. (Authorized Signatory) **Name:** …… **Title:**…… **Date:** ...……

Schedule 13 – Maintenance and Support Schedule

1 Definitions

The following words have these meanings in this Schedule:

.**Change** means modification(s) to a Service that may require a change to the Service Agreement.

.**Change Request** means a request for modification(s) to a Service that may require a change to the Service Agreement.

.**IMACD** means an install, move, add, change or delete request with respect to equipment.

.**LAN** means local area network, a computer network that spans a relatively small area.

.**Onsite Resolver Group** means the local engineers or technicians who handle Problem determination and the resolution of Incidents that require physical intervention.

.**Operational Consumables** means all consumable items necessary for the operation of equipment such as paper, thermal print heads, print ribbons and cartridges required to operate the equipment that can be installed by a trained First Party User.

.**Planned Changes** means changes to equipment or a Service that are scheduled in advance.

.**Preventive Maintenance** means the scheduled cleaning and adjustment of equipment and component parts to maintain reliability and availability.

.**Problem** means the common cause of multiple Incidents occurring at one time or persisting over a period of time or a single major Incident for which the cause is unknown.

.**Problem Management** means the investigation and resolution of a Problem that has caused (or may be expected to cause) a major Incident or a number of smaller Incidents.

.**Resolver Group** means one of a number of specialist teams, within Second Party or contracted to Second Party, that may be assigned work in order to resolve an Incident or to investigate a Problem.

.**Service Requests** means First Party requests for additional services (other than for resolution of Incidents).

.**Technical Consumables** means components or elements subject to wear and tear, requiring replacement from time to time by a technician that are not covered by the manufacturer's warranty but subject to the manufacturer's recommendation for periodical replacement. Technical Consumables include ATB1 thermal print head, BTP thermal print head and DCP Print head.

.**Unplanned Changes** means changes to equipment or a Service that need to be made immediately to resolve operational problems.

.**Workstation** means the PC hardware and software, including the operating system, with associated peripherals and peripheral firmware, configured for use by a First Party User.

2 Applicability of Schedule

2.1 This Schedule applies to the following Service(s), where the same are provided to First Party under this Service Agreement:

2.1.1 Airport Connect Open;

2.1.2 Airport Connect CUSS Kiosk;

2.1.3 Bag Manager & Bag Message;

2.1.4 Airport Management Solution (AMS) comprising Airport Central and Airport Resource Manager with Airport Integrator;

2.1.5 Airport Vision (System only);

2.1.6 Airport iValidate; and

2.1.7 Self-Bag Drop Scan & Fly.

3 Maintenance and Support - Elements

3.1 In relation to this Service, Second Party will provide to First Party maintenance and support services, comprising the following elements:

3.1.1 Level 1 Support – Service support through the Second Party Service Desk, which provides:

(a) Incident management and Incident resolution;

(b) escalation management;

(c) Problem Management;

(d) Change management; and

(e) IMACD management.

3.1.2 On-site maintenance and support services covering:

(a) 24 x 7 maintenance support services;

(b) Hardware maintenance,

(c) fix of hardware faults;

(d) Preventive Maintenance;

(e) Provision and replacement of ATB and BTP Technical Consumables; and

(f) Management and maintenance of spares.

3.1.3 LAN management (active components only), covering:

(a) LAN remote monitoring & reporting;

(b) LAN operations management; and

(c) LAN availability & capacity management.

3.1.4 Level 2 Support – Service support through the Second Party Remote Management Centre.

3.1.5 Level 3 Support – Service support through the Second Party Development and Certification team.

3.2 In relation to the Self Bag Drop Scan & Fly Service, First Party will ensure that it, or the Hosted Airlines, nominates dedicated trained service-staff as “floor walker(s)” to provide basic support for passenger service and quick resolution of simple issues, such as.

3.2.1 enable/disable the Self Bag Drop unit;

3.2.2 support passengers with Self Bag Drop when required;

3.2.3 perform daily cleaning of touch screen(s);

3.2.4 replenish printer rolls;

3.2.5 replenish paper stock;

3.2.6 correct paper jams;

3.2.7 keep the Self Bag Drop area tidy; and

3.2.8 check if the fault is belt- or Second Party related and escalate any Second Party faults to the Second Party Service Desk.

4 Level 1 Support - Second Party Service Desk

4.1 The Second Party Service Desk will:

4.1.1 be the owner of Incidents, responsible for ensuring that all Incidents are recorded and managed to successful resolution;

4.1.2 will provide resources to deal with First Party User enquiries and to handle First Party's Change Requests;

4.1.3 monitor the timely handling of the Incident by each assigned Resolver Group initiating escalation actions as required; and

4.1.4 provide services in English.

4.2 Incident Management

4.2.1 Incident Management is triggered in two ways:

(a) by First Party / end user reporting the Incident to the Second Party Service Desk; or

(b) by an actionable event being observed as part of a remote management services.

4.2.2 The Second Party Service Desk will perform the following actions for reported Incidents:

(a) log and categorize reported Incidents;

(b) track the Incident through to resolution;

(c) provide status updates to First Party;

(d) engage appropriate Incident resolution resources;

(e) escalate to appropriate Resolver Groups and levels of support;

(f) dispatch the Onsite Resolver Group where applicable;

(g) identify known errors and repetitive Incidents, providing a work-around where applicable;

(h) follow-up for status on actions taken by support groups outside of Second Party;

(i) verify closure with First Party and where applicable obtain First Party concurrence for

Incident closure;

(j) respond to First Party User queries regarding Incidents;

(k) initiate First Party communications during critical situations;

(l) initiate escalation procedures for critical situations; and

(m) close the Incident Record and document the Incident resolution.

4.3 Incident Resolution

4.3.1 Second Party shall perform the following on-site activities when required to resolve Incidents or to resolve or avoid Problems:

(a) investigate and diagnose the cause of Incidents and Problems;

(b) take appropriate actions to resolve Incidents and Problems;

(c) apply emergency software patches and updates when required;

(d) update configuration information when required; and

(e) ensure that other related activities are reported and recorded by the Second Party Service Desk.

4.3.2 Upon the detection of an actionable event, or notification of an Incident to the Second Party Service Desk, remote management tools may be used to investigate and resolve the Incident.

4.3.3 If it is determined that an Incident cannot be resolved remotely, the Onsite Resolver Group will normally be dispatched. Second Party will endeavor to limit the scope of on-site work to those activities that require physical intervention.

4.3.4 When appropriate, Second Party may use remote management tools to address First Party's service needs.

4.3.5 Second Party will:

(a) define a security policy and procedures for remote management access;

(b) obtain First Party's permission to perform a remote Workstation takeover, if required; and

(c) establish a schedule for remote management adjustments to be made and advise First Party if requested.

4.4 **Escalation Management**

4.4.1 Should an Incident not be resolved within the applicable Service Level targets, the Second Party Service Desk shall provide status updates to First Party in accordance with agreed procedures.

4.4.2 The Second Party Service Desk may trigger escalation procedures when an Incident resolution time is in danger of exceeding the threshold defined in the Service Levels Schedule.

4.4.3 The objectives of the escalation procedures are to ensure that:

(a) an Incident is rectified as quickly as possible;

(b) all measures are taken to minimize any disruption to First Party's operations;

(c) if an Incident cannot be resolved within pre-determined periods, affected First Party

Users are notified of the Incident and the progress of its resolution;

(d) appropriate and progressively more senior, Second Party staffs are made aware of the Incident and the actions being taken for resolution; and

(e) appropriate resources are deployed as necessary to assist the resolution effort.

4.5 **Problem Management**

4.5.1 Second Party will provide Problem Management to identify, remove the cause and minimize the impact of repeated Incidents and Problems on First Party's business.

4.5.2 Problem Management will work to identify the root cause of the Problem, initiate corrective actions and resolve the Problem.

4.6 **Change Management**

4.6.1 Second Party will provide a Change management service, to advise First Party of Changes proposed by Second Party and to ensure appropriate action to support Change Requests submitted by First Party.

4.6.2 Second Party will manage Change Requests through the First Party's account manager or the local operations Service manager.

4.7 **IMACDs Management**

4.7.1 Second Party's IMACD management service covers the onsite support and central coordination of Change activities that require physical intervention on the Equipment and/or any First Party equipment which Second Party has agreed to support (as set out in Appendix 1).

4.7.2 When formally requested by First Party, Second Party shall support IMACD activities by providing services to affect the:

(a) addition of equipment;

(b) move of equipment;

(c) change to the configuration of equipment;

(d) decommissioning of equipment;

4.7.3 The IMACD management service includes, where necessary, or as requested by First Party:

(a) data backup and migration;

(b) data restoration;

(c) data move from one machine to another;

(d) emergency software loads; and/or

(e) First Party User orientation (15 minutes or less) after an IMACD.]

5 On-site Maintenance and Support Services with Hardware Maintenance

5.1 Second Party will provide on-site and off-site services to maintain in working order the Equipment which Second Party has agreed to support.

5.2 The on-site support personnel will be responsible for supporting Incidents related to Second Party systems and ensure all these Incidents are resolved as quickly as possible within the agreed Service Levels.

5.3 The on-site support team will provide hardware remedial maintenance services and preventive maintenance services, including the following:

5.3.1 repairing defective equipment;

5.3.2 replacing defective equipment using spare units if necessary;

5.3.3 monitoring spares movements and managing spares inventory, ordering and replenishing spares stock as required to maintain an adequate level of spares in a secure location;

5.3.4 shipping defective items of equipment, that cannot reasonably be repaired locally, to an appropriate equipment depot Resolver Group and receiving repaired devices from the equipment depot Resolver Group and returning them to stock;

5.3.5 recording and updating the detail and status of the maintenance and support provided in the resolution of Incidents through to resolution; and

5.3.6 Preventive Maintenance as described below.

5.3.7 With respect to the Self Bag Drop Service, diagnosing and resolving/escalating issues relating to interfaces, scanners, communication errors between Hosted Airline DCS and BHS, photocell alignment / replacement.

5.4 **Preventive Maintenance**

5.4.1 Preventive Maintenance will be scheduled to be carried out when the equipment is not normally in operational use, in order not to impact upon operations. Second Party will execute Preventative Maintenance in accordance with the manufacturer's instructions.

6 LAN Management

6.1 **LAN Management and Operational Support**

6.1.1 A LAN consists of a number of active components (such as hubs, switches and routers) and passive components (such as cabling and sockets/outlets). Second Party will provide overall management and operational support for all active components of the LAN and connection points of the LAN supporting the Service(s). This includes:

(a) logical and physical management of the LAN network elements; and

(b) monitoring of LAN devices and the monitoring of system logs for warnings or unusual events.

6.1.2 This service does not include the repair of passive LAN components such as cables or connectors.

6.2 **LAN Security Management**

Second Party will set up and enforce a security policy for the LAN based upon established security practices and procedures. Second Party will manage configurations and perform periodic security reviews and audits.

6.3 **LAN Availability and Capacity Management**

6.3.1 Second Party will assure the availability of the active components of the LAN to meet the Service Levels applicable to the Service(s) covered by this Schedule by monitoring, measuring and tracking performance of all active components against the expected performance criteria.

6.3.2 A LAN availability plan will be developed and updated regularly to ensure that all current and future needs of the Service(s) covered by this Schedule are addressed.

6.3.3 LAN availability management includes the following activities and responsibilities:

(a) define the availability required;

(b) establish indicators and thresholds for exception reporting;

(c) track availability (through service management tools);

(d) monitor Service Level performance;

(e) analyze and report on availability;

(f) capture trend data information; and

(g) recommend availability improvements.

6.3.4 Second Party will carry out the following actions to provide LAN capacity management:

(a) monitor and document current network loads;

(b) monitor statistics (such as utilization rate by protocol, buffers, and throughput);

(c) review traffic patterns;

(d) perform tuning based on above information;

(e) project future network requirements based upon current trends and known new projects; and

(f) develop a LAN capacity plan.

6.3.5 Second Party will ensure that adequate capacity and bandwidth are available to meet the required Service Levels applicable to the Service(s) covered by this Schedule and develop a capacity plan to ensure that future needs of the Service(s) are addressed.]

7 Level 2 Support - The Remote Management Centre

7.1 Monitoring and fault management will be provided by Second Party Remote Management Centre (RMC) including all remote activities such as trouble shooting, diagnostic, restoration and other remedial activities required in order to restore a Service application to a full operational mode. Level 2 Support will also include Software administration and distribution of:

7.1.1 operating system updates, e.g., security patches;

7.1.2 antivirus updates;

7.1.3 platform software updates;

7.1.4 launch application updates;

7.1.5 certified airline application updates, e.g., involves packaging for distribution, downloading and verification testing to ensure proper operation.

7.2 The Second Party RMC will:

7.2.1 perform Incident resolution or identifies Problems where root cause is unknown;

7.2.2 notify the Second Party Service Desk when onsite technicians need to be dispatched for hardware break/fix;

7.2.3 escalate to Second Party Airport Operations team (the Problem management team);

7.2.4 perform workarounds identified by the Problem management team for Incident resolution;

7.2.5 identify changes to infrastructure required for Incident resolution;

7.2.6 notify Second Party's Application Management team(s) of any hardware change that may impact the applications running on that hardware;

7.2.7 receive global work order notification when new release is available;

7.2.8 perform System change to deploy new software release;

7.2.9 notify Second Party Service Desk upon completion of any Change or resolution of any Incident.

8 Level 3 Support - Development and Certification Team

8.1 Second Party's Level 3 Support owns the following responsibilities:

8.1.1 receives requests for Incident and Problem management support via Level 2 Support teams;

8.1.2 performs root cause analysis to identify bugs or requirements for code change;

8.1.3 engages Second Party's Development Team to fix bugs or apply code changes in next Service application release;

8.1.4 notifies Second Party's Operational Release Management team of upcoming release availability;

8.1.5 performs recommendation and action planning to update obsolete resources and migration to new versions of software and/or platforms;

8.1.6 performs small developments: monitoring shell scripts, scheduled tasks, delete logs.

8.2 Level 3 Support is complemented by Second Party's Development, Certification Group that owns the following responsibilities:

8.2.1 develops required code change and bug fixes;

8.2.2 performs certification and testing of new releases;

8.2.3 makes releases available to Second Party's Airport Operations team for global release following beta certification;

8.2.4 notifies Second Party's Airport Operations of availability of a new release;

8.2.5 develops functional and technical documentation associated with new developments, user manuals for the scheduled tasks and shell scripts.

9 First Party Responsibilities

9.1 First Party's responsibilities include (at First Party's cost):

9.1.1 Provide additional training to First Party Users Should Second Party feel that lack of training is contributing to levels of Incidents;

9.1.2 Ensure basic support for the Equipment which Second Party has agreed to support is conducted by the First Party Users, including removing paper jams and any foreign objects;

9.1.3 Report Incidents to Second Party as soon as they occur with full details, where known;

9.1.4 Submit Change Requests to Second Party, with a clear definition of requirements;

9.1.5 Agree with Second Party a timetable for any planned Changes that require work to be done by Second Party;

9.1.6 Supply Second Party with First Party User contact details;

9.1.7 Ensure that the installation of other hardware at the site will not cause interference to the Equipment which Second Party has agreed to support; and

9.1.8 Provide and restock Operational Consumables.

9.2 First Party shall ensure the Airport Users provide and restock Operational Consumables such as stationery and printer ribbons.

9.3 With respect to the Self Bag Drop Service, First Party shall:

9.3.1 ensure that First Party staff, or the Hosted Airlines, nominate dedicated trained service-staff as “floor walker(s)” to provide basic support for passenger service and quick resolution of simple issues, in accordance with this Schedule; and

9.3.2 provide remote access to the on-site Second Party Bag Drop units (via site-to-site VPN) to enable the provision of Level 3 Support by the Second Party Bag Drop COE team.

Schedule 14 – Service Levels Schedule

1 Definitions

The following words have these meanings in this Schedule:

.**Application** means the software application used by Second Party to provide the relevant Service.

.Business Day(s) means, in this SLA, the business day in the time zone of the Second Party support group responsible for the remote support, or the onsite Second Party team responsible for the local support as applicable.

.**Defer Time** means cumulated time where Second Party is unable to progress the resolution of an Incident due to events outside the responsibility of Second Party (including local First Party contact being unavailable, Incident residing outside the scope of the Service, any Force Majeure Event).

.**Exclusions** means in respect of each Service Level, the circumstances in which targets are not applicable, described as such in this Schedule.

.**Maximum Service Availability Period** means the maximum time the Service or a Service Element (as the case may be) is expected to be available during the Service Cover Period throughout the Measurement Period, after deducting Scheduled Downtime, Unscheduled Permitted Downtime, and time the Service was unavailable due to any Force Majeure Events and/or Exclusions.

.**Force Majeure Event** means in relation to this schedule, an event which; (a) is beyond the reasonable control of the affected party and which the affected party cannot prevent or overcome, in each case as determined by the affected party acting reasonably; (b) prevents total or partial performance of the obligation(s) of the affected party, and (c) does not arise through the fault or negligence of the affected party. It includes any environmental conditions, vandalism, government action, strikes or lock-outs, war, terrorism, commercial power supply interruption, equipment failure when managed by First Party, failure or unavailability of telecommunications lines (including local access), third party interventions not under Second Party control, and failure of any third-party service provider.

.**Incident** means an unplanned interruption to the Service(s) covered by this Schedule

.**Incident Record** means an occurrence of an Incident that is logged in the Second Party ITSMS and acknowledged through the provision on an Incident reference number by Second Party

.**Measurement Period** means: (a) in respect of Airport Connect Open (if provided to First Party) – three calendar months (on a rolling basis); and (b) in respect of other Services – one calendar month.

.**Normal Business Hours** or **NBH** means the normal business hours at the place indicated, and if no place is indicated, then it means the normal business hours of Second Party's or its subcontractor's nearest service Centre.

.**Priority Level** means the level of severity of an Incident, falling into one of the levels indicated in paragraph 3.2.2 of this Schedule.

.**Restoration of Service Time** means the period between the time of issue by the Second Party Service Desk to First Party of an Incident Record and the time at which the Service is restored to an operational level by Second Party.

.**Scheduled Downtime** means a period of scheduled downtime for the Service or the Service Element (as the case may be), for the purpose of Second Party carrying out activities necessary for the proper operation of such Service or Service Element, such as: (a) software loads; (b) communication loads; (c) upgrades; (d) database re-organization; (e) preventative maintenance; and (f) disaster recovery testing or upgrades.

.**Service** means each of the Services to which this Schedule explicitly specifies that it applies to.

.**Service Availability Achieved** means the calculated actual time, expressed as a percentage, for which the Service or a Service Element (as the case may be) is available during the Maximum Service Availability.

.**Service Availability Target** means each Service Level, which is the proportion of the Maximum Service Availability Period, expressed as a percentage, representing the target time for which the Service or a Service Element (as the case may be) is available during Maximum Service Availability Period. A sample calculation appears in paragraph 3.1.2 of this Schedule.

.**Service Cover Period** means the times during the day when the Service Levels shall apply to the Service or a Service Element (as the case may be). In the absence of contrary indication, Service Cover Periods are twenty-four hours a day, seven days a week.

.**Service Credit** means a credit due to the First Party measured in SCUs if applicable, and if the Service Availability Achieved is less than the Service Availability Target in a Measurement Period,

.**Service Level means**, in respect of a Service, any service level applicable to that Service, specified in this Schedule**.**

Service Element means a specific element of the Service to which a Service Level applies.

.**Service Levels Report** has the meaning given to it in paragraph 4.1 of this Schedule.

.**SCU** means a Service Credit Unit and is a unit which has a monetary value given to it in paragraph 5.3.1 below, representing a credit due to the First Party

Unplanned Outage means an outage to a Service that results in a period of lack of Service availability, provided that such outage is not a Scheduled Downtime or Unscheduled Permitted Downtime.

Unscheduled Permitted Downtime means emergency Service outages or planned Service outage to perform emergency or urgent maintenance, which may include a maintenance windows or maintenance update for third party issued patches and updates for the Service (and supporting infrastructure if applicable), which may be a critical security patch update if it addresses an issue that may affect the operating environment of the Service.

2 Applicability of Schedule

2.1 This Schedule applies to the following Service(s), where the same are provided to First Party under this Service Agreement:

2.1.1 Airport Connect Open;

2.1.2 Airport Connect CUSS Kiosk;

2.1.3 Bag Manager & Bag Message;

2.1.4 Airport Management Solution (AMS) comprising Airport Central and Airport Resource Manager with Airport Integrator;

2.1.5 Airport Vision (System only);

2.1.6 Airport iValidate; and

2.1.7 Self-Bag Drop Scan & Fly.

3 Service Levels

3.1 Service Availability

3.1.1 Exclusions. Service Availability Targets do not apply in the absence of an Incident Record issued by Second Party.

3.1.1 Service Availability Achieved is measured against the Service Availability Target and is calculated as a percentage of the Maximum Service Availability Period. The table below contains a calculation (provided as an illustration only) of Service Availability Achieved during a Measurement Period of one calendar month.

A month based on 30 calender days = 43200 minutes (for a Service Cover Period of 24 hours x 7 days a week)
• Scheduled Down time and/or Unscheduled Permitted Down time = 30 minutes
• Time related to Force Majeure Events and/or Exclusions = 30 minutes
Maximum Service Availability Period = 43140 minutes
• Unplanned Outages = 90 minutes
Service Availability Achieved for relevant month = ((43140-90) /43140) * 100 = 99.79%
• If Service Availability Target = 99.75%, the Target is exceeded.

3.1.2 Service Levels for Service Availability Achieved are as set out in the following table:

Service	Service Cover Period	Service Availability Target
Airport Connect Open and Bag Manager	24 hr x 7 days a week	99.5%
Airport Management System	24 hr x 7 days a week	99.5%

3.2 Restoration of Service Time

3.2.1 Exclusions. Service Levels for Restoration of Service Time do not apply:

a. during Scheduled Downtime;
b. in the absence of an Incident Record issued by Second Party (in case of an outage not due to Scheduled Downtime);

c. during Defer Time;

d. for any on-site interventions, where the distance between Second Party's (or its subcontractor's) nearest service Centre and the First Party Site is more than 100 kms or the First Party Site is not accessible by land.

e. For any Exclusions listed in paragraph 6 below.

3.2.2 When the First Party reports an Incident to the Second Party Service Desk, the Second Party Service Desk will assign to it one of the following priority levels (**Priority Level**):

Priority Level		Description	Examples
1	**Critical Business Impact**	Total system failure, including interruption of business critical Applications, affecting all end-users. An alternative or bypass is unavailable.	• A major application is experiencing a complete outage, severely affecting the Site. • A complete interruption of the Bag Manager Service. No workstations or hand-held terminals are operational.
2	**Major Business Impact**	Complete or partial service interruption of business critical Applications has occurred, affecting multiple end-users or workstations. An acceptable alternative or bypass is unavailable.	• First Party was migrated from a previously functional service and has lost all functionality; • Critical application functions are failing or producing incorrect results; and • Repeated occurrences of a failure or a series of related failures that might be expected to result in significant customer dissatisfaction or complaint. • A major failure of the Bag Manager Service which affects operation; Flights cannot be reconciled correctly. All the equipment is working.
3	**Minor Business Impact**	Partial service interruption of business-critical Applications, affecting a group of end-users or isolated business area. Operational impact is minimal with no immediate impact on Service delivery. An alternative bypass is available.	• A new service (not a migration or replacement) was installed but has never been operational; • First Party migrated from a previously functional service and has lost partial functionality; • A user interface is not functioning, preventing end-users from making updates to their data; and • A single server has failed in a multi-server environment, resulting in degraded performance. • A partial failure of the Bag Manager Service, involving failure of a group of equipment. For example, a wireless access

			point is not working, stopping all hand held terminals in that area from working.
4	**Minimal Business Impact**	A component, procedure or non-critical Application is unusable. An alternative is available. There is impact to an individual end-user and minimal impact on Service delivery (possibly resulting in minor inconvenience).	• Failure of server(s) occurred, but the back-up system recovered immediately; • Failure of an application, but it recovered automatically or could be restarted and normal operation resumed; and • Intermittent degradation of Service (slow response time). • A problem with the Bag Manager service that is "cosmetic" in nature and only affects the user interface.
5	**Minor Issues/No Business Impact**	The faults do not affect the Service. An alternative or bypass is not applicable. There is minimal to no impact to customer	• Spelling error with minimal impact; • A configuration change is required; and • Changes in user preferences. • Incidents due to end-user training, knowledge or supervision issues. For example, an end-user cannot log in to the Bag Manager Service because the end-user does not yet have password. Or an intermittent fault that requires investigation.

3.2.3 Following the issue of an Incident Record, Second Party will attempt to resolve the Incident by:

a. performing remote diagnostics and troubleshooting; and

b. if necessary and covered by the Service, engaging a field engineer.

3.2.4 Service Levels for Response Time and Restoration of Service Time for product/Application Incidents will be based on the Priority Level of the Incident in question, as set out in the following table:

Priority Level	**Response Time (All systems)**	**Restoration of Service Time for Services Listed under section 2 of this Schedule.**
1 – Critical Business Impact	45 minutes	4 Hours
2 – Serious Business Impact	45 minutes	12 Hours
3 – Business Efficiency Impact	45 minutes	5 Business Days
4 – Business Inconvenience Impact	45 minutes	30 Business Days
5 – No Business Impact	45 minutes	30 Business Days

3.2.5 Second Party will provide hardware maintenance support services for the in-scope end user equipment deployed at the Site in order to comply with the Service Levels.

3.2.6 The coverage hours and Service Level for fault restoration time will run as follows:

Description	Terminal	Coverage	Fault Restore Time*	Percentage of Faults to be resolved within Fault restore time
Hardware Maintenance Support services for end-user Equipment (Workstation and peripherals)	Main Terminal	24 hrs a day and 7 days a week	45 minutes	90%
	Sheikh Saad Terminal	24 hrs a day and 7 days a week	8 hrs during Normal Business Hour and Days (i.e. 5D x 8H); 12 hrs outside of the above times	90%

3.27 An Incident is deemed to be resolved when either:

a. Second Party rectifies the fault or failure and reports that to First Party;
b. workaround has been achieved and the implementation of further resolution is scheduled;
c. First Party acknowledges, after contacting the Second Party Service Desk, that there is no fault or failure;
d. Second Party confirms to First Party that the functionality which is the subject of the reported Incident is correct;
e. the fault or failure cannot, despite reasonable efforts, be reproduced by Second Party and/or First Party (and, as such, was a one-off); or
f. Second Party determines that a remedy for the Incident will be included in the next release of the Application.

4 Service Levels Report

4.1 Second Party shall use reasonable endeavors to deliver within 30 days from the end of each Measurement Period to First Party a report, which indicates the shortfalls in the Service Levels during that Measurement Period (**Service Levels Report**)) and any SCUs accrued to the First Party in accordance with paragraph 5 below.

4.2 The parties agree that all information contained in Service Level Reports is Confidential Information of Second Party.

5 Service Credits and Penalties

5.1 Service Credits in case of the Second Party's failure to achieve the Service Levels for Service Availability

Achieved as set out in paragraph 3.1.3 will be as follows:

Service Level as per paragraph 3.1.3	**Service Credit "SCU"**
For every 0.3% below the set Service Availability Target	3

5.2 Service Credits in case of the Second Party's failure to achieve the Service Levels for fault restoration time for hardware Incidents as set out in paragraph 3.2.6 will be as follows:

Percentage of Faults resolved within Fault Restore Time as per paragraph 3.2.6	**Service Credit Unit"SCU"**
Less than 86	50
86 to 87	40
87 to 88	30
88 to 89	20
89 to 90	10
90 to 100	0

5.3 Service Credits

a. 1 SCU = USD150
b. No double penalty shall be applicable in case of SLA failure on multiple Services if those Services were affected by the same source. As such, penalty on one Service only shall apply.
c. No Service Credits will accrue or be applicable with respect to a Service before such Service is operational.
d. No Service Credit would apply on hardware Incidents affecting workstations and peripherals in airport site, if the volume of Incidents reported in a month in the Airport site is less than 10.
e. Service Credits will be calculated on a quarterly basis for the preceding three months and applied to the First Party's next payment of the Concession Fee.
f. In all circumstances, total Service Credits to be credited by the Second Party to the First Party during any Measurement Period shall not exceed three percent (3%) of the Second Party's total Fee for that Measurement Period (determined in accordance with the provisions of the Pricing Schedule for Airport Services).

5.3 The Second Party's sole liability, and the First Party's exclusive remedy, for Unplanned Outages are the Service Credits which relate to the Service Level in question. The First Party acknowledges and agrees that the Service Credits are (and undertakes to ensure, at the point of an amendment to the

Service Agreement (if any), that the Service Credits still are):

a. not penal, are proportionate to the First Party's legitimate interests and are in any event a genuine pre-estimate of the First Party's recoverable loss in a given Measurement Period; and
b. adequate and reasonable in light of the scope of the Services selected by the First Party, the Charges for such Services and the availability of additional services that would improve Service Availability Achieved for additional charges.

6 Exclusions

6.1 The occurrence of any of the circumstances listed below will be excluded from the measurement of the Service Levels:

a. Incidents caused by damage to the Equipment caused by improper treatment or use, such as but not limited to misuse, shocks, painting, electrical damage, negligence (willful or otherwise), rodents, transportation damage, delivery, modifications or installation not carried out by the Second Party or its sub-contractor (if any);
b. Interventions regarding consumable replacement activities;
c. Incidents caused by failure by the First Party or end users to comply with the Second Party or the supplier's reasonable written instructions regarding operation and environmental conditions;
d. Where the Second Party has applied for approvals, permits (including airport security passes) or consents which it requires to perform the Services, and the First Party causes delay in the issue of such approvals, permits or consents;
e. Any Force Majeure Event;
f. Incidents relating to Infrastructure not supported by the Second Party;
g. Delay in issuance of airport security passes from related authority provided the Second Party has submitted the application on time (minimum of 30 working days prior to the date the security passes is required by the Second Party) and complied with the relevant process;
h. Airline network communication links provided outside this Service Agreement;
i. Incidents related to Airlines' host;
j. Other systems provided outside this Service Agreement; unless explicitly stated;
k. Application impacted due to any equipment not managed by the Second Party;
l. Any Incident due to malfunction of Baggage belts and weighing scales;
m. Where hardware, software and network are not maintained by the Second Party;
n. Incidents related to power infrastructure;
o. Incidents related to telecom providers;
p. During Defer Time (i.e. the Second Party is unable to progress Incident resolution due to

circumstances outside the Second Party's control).

q. If the Second Party fails to meet any Service Levels due to any of the First Party's responsibilities or Service Dependencies listed herein not being met, then the Second Party shall be exempted from penalty payment.

Schedule 15 – Pricing Schedule for Airport Services

Schedule 15 - Pricing Schedule for Airport Services

الجدول 15- جدول الأسعار لخدمات المطار

1. Per Passenger Charge

1. رسم المسافر

1.1 From the Effective Date of this Services Agreement, Second Party shall charge each Airport User for every Passenger departing the Airport ("Per Passenger Charge"), where "Passenger" is defined in clause 9.3 of the Solution Line Terms for Airport Services. First Party may agree with the Second Party to increase the Per Passenger Charge and this overall increase shall be passed in full to the First Party.

1.1 اعتبارًا من تاريخ بدء هذه الاتفاقية، يستوفي الطرف الثاني من كل مستخدم المطار مبلغ لكل مسافر يغادر المطار ("رسم المسافر)، حيث يتم تعريف المسافر في البند 9.3 من شروط خدمات المطار كما يحق للطرف الأول بالاتفاق مع الطرف الثاني زيادة ورفع قيمة رسم المسافر وتؤول هذه الزيادة كاملةً الى الطرف الأول.

1.2 Second Party shall inform First Party about the Airport Users that have not paid the Per Passenger Charge at the date where Second Party pays the First Party the Concession Fee as described is section 3.4 hereunder.

1.2 يتوجب على الطرف الثاني إبلاغ الطرف الأول عن مستخدمي المطار الذين يتخلفوا عن تسديد رسم المسافر في الوقت الذي يقوم فيه الطرف الثاني بدفع بدل الامتياز للطرف الثاني وفقاً لما هو منصوص عنه في البند 3.4 أدناه.

2. Concession Fee

2. رسم الامتياز

Service Scope	Per Passenger			لكل مسافر			نطاق الخدمات
	Per Passenger Charge (USD)	Concession Fee (USD)	Second Party Fee (USD)	أتعاب الطرف الثاني (دولار أميركي)	رسم الامتياز (دولار أميركي)	رسم المسافر (دولار أميركي)	
Provision of Existing Airport Services (Airport Connect Open, Airport Connect CUSS Kiosk, Bag Manager & Bag Message) and	xxx	xxx	xxx	xxx	xxx	xxx	توفير خدمات المطار الحالية (Airport Connect Open, Airport Connect CUSS Kiosk, Bag Manager & Bag Message)

New Airport Services (Airport Management Solution (AMS) comprising Airport Central and Airport Resource Manager with Airport Integrator)							خدمات المطار الجديدة والذي يشتمل على Airport) Management Solution (AMS) comprising Airport Central and Airport Resource Manager with Airport (Integrator

3. Billing methodology and payment of total Concession Fees

3. طريقة إصدار الفواتير ودفع كامل رسوم الامتياز

3.1 Each month, First Party shall provide to Second Party the Passenger Count for the preceding Month pursuant to clause 9.3 of the Solution Line Terms for Airport Services

3.1 كل شهر، يجب على الطرف الاول تزويد الطرف الثاني بعدد المسافرين للشهر السابق وفقًا للفقرة 9.3 من شروط خدمات المطار.

3.2 Second Party shall invoice each Airport User (on a monthly basis an amount equal to the Per Passenger Charge multiplied by Airport User's Passenger Count ("Airport User Charges").

3.2 يقوم الطرف الثاني بإصدار فاتورة لكل مستخدم المطار على أساس شهري بمبلغ يساوي رسم المسافر مضروبًا بعدد الركاب لمستخدم المطار ("رسوم مستخدم المطار").

3.3 The Second Party shall:

3.3 على الطرف الثاني أن:

3.3.1 Second Party will only invoice those Airport Users who have signed an Airport User Agreement with Second Party.

3.3.1 يلتزم الطرف الثاني بإصدار فواتير لمستخدمي المطار الذين وقعوا اتفاقية مستخدمي المطار معه فقط.

3.3.2 Second Party shall not collect Airport User Charges from the Embargoed Airline(s) and shall seize to collect Airport User Charges from the Airlines that are contracted with Second Party under the Airport User Agreement and for which the provision of Services has been suspended thereto.

3.3.2 لن يقوم الطرف الثاني بتحصيل رسوم مستخدم المطار من الشركات الناقلة المحظورة وسوف يتوقف عن تحصيل رسوم مستخدم المطار من الشركات الناقلة المتعاقد معها بموجب اتفاقية مستخدمي المطار التي تمّ تعليق الخدمات لها.

3.4 The Winning Tenderer is obligated to pay a concession fee of a total amount of (- KD) Kuwaiti dinars only, that is, an annual amount of (- KD) Kuwaiti dinars only to the Directorate General of Civil Aviation during the due period in (4) quarterly payments. Every (3) months and the first payment is due within a maximum period of (10) days from the date the payment is due after the end of the processing period. Accordingly, a late fine of (1000 KD) Kuwaiti Dinar only will be imposed for each day of delay after the end of the processing period. Collection: This fine is due as soon as the delay occurs and without the need for warning, alerting, or taking any judicial procedures, as well as without the need to prove the damage, which is considered in all cases to have been achieved.

3.4 يلتزم المزايد الفائز بدفع رسوم امتياز مبلغ إجمالي وقدره (- د.ك) دينار كويتي لا غير ، أي بمبلغ سنوي وقدره (- د.ك) دينار كويتي لا غير للإدارة العامة للطيران المدني خلال الفترة المستحقة على (4) دفعات (ربع سنوية كل (3) شهور) وتستحق أول دفعة خلال مدة أقصاها (10) أيام من تاريخ استحقاق الدفعة بعد انتهاء فترة التجهيز ، وعليه سيتم فرض غرامة تأخير بواقع(1000 د.ك) دينار كويتي فقط لا غير ، عن كل يوم تأخير بعد انتهاء فترة التحصيل وتستحق هذه الغرامة بمجرد حصول التأخير وبدون الحاجة إلى إنذار أو تنبيه أو اتخاذ أية إجراءات قضائية وكذلك دون الحاجة إلى اثبات الضرر الذي يعتبر في جميع الأحوال متحققاً.

3.5 Second Party shall inform First Party about the Airport Users that have not paid the Per Passenger Charge at the date where Second Party pays the First Party the Concession Fee as described is section 3.4 hereunder

3.5 يتوجب على الطرف الثاني إبلاغ الطرف الأول عن مستخدمي المطار الذين يتخلفوا عن تسديد رسم المسافر في الوقت الذي يقوم فيه الطرف الثاني بدفع بدل الامتياز للطرف الثاني وفقاً لما هو منصوص عنه في البند 3.4 أدناه.

4. The Per Passenger Fee listed in this Pricing Schedule related to Exhibit 2 -Airport Services is different from the Traveler's Fees listed in the

4. إن رسم المسافر المنصوص عنه في جدول الأسعار العائد الى المعرض رقم 2- خدمات المطار، يختلف عن

Pricing Schedule attached to the Exhibit 1 of this Agreement.	**رسم المسافر المنصوص عنه في جدول الأسعار المرفق بالمعرض رقم 1 من هذه الاتفاقية.**

Schedule 16 – Circular for Airport Users Schedule for Airport Services

Schedule 16 - Circular for Airport Users Schedule for Airport Services

الجدول رقم 16- جدول التعميم الى مستخدمي المطار بما يتعلق بخدمات المطار

1. Mandatory Items

1. البنود الملزمة

1.1. The circular to be sent by First Party to Airport Users pursuant to clause 2.3 of the Solution Line Terms for Airport Services must contain the following points:

1.1. يجب أن يحتوي التعميم الذي يرسله الطرف الأول الى مستخدمي المطار عملاً بأحكام المادة 2.3 من شروط خدمات المطار ما يلي:

1.1.1. A reference to Second Party being the sole service provider of Airport Services such as Airport Connect Open, Airport Connect CUSS Kiosk and Bag Manager, appointed by First Party to provide the Services for a period of [10] years; and informing Airport Users that the use of manual passenger processing or baggage reconciliation services will not be permitted at Kuwait International Airport.

1.1.1 الإشارة إلى انه قد تمّ تعيين شركة الطرف الثاني من قبل الطرف الأول بكونها مزود الخدمات الوحيد المعين لخدمات المطار مثل Airport Connect Open, Airport Connect CUSS Kiosk and Bag Manager وذلك لمدة عشر سنوات، وعليه يُمنع على جميع مستخدمي المطار الاستخدام اليدوي لخدمات معالجة المسافرين ونظام مطابقة الحقائب العادي في مطار الكويت الدولي.

1.1.2. An obligation on all Airport Users to execute an Airport User Agreement with the Second Party within thirty (30) days from the date of this circular.

1.1.2 التزام جميع مستخدمي المطار بتوقيع اتفاقية مستخدم المطار مع الطرف الثاني خلال ثلاثين يوماً من تاريخ هذا التعميم.

1.1.3. An identification of the amount per passenger to be paid by the Airport User and the passenger types included and excluded from this amount.

1.1.3 تحديد قيمة الرسم المتوجب دفعه عن المسافر من قبل مستخدم المطار مع بيان فئات المسافرين الخاضعين لذلك الرسم.

1.1.4. A description of the penalties for non-compliance with the circular.

1.1.4 بيان العقوبات المترتبة على عدم الالتزام بهذا التعميم.

1.1.5. An obligation on all Airport Users to pay Per Passenger Charges to Second Party based on the most recent number of monthly Passengers, in case the number of Passengers in any month is not available on time.

1.1.5 التزام جميع مستخدمي المطار، بتسديد رسوم المسافر، الى الطرف الثاني بناءً على أحدث إحصاء شهري للمسافرين، في حال عدم توفر الإحصاء الشهري للمسافرين في الوقت المحدد.

1. Draft Circular to Airport Users

TO BE SENT ON DIRECTORATE GENERAL OF CIVIL AVIATION HEAD NOTEPAPER TO AIRPORT USERS

Date:

Circular no. (202X / XXX)

To All Airlines and Ground Handling Agents Operating at Kuwait International Airport

Subject: Airport Services

Dear Sir/Madam,

2. The Directorate General of Civil Aviation has appointed Second Party as sole provider of the following services at Kuwait International Airport, with effect from [Date] for a period of ten years:
   - Airport Connect Open,
   - Airport Connect CUSS Kiosk; and
   - Bag Manager.

Additional services may be added by the Directorate General of Civil Aviation from time to time.

Airlines and ground handling agents are hereby mandated that the use of manual passenger processing or baggage reconciliation services will not be permitted at the Kuwait International Airport from the above date.

And accordingly, airlines (or ground handling agents acting on airline's behalf) operating at Kuwait International Airport are mandated to execute the Airport User Agreements with Second Party for the provision of Airport Services within thirty (30) days from the date of this Circular; and airlines (or ground handling agent acting on airline's behalf) to levy a surcharge per passenger on all the following categories of departing passengers:

(a) all passengers who change flights through the transit area at the Airport (include: all passengers that transfer and/or transit their flights with same airlines and/or on/with different airlines);

1. مسودة تعميم الى مستخدمي المطار

لإرسالها على مذكرة تحمل ترويسة الإدارة العامة للطيران المدني إلى مستخدمي المطار.

التاريخ:

تعميم رقم: XXX/XXXX

الى جميع شركات الطيران ومندوبي الخدمات الأرضية العاملين في مطار الكويت الدولي

الموضوع: خدمات المطار

السادة الأعزاء

3. نفيدكم بأن الإدارة العامة للطيران المدني قد قامت بتعيين شركة الطرف الثاني كمزوّد خدمات وحيد في مطار الكويت الدولي لتقديم الخدمات التالية وذلك اعتباراً من تاريخ_____ ولمدة عشر سنوات:
   - Airport Connect Open,
   - Airport Connect CUSS Kiosk; and
   - Bag Manager.

ويمكن للإدارة العامة للطيران المدني من وقت الى آخر إضافة خدمات جديدة.

بناءً عليه واعتباراً من التاريخ المذكور أعلاه يُمنع على جميع شركات الطيران ومندوبي الخدمات الأرضية الاستخدام اليدوي لخدمات معالجة المسافرين ونظام مطابقة الحقائب العادي في مطار الكويت الدولي.

وبناء على ما تقدم، على جميع شركات الطيران(أو مندوبي الخدمات الأرضية العاملين بالنيابة عن شركات الطيران) العاملين في مطار الكويت الدولي توقيع اتفاقية مستخدم المطار مع شركة الطرف الثاني لاستخدام خدمات المطار وذلك خلال ثلاثين يوم من تاريخ هذا التعميم؛ وعليهم (جميع شركات الطيران أو مندوبي الخدمات الأرضية العاملين بالنيابة عن شركات الطيران) فرض رسم إضافي لكل مسافر مغادر على جميع الفئات التالية من المسافرين المغادرين وهم:

(أ) جميع المسافرين الذين يقوموا بتبديل رحلاتهم في المطار من خلال صالة الترانزيت (يدخل في فئة المسافرين هذه: جميع المسافرين الذين يقوموا بتحويل رحلاتهم في المطار سواءً على ذات شركة الطيران او على/بين شركة طيران أخرى)؛

(b) All passengers departing from the departing lounge at the Airport Kuwait (males, females, children, infants); and

(ب) جميع المسافرين الذي يغادرون من صالة المغادرين في المطار (ذكور، إناث، أطفال، ورضّع)؛ و

(c) all passengers travelling on non-scheduled and charter flights.

(ت) جميع المسافرين على الرحلات غير المجدولة وعلى رحلات المؤجرة (التشارتر).

The following categories of passengers are excluded from the departing passengers' categories:

ان فئات المسافرين الواردة أدناه لا يدخلون من ضمن فئة المغادرين وهم:

(a) passengers who are on direct transit arriving at the Airport and remaining on board the arrival aircraft for an onward journey in the same aircraft;

(أ) المسافرين الذين هم في الترانزيت والذين يصلون الى المطار ويبقون على متن الطائرة لتكملة رحلتهم في نفس الطائرة؛

(b) operating airline crew on the flight (as identified by the general declaration);

(ب) طواقم شركات الطيران العاملين على الرحلات (معرّفين في general declaration)؛

(c) passengers of a flight which return to the Airport due to a technical snag or otherwise or any other reason, without completing the original scheduled journey and without landing at any other airport; and

(ت) المسافرين الذين يعودون الى المطار بسبب عطل تقني او غيره او لأي سبب آخر، بدون تكملة رحلتهم الاصلية وبدون أن يحطّوا في أي مطار آخر.

Second Party shall charge each airline (or ground handling agent acting on airline's behalf), for every passenger departing the Airport, based on the above categories of passengers, based on passenger count to be provided by Directorate General of Civil Aviation.

سوف تقوم شركة الطرف الثاني بتحصيل رسم من شركات الطيران (أو من مندوبي الخدمات الأرضية العاملين بالنيابة عن شركات الطيران) عن كل مسافر مغادر من مطار الكويت الدولي بناءً على أعداد المسافرين المُزوَّد من الإدارة العامة للطيران المدني الى الطرف الثاني.

It is further mandated that, in the event the monthly number of passengers is not available in due time, airlines will pay Second Party the per passenger surcharge mentioned here-above based on the most recent number of monthly passengers.

كما يتوجب على جميع شركات الطيران، في حال عدم توفر الإحصاء الشهري للمسافرين في الوقت المحدد، أن تسدد الى شركة الطرف الثاني الرسم الإضافي المذكور اعلاه بناءاً على أحدث إحصاء شهري متوفر للمسافرين.

In the event airlines and ground handling agents do not abide by this directive, financial penalties will be imposed thereupon.

في حال مخالفة الشركات الناقلة لهذا التعميم ستُفرض غرامات مالية مقطوعة عليها.

Exhibit 2: Border Services

المعرض رقم 2: خدمات الحدود

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Schedule 1 – Solution Line Terms for Border Services

الجدول 1 – الشروط المتعلقة بخدمات الحدود

1 Definitions

In addition to the definitions contained in the General Terms and Conditions of this Agreement, the following words have these meanings in this Exhibit **2** for Borders Services:

API means Advanced Passenger Information Data.

APP means Advanced Passenger Processing Data.

PNR means Passenger Name Record Data.

DCS means Departure Control System Data.

The Law on the Protection of Data in Force 20 (20) of 2014 on electronic transactions in this regard and the European Public System for the Protection of Statement 679/2016 of the European Parliament and the Council on the Protection of Natural Persons in Relation to Personal Data Processing and Freedom of Data Traffic ("Data Protection") and Directive 680/2016 Natural persons with regard to the treatment of personal data by the competent authorities for purposes of the prevention, investigation, detection, prosecution or implementation of criminal penalties, the free movement of such data ("Law Enforcement Directives"), as well as any supplementary or executive legislation.

Border Services means the services detailed in Exhibit 2 Schedule 2 – Service Description Schedule for Border Services which Second Party shall be provide to First Party thereof in accordance with the Implementation Plan.

Carrier means each airline arriving and/or departing and/or transiting Kuwait.

Carrier Certification means the establishment of a Carrier's ability to provide data to Second Party (as set out in Exhibit 2 Schedule 2 – Service Description Schedule for Border Services) as required for Second Party to provide the Border Services.

Carrier Data means Data to be provided by each Carrier about its Travelers in accordance with the Project Regulation for the purposes of the Border Services.

Conditions Precedent means the conditions listed in clause 2.2 of this Schedule.

First Party Project Manager has the meaning given to it in clause 13.1 of this Schedule.

Data has the meaning given to it in clause 8.2 of this Schedule.

1. التعريفات

بالإضافة إلى التعريفات الواردة في الشروط والأحكام العامة من هذه الاتفاقية، يكون للكلمات التالية هذه المعاني في هذا المعرض رقم 2 لخدمات الحدود:

API تعني معلومات المسافر المسبقة.

APP تعني المعالجة المسبقة لمعلومات المسافر.

PNR تعني سجل اسم المسافر.

DCS تعني نظام التحكم بالمغادرة.

قانون حماية البيانات المعمول به يعني مانص عليها القانون رقم (20) لسنة 2014 في شأن المعاملات الإلكترونية في هذا الخصوص و النظام الاوروبي العام لحماية البيان رقم 2016/679 الصادر عن البرلمان والمجلس الأوروبي بشأن حماية الأشخاص الطبيعيين في ما يتعلق بمعالجة البيانات الشخصية وحرية حركة هذه البيانات ("النظام الأوروبي العام لحماية البيانات")، والتوجيه رقم 2016/680 بشأن حماية الأشخاص الطبيعيين في ما يتعلق بمعالجة البيانات الشخصية من قبل السلطات المختصة لأغراض منع الجرائم الجنائية أو التحقيق فيها أو اكتشافها أو مقاضاتها أو تنفيذ العقوبات الجنائية، وحرية حركة هذه البيانات ("توجيهات تطبيق القانون")، إلى جانب أي تشريع تكميلي أو تنفيذي.

خدمات الحدود تعني الخدمات المفصلة في المعرض رقم 2 الجدول 2 - جدول توصيف خدمات الحدود والتي سوف يقوم بتقديمها الطرف الثاني الي الطرف الأول وفقاً لخطة التنفيذ.

شركة النقل تعني كل شركة طيران تصل و/أو تغادر و/أو تعبر الكويت.

اعتماد شركة النقل يعني تحديد قدرة شركة النقل على توفير البيانات للطرف الثاني (كما هو مبيّن في المعرض 2 الجدول 2 - جدول توصيف خدمات الحدود) كما هو مطلوب لتمكين الطرف الثاني من توفير خدمات الحدود.

بيانات شركة النقل تشير إلى البيانات التي يتعين على كل شركة نقل توفيرها بشأن المسافرين، وفقًا لنظام المشروع لأغراض خدمات الحدود.

الشروط المسبقة تعني الشروط المذكورة في الفقرة 2.2 من هذا الجدول.

مدير المشروع المعيّن من الطرف الاول له المعنى المحدد له في الفقرة 13.1 من هذا الجدول.

البيانات لها المعنى المحدد لها في الفقرة 8.2 من هذا الجدول.

Embargoed Carrier(s) means a Carrier(s) that is subject to Export Laws, and which Second Party may inform First Party, from time to time there about, and to whom Second Party shall not issue invoices for Traveler Charges.

الشركات الناقلة المحظورة تعني الشركات الناقلة (التي يُبلّغ بها الطرف الثاني للطرف الاول من وقت لآخر) المفروض عليها عقوبات بموجب قوانين التصدير، والتي لن يقوم الطرف الثاني بإصدار فواتير لتحصيل رسوم المسافر منها.

Implementation Plan means the plan for the implementation and delivery of the Border Services, which is attached at Exhibit 2 Schedule 3 – Implementation Plan.

خطة التنفيذ تعني خطة تنفيذ وتسليم خدمات الحدود، وقد أُرفِقت في المعرض 2 في الجدول 3 - خطة التنفيذ.

Long Stop Date means 3 months after the date of the signature of the Agreement or such later date as Second Party may notify in writing.

تاريخ التوقف الطويل يعني بعد 3 أشهر من تاريخ توقيع هذه الاتفاقية أو أي تاريخ لاحق قد يُرسل الطرف الثاني إخطاراً خطيًا به.

Payment Undertaking means a payment undertaking form validly executed and returned by a Carrier to Second Party in the form attached to Exhibit 2 Schedule 7 – Carrier Notification.

التعهد بالدفع يعني نموذج التعهد بالدفع الذي يتم توقيعه بشكل أصولي من قبل شركة النقل وإعادته إلى الطرف الثاني وفقاً للنموذج المرفق بالمعرض 2 الجدول 7 - إخطار شركة النقل.

Phase 0 and **Phase 0 Go-Live** have the meaning set out in the Implementation Plan.

المرحلة صفر وإطلاق المرحلة صفر لهما المعنى المحدد في خطة التنفيذ

Phase 1 and **Phase 1 Go-Live** have the meaning set out in the Implementation Plan.

المرحلة الأولى وإطلاق المرحلة الأولى لهما المعنى المحدد في خطة التنفيذ.

Phase 2 and **Phase 2 Go-Live** have the meaning set out in the Implementation Plan.

المرحلة الثانية وإطلاق المرحلة الثانية لهما المعنى المحدد في خطة التنفيذ.

Phase 3 and **Phase 3 Go-Live** have the meaning set out in the Implementation Plan.

المرحلة الثالثة وإطلاق المرحلة الثالثة لهما المعنى المحدد في خطة التنفيذ.

Project Regulation means laws directives, or notifications issued by First Party which require Carriers to:

- provide Carrier Data to First Party in a manner which enables Second Party to provide the Border Services in accordance with the terms of Exhibit 2 Schedule 7 – Carrier Notification;
- deliver to First Party a Service Indication Form;
- be subject to the Traveler Charges; and
- Deliver to Second Party Payment Undertaking signed by Carriers.

نظام المشروع يعني القوانين، التوجيهات أو التعاميم التي يصدرها الطرف الاول التي تتطلب من شركات النقل:

- تقديم بيانات شركة النقل للطرف الاول بطريقة تمكّن الطرف الثاني من توفير خدمات الحدود وفقًا لشروط المعرض 2 الجدول 7- إخطار شركة النقل؛
- تسليم الطرف الاول نموذج مؤشر الخدمة؛ و
- الخضوع لرسوم المسافر.
- تسليم الطرف الثاني التعهد بالدفع موقعاً من الشركات الناقلة.

Service Failure means a failure by Second Party to deliver any part of the Services in accordance with the Service Levels.

فشل الخدمة يعني فشل الطرف الثاني في تقديم أي جزء من الخدمات وفقًا لمستويات الخدمة.

Service Indication Form or **SIF** means a service indication form validly executed and returned by a Carrier to First Party in the form attached to Exhibit 2 Schedule 7 – Carrier Notification.

نموذج مؤشر الخدمة يعني نموذج مؤشر الخدمة الذي تم توقيعه بشكل اصولي وإعادته من قبل شركة النقل إلى الطرف الاول وفقاً للنموذج المرفق بالمعرض 2 الجدول 7 - إخطار شركة النقل.

Service Levels has the meaning as set out in Exhibit 2 Schedule 4.

مستويات الخدمة لها المعنى الموضح في المعرض 2 الجدول 4.

Services Commencement Date means the day of Phase 0 Go -Live.

تاريخ بدء الخدمات يعني يوم إطلاق المرحلة صفر.

Second Party Charges means the charges (and Taxes thereon) for the Border Services to be collected by Second Party as set out in Exhibit 2 Schedule 6 – Pricing Schedule for Border Services.

أتعاب الطرف الثاني تعني الاتعاب (والضرائب عليها) الواجب تحصيلها من قبل الطرف الثاني مقابل تقديم خدمات الحدود كما هو موضح في المعرض 2 الجدول 6 - جدول تحديد أسعار خدمات الحدود.

Traveler means a passenger or crewmember of a Carrier entering or leaving Kuwait including those in transit.

المسافر يعني الراكب أو أحد أفراد طاقم شركة النقل الذي يدخل الكويت أو يغادرها، بما في ذلك أولئك الذين هم في الترانزيت.

Traveler Charges means the per Traveler charges to be paid by Carriers to Second Party as set out in Exhibit 2 Schedule 6 – Pricing Schedule for Border Services.

رسوم المسافر تعني رسوم كل مسافر التي يتعين على شركات النقل دفعها إلى الطرف الثاني كما هو موضح في المعرض 2 الجدول 6 - جدول تحديد أسعار خدمات الحدود.

USD means the currency of the United States of America.

الدولار الأميركي يعني عملة الولايات المتحدة الأميركية.

KWD means the currency of the State of Kuwait

الدينار الكويتي يعني عملة دولة الكويت.

2 Conditions Precedent

2.1 Performance by Second Party under this Exhibit **2** is otherwise subject to the fulfilment or waiver, as the case may be, of the Conditions Precedent on or before the Long Stop Date.

2.2 Before the Long Stop Date:

2.2.1 Upon signature of this Agreement, First Party shall issue the Carriers Mandate to Carriers operating at Kuwait International Airport as described in Schedule 6 and its attachments (attachments of the schedule) of this Exhibit **2**- iBorder Services for the Project Regulation to be in full force in the State of Kuwait.,

2.2.2 Pursuant to Carriers Mandate, First Party shall compel the Carriers to abide by its provisions and the attachments annexed thereto as described in section 2.2.1 mentioned-above.

2.2.3 Carriers should have fully abided by Project Regulation (Carriers should have signed and returned to Second Party the Payment Undertakings and the Service Indication Forms).

2.3 Second Party may waive the Conditions Precedent and commence delivery of the Service at any time prior to the Long Stop Date (after 3 months of the date of the signature of the Agreement or any or such later date as Second Party may notify in writing.

3 Second Party's Obligations and First Party's Acknowledgement

3.1 Second Party shall provide to First Party the Border Services in accordance with the provisions of this Exhibit **2**.

3.2 Second Party shall be the exclusive provider to First Party of services which are the same as or substantially similar to the Border Services to the benefit of the Kuwaiti Ministry of Interior. The Border Services include, but not limited to, the Services listed in Schedule 2 of Exhibit **2**, comprising packs of iBorders Information, iBorders Intelligence, iBorders Insights as described hereunder. Schedule 2 provides a full description thereof.

3.2.1 iBorders information

2 الشروط المسبقة

يخضع تنفيذ الطرف الثاني للموجبات المنصوص عنها بموجب هذا المعرض رقم 2 إلى تحقق الشروط المسبقة أو التنازل عنها، حسب مقتضى الحال، بتاريخ التوقف الطويل أو قبله.

2.2 قبل تاريخ التوقف الطويل:

2.2.1 فور التوقيع على هذه الاتفاقية، يجب أن يقوم الطرف الاول بالتعميم الى الشركات الناقلة العاملة في مطار الكويت الدولي وفقاً لما هو مبين في الجدول رقم 6 وملحقاته (ملحقات الجدول) من هذا المعرض رقم 2- خدمات الحدود ليكون نظام المشروع ساري المفعول بشكل كامل في دولة الكويت.

2.2.2 عملاً بالتعميم المذكور، سيقوم الطرف الاول بإلزام الشركات الناقلة بالتقيد بالأحكام الواردة فيه وبالمرفقات العائدة له كما هي محددة في البند 2.2.1 أعلاه.

2.2.3 يجب على الشركات الناقلة ان تلتزم بشكل كامل بنظام المشروع (يجب على الشركات الناقلة ان تكون قد وقّعت وأعادت الى الطرف الثاني التعهدات بالدفع ونماذج إثبات الخدمة).

2.3 يجوز للطرف الثاني التنازل عن الشروط المسبقة وبدء تقديم الخدمة في أي وقت قبل تاريخ التوقف الطويل (بعد 3 أشهر من تاريخ توقيع الاتفاقية أو أي تاريخ لاحق قد يُرسل الطرف الثاني إخطاراً خطيًا به).

3. التزامات الطرف الثاني وإقرارات الطرف الاول

3.1 يقدم الطرف الثاني للطرف الاول خدمات الحدود وفقًا لأحكام هذا المعرض رقم 2.

3.2 يُزوّد الطرف الثاني الطرف الأول لصالح وزارة الداخلية بشكل حصري بخدمات الحدود أو بالخدمات التي تماثلها من الناحية الجوهرية. تتضمن خدمات الحدود على سبيل المثال لا الحصر الخدمات المنصوص عنها في الجدول رقم 2 من المعرض رقم 2 بما في ذلك باقة الحلول التحليلية لنظام خدمات الحدود وباقة الحلول الاستخباراتية لنظام خدمات الحدود وباقة الحلول المعلوماتية لنظام خدمات الحدود وفقاً لما هو مبيّن أدناه. يُبين الجدول رقم 2 تفصيل هذه الخدمات وفقاً للاتي:

3.2.1 باقة الحلول المعلوماتية:

It is a pack of iBorders services that aims to enable government agencies always have accurate Traveler information in advance **(**Advanced Passenger Information Data-API, Advanced Passenger Processing Data-APP, Passenger Name Record Data-PNR, Departure Control System Data- DCS) to secure the borders and facilitate and service travel for all travelers in Kuwait International Airport, rapidly and securely delivering high quality Traveler data for a modern, effective borders' management. It increases the value of government systems with real-time integration and matching of sensitive data for risk-based border security.

هي باقة من الخدمات في نظام خدمات الحدود تمكّن الأجهزة الحكومية من الحصول على معلومات المسافرين بدقة (Advanced Passenger Information Data-API, Advanced Passenger Processing Data-APP, Passenger Name Record Data-PNR, Departure Control System Data- DCS**)** وبشكل مسبق كإجراء أولي لضمان أمن المنافذ وتسهيل وخدمة إجراءات سفر جميع المسافرين في مطار الكويت الدولي، حيث توفر بسرعة وبشكل آمن بيانات الركاب بجودة عالية، لتمكين إدارة الحدود بطريقة عصرية وبشكل فعال. كما تزيد من قيمة المعلومات لدى الجهات الحكومية المختصة من خلال التكامل والدمج والبحث عن المعلومات في الوقت الحقيقي والتفاعل مع قواعد البيانات في الانظمة الحكومية.

3.2.2 iBorders Intelligence

It is a pack of iBorders services that transforms data into actionable intelligence; powering risk assessment, targeting and identity assurance for fast, accurate decisions to secure the borders and enable to manage risks related thereto (Risk Management). It aims to deliver certainty that travel documents correspond to their actual holders and identifies non authentic ones.

3.2.2 باقة الحلول الاستخباراتية:

هي باقة من الخدمات في نظام خدمات الحدود تقوم بتحويل البيانات إلى معلومات مفيدة؛ تسمح بتقييم المخاطر لتمكين عملية صنع القرار السريع والمبرر لتعزيز أمن الحدود والتمكن من إدارة المخاطر عليها **(** Risk Management**).** كما تؤمن في توفير اليقين أن المسافرين هم من يدعون في وثائق السفر- وتحدد أولئك الذين ليسوا كذلك.

3.2.3 iBorders Insight

It is a pack of iBorders services that aims to ensure governments have a comprehensive view of border operations (Operational Reporting, Performance Dashboard, Risk Tracker); powering collaborative decision-making and risk-based targeting of resources to keep the borders secure and the country open for business as well as providing reports for efficient managements of borders.

3.2.3 باقة الحلول التحليلية:

هي باقة من الخدمات في نظام خدمات الحدود تهدف الى منح الحكومات نظرة شاملة لعمليات العبور على المنافذ الحدودية (Operational Reporting, Performance Dashboard, Risk Tracker) لتمكين عملية صنع القرار التعاوني المشترك وتوزيع الموارد على أساس تقييم المخاطر لتأمين المنافذ الحدودية مع إبقاء البلاد مفتوحة للسياحة والأعمال، حيث يقدم رؤية كاملة في الوقت الحقيقي لعمليات الحدود في جميع أنحاء البلاد، كما يقدم تقارير الأداء الأمثل للإدارة الفعالة للمنافذ الحدودية.

3.3 First Party acknowledges that the Border Services provided by Second Party. Accordingly, the System and all individual components of the System belong to Second Party or its partners and licensors and First Party shall make no claim of any type at any time alleging that title to the System or any part of the System belongs or ought to belong to First Party excluding the infrastructure of the System (servers, switches, security devices, fiber cabling, other equipment relating to the infrastructure of the System) which is owned by the First Party (Ministry of Interior) as stated is section 12.2.2 of this Exhibit **2**.

3.3 يقر الطرف الأول بأن الطرف الثاني يدير الخدمات المقدمة منه في النظام. . وعلى هذا الاساس، فإن النظام وجميع المكونات الفردية للنظام مملوك من الطرف الثاني او شركائه، ولا يحق لأي من المرخصين و/أو الطرف الاول، أن يزعموا بأي شكل من الأشكال أن ملكية النظام أو أي جزء منه تعود إلى الطرف الاول ما عدا البنية التحتية للنظام (الخوادم – السويتشات – الراوترات- أجهزة الحماية – خطوط الفايبر – واي أجهزة أخرى تخص البنية التحتية للنظام) والتي تعود ملكيتها الى الطرف الأول (وزارة الداخلية) وفقاً لما ورد في الفقرة 12.2.2 من هذا المعرض رقم 2.

3.4 First Party acknowledges that Second Party derives payment for the Border Services from the Traveler Charges as described in Pricing Schedule number 6 in this Exhibit **2**.

3.4 يقر الطرف الاول بأن الطرف الثاني يقوم بتحصيل أتعابه مقابل تقديم خدمات الحدود من رسوم المسافر وفقاً لما هو محدد في جدول الأسعار لخدمات الحدود المرفق بهذا المعرض رقم 2 كجدول رقم 6.

3.5 Second Party shall fully equip either four operation rooms or central command center for the iBorders Services provided to First Party, as agreed between the Parties, in accordance with international standards relating to design, execution and quality of furniture, to be fully equipped and operational for the iBorders Services provided by Second Party, located inside Kuwait International Airport or any other location outside the Airport as chosen by First Party or the Kuwaiti Ministry of Interior. The Second Party shall procure the main and backup servers and integrate the iBorders System with the systems of the Kuwaiti Ministry of Kuwait provided by Second Party, as described in Schedule 2 of Exhibit **2**, inside the main location and the backup location. Both Parties may agree to combine between the four operation rooms and central command center provided that such combination does not exceed the specifications described in Schedule 2 of Exhibit **2** for either of them.

3.5 يلتزم الطرف الثاني بتجهيز وتأثيث إما أربعة غرف عمليات فرعية أو مركز عمليات رئيسي يختص بنظام**iBorders** ، بحسب الاتفاق بين الطرفين، وحسب الأسس والمعايير العالمية من ناحية التصميم والتنفيذ وجودة مواد التأثيث ويجب اثبات ذلك، يكون متكامل ومخصص ومجهز لعمل أنظمة خدمات الحدود التي يقدّمها الطرف الثاني، يكون داخل مطار الكويت الدولي او في موقع خارج المطار يختاره الطرف الأول او وزارة الداخلية الكويتية. كما يلتزم الطرف الثاني بتوفير الخوادم الرئيسية والاحتياطية وتأمين تكامل نظام خدمات الحدود المقدّم من الطرف الثاني مع أنظمة وزارة الداخلية الكويتية وذلك كما هي مبيّنة في جدول توصيف الخدمات المنصوص عنه في الجدول رقم 2 من المعرض رقم 2 وذلك في الموقع الرئيسي والاحتياطي. يمكن للطرفين الاتفاق على الدمج بين غرفة العمليات الرئيسية وتلك الفرعية على ان لا يتجاوز مجموع هذا الدمج المواصفات المنصوص عنها في الجدول رقم 2 من المعرض رقم 2 لأي منهما.

The Second Party undertakes to further provide the wiring, within the same building or nearby where the fiber connections provided by the First Party ends, for the purpose of interlinking the said operation rooms or the central command center with the two data centers (Data Center and Data Recovery Center); such wiring shall not exceed a maximum distance of 10 KM. Such in-house wiring is subject to a site survey and First Party will facilitate such implementation through the certified cabling and wiring contractor after the approval of the relevant authorities; such approvals to be procured by the First Party.

يقوم الطرف الثاني بتزويد التوصيلات الى المبنى، من توصيلات الفايبر المؤمنة من قبل الطرف الأول والموجودة فيه أو قربه، بهدف ربط غرف العمليات او مركز العمليات الرئيسي مع مركزي البيانات (مركز البيانات ومركز تعافي الكوارث)؛ على ألا تتعدى المسافة بين الموقعين 10 كم تتم هذه التوصيلات بعد إجراء مسح للموقع وسيقوم الطرف الأول بتسهيل تنفيذ هذه التوصيلات من خلال مقاول التوصيلات والتمديدات المعتمد، وذلك بعد الحصول على الموافقات اللازمة من السلطات المختصة؛ هذه الموافقات تقع تحت مسؤولية الطرف الأول.

3.6 Second Party shall connect its system prescribed in this Agreement with the systems of the Kuwaiti Ministry of Interior keeping them (Second Party's Systems) updated as described in Section 2.4 of Schedule 2 of Exhibit **2** and shall provide full technical support through specialists available twenty-four seven around the week including holidays and public holidays and avail the contact numbers for immediate service.

3.6 يلتزم الطرف الثاني بربط الأنظمة المشار اليها في هذه الاتفاقية (أنظمة الطرف الثاني) بأنظمة وزارة الداخلية الكويتية وفقاً لما هو منصوص عنه في القسم رقم 2.4 من الجدول رقم 2 من المعرض رقم 2، والعمل على بقائها (أنظمة الطرف الثاني) محدّثة ومطوّرة، وتوري الكامل من خلال المختصين على مدار الساعة طيلة أيام الأسبوع بما فيها العطل والاجازات الرسمية مع ضرورة اعتماد أرقام هواتف الخدمة الفورية.

3.7 Second Party undertakes to add new packs to iBorders System at the readiness of the Kuwaiti Ministry of Interior, provided that such requests are to be treated as new requests, technically and , commercially hat are not included in the scope of this Agreement and shall be then agreed upon between the Parties.

3.7 يلتزم الطرف الثاني بإضافة الباقات الجديدة الى نظام خدمات الحدود، عند جاهزية أنظمة وزارة الداخلية الكويتية لذلك، على ان يتم التعامل مع هذه الباقات الجديدة على أنها طلبات إضافية/جديدة خارجة عن نطاق هذه الاتفاقية من الناحية الفنية والمالية، يتم التعامل معها في حينه وفقاً لاتفاق الطرفين.

3.8 First Party shall take all such actions as is necessary to ensure compliance by each of the Carriers with the obligations to pay the Traveller Charges as set out in clause 4 below.

3.8 يجب على الطرف الاول اتخاذ جميع الإجراءات اللازمة لضمان امتثال كل شركة من الشركات الناقلة لالتزاماتها بدفع رسوم المسافر على النحو المنصوص عليه في الفقرة 4 أدناه.

3.9 First Party acknowledges that as at the Services Commencement Date the Services shall only have commenced to be delivered in accordance with the provisions of the Implementation Plan.

3.9 يقر الطرف الاول بأنه اعتبارًا من تاريخ بدء الخدمات، تُقدّم الخدمات وفقًا لأحكام خطة التنفيذ.

3.10

3.10 Second Party acknowledges and First Party agrees that the System can handle up to a maximum of (100) hundred different users at the same time.

3.11 يقر الطرف الثاني ويوافق الطرف الأول، بان النظام يستطيع استيعاب مئة (100) مستخدم مختلف في آن واحد.

3.11 First Party agrees and acknowledges that Second Party's ability to provide the Borders Service is dependent on the receipt by Second Party of Carrier Data from Carriers and the Border Services do not include any quality assurance of Carrier Data supplied to Second Party.

3.12 يوافق الطرف الاول ويقر بأن قدرة الطرف الثاني على توفير خدمات الحدود تعتمد على استلام الاخير لبيانات الشركات الناقلة منها ولا تتضمن خدمات الحدود أي ضمانة لجودة بيانات الشركة الناقلة المقدمة إلى الطرف الثاني .

3.12 Second Party shall promptly process the Data to the First Party and shall resolve any delay in processing due to a technical failure in Second Party's iBorders System in due time as necessitated to the extent that the System is running and First Party shall provide Second Party with a form to be adopted and filled by Second Party detailing the events of failure or delay, its causes, its type, its time and date, and the way it is resolved.

3.13 يلتزم الطرف الثاني بمعالجة أي حالة من حالات الخطأ في نقل البيانات والمعلومات أو التأخير فيها او الخلل التقني في نظام خدمات الحدود المقدم من الطرف الثاني بشكل فوري ومعالجتها والعمل على حلّها للمحافظة على سير الأنظمة بانتظام وبصفة مستمرة، على أن تُعدّ استمارة من قبل المختصين في وزارة الداخلية الكويتية ومعتمدة من الطرف الاول يُبيِّن فيها شرح تفصيلي لحالات الخطأ في نقل البيانات والمعلومات أو التأخير فيها وسببه ونوعه ووقت وتاريخ هذا الخلل وكيفية معالجته على ان تكون موقعة من المختصين في وزارة الداخلية.

4 Charges

4 الرسوم

4.1 Second Party shall invoice Carriers, except Embargoed Carrier(s), the Traveler Charges as set out in Exhibit **2** Schedule 6 – Pricing Schedule for Border Services.

4.1 سيقوم الطرف الثاني بإرسال فاتورة برسوم المسافر للشركات الناقلة، باستثناء الشركات الناقلة المحظورة، كما هو مبيّن في المعرض 2 الجدول 6 - جدول تحديد أسعار خدمات الحدود.

4.2 The collection of the Second Party's Charges is in consideration of the provision by Second Party of the Services to First Party.

4.2 إن تحصيل الطرف الثاني لأتعابه هو مقابل قيامه بتقديم الخدمات للطرف الاول.

5 Delivery and Training Plan

5 خطة التسليم والتدريب

5.1 Second Party shall use all reasonable endeavors to provide the Border Services in accordance with Exhibit **2** Schedule 3 - Implementation Plan.

5.1 يبذل الطرف الثاني جميع الجهود المعقولة لتوفير خدمات الحدود وفقًا للمعرض 2 الجدول 3 - خطة التنفيذ.

5.2 Second Party shall provide periodic training, through the Term, to specialized personnel of Kuwaiti Ministry of Interior on the Systems prescribed by this Agreement, to maintain the proficiency of the works as described in Schedule 2 attached to this Exhibit.

5.2 يلتزم الطرف الثاني بتدريب العاملين المختصين لدى وزارة الداخلية الكويتية على الأنظمة محل هذه الاتفاقية بصفة دورية ومستمرة طوال فترتها حفاظاً على سير وكفاءة العمل وفقاً لما هو محدد في جدول رقم 2 المرفق بهذا المعرض.

6 Service Quality

6 جودة الخدمة

6.1 Service Levels shall apply to Border Services only from Phase 3 Go-Live.

6.1 يجب تطبيق مستويات الخدمة على خدمات الحدود اعتباراً من إطلاق المرحلة 3.

7 Responsibilities

7.1 In addition to the obligations of First Party listed in clause 6.1 of the General Terms and Conditions First Party shall do all the tasks listed in Exhibit **2** Schedule 5 – First Party Dependencies Schedule for Border Services.

7.2 First Party acknowledges that failure to comply with clause 7.1 of this Schedule may prevent Second Party from providing the Border Services and/or require additional expenditure by Second Party. First Party shall indemnify Second Party for failure to comply with clause 7.1 of this Schedule.

7 المسؤوليات

7.1 بالإضافة إلى التزامات الطرف الاول المدرجة في الفقرة 6.1 من الشروط والأحكام العامة، يجب على الطرف الاول تنفيذ جميع المسائل المدرجة في المعرض 2 الجدول 5 - جدول المتطلبات من الطرف الاول لخدمات الحدود.

7.2 يقر الطرف الاول بأن عدم الامتثال للبند 7.1 من هذا الجدول قد يمنع الطرف الثاني من توفير خدمات الحدود و/أو يتطلب نفقات إضافية منه. يجب على الطرف الاول تعويض الطرف الثاني لعدم امتثاله للفقرة 7.1 من هذا الجدول.

8 Data Protection

8.1 In this Clause, the terms "controller", "processor", "data subject", "personal data", "processing" (and "process") and "security incident" shall have the meanings given in Applicable Data Protection Law.

8.2 First Party (the controller) appoints Second Party as a processor to process the personal data described in this Exhibit (the "Data") (or as otherwise agreed in writing by the parties). Each party shall comply with the obligations that apply to it under Applicable Data Protection Law.

8.3 First Party warrants that any international data transfers of Carrier Data by Second Party to First Party as contemplated under this Exhibit shall occur in compliance with Applicable Data Protection Law. First Party confirms that Second Party shall not be responsible for ensuring that appropriate safeguards are in place to enable such international transfers of Carrier Data to Kuwait;

8.4 Second Party shall provide timely assistance to First Party (at First Party's reasonable expense) to enable First Party to respond to: (i) any request from a data subject to exercise any of its rights under Applicable Data Protection Law (including its rights of access, correction, objection, erasure and data portability, as applicable); and (ii) any other correspondence, enquiry or complaint received from a data subject, regulator or other third party in connection with the processing of the Data. In the event that any such request, correspondence, enquiry or complaint is made directly to Second Party, Second Party shall promptly inform First Party providing full details of the same.

8.5 Second Party shall provide First Party with assistance in connection with any Data Protection Impact Assessment that the First Party may be required to provide under Applicable Data Protection Law equivalent to twenty man-days. In the event the First Party does not use the said 20 days, First Party shall have the right to use the remaining man days for related assistance to iBorders System.

8 حماية البيانات

8.1 في هذا البند، يكون لمصطلحات "المراقب"، "المعالج"، "الشخص موضوع البيانات"، "البيانات الشخصية"، "المعالجة" (و "العملية") و"الحادثة الأمنية" المعاني الموضحة في قانون حماية البيانات المعمول به.

8.2 يعيّن الطرف الاول (المراقب) الطرف الثاني كمعالج للبيانات الشخصية المبيّنة في هذا الملحق ("البيانات") للأغراض المبيّنة في هذا المعرض (أو كما هو متفق عليه خطياً من قبل الأطراف). يفي كل طرف بالالتزامات التي تنطبق عليه بموجب قانون حماية البيانات المعمول به.

8.3 يضمن الطرف الاول بأن أي عمليات نقل دولية لبيانات الشركة الناقلة بواسطة الطرف الثاني إلى الطرف الاول على النحو المنصوص عنه في هذا المعرض ستتم وفقًا لقانون حماية البيانات المعمول به. يؤكد الطرف الاول أن الطرف الثاني ليس مسؤولاً عن ضمان وجود إجراءات وقائية مناسبة لتمكين عمليات النقل الدولية لبيانات الشركة الناقلة إلى الكويت؛

8.4 على الطرف الثاني تقديم المساعدة بوقت مناسب للطرف الاول (على نفقته المعقولة) لتمكينه من الاستجابة إلى: (1) أي طلب للبيانات من شخص موضوع بيانات لممارسة أي من حقوقه بموجب قانون حماية البيانات المطبق (بما في ذلك حق الوصول، والتصحيح والاعتراض والإلغاء ونقل البيانات، حسب الاقتضاء)؛ و(2) أي مراسلات أخرى أو استفسار أو شكوى وردت من الشخص موضوع البيانات أو جهة تنظيمية أو شخص ثالث بما يتعلق بمعالجة البيانات. في حال تقديم أي من الطلبات أو المراسلات أو الاستفسارات أو الشكاوى المذكورة مباشرة إلى الطرف الثاني يجب على الطرف الثاني إبلاغ الطرف الاول فورًا وإعطائه التفاصيل الكاملة عن ذلك.

8.5 سوف يقدّم الطرف الثاني للطرف الاول المساعدة في ما يتعلق بأي تقييم لأثر حماية البيانات قد يتعين على الطرف الاول القيام به بموجب قانون حماية البيانات المعمول به بما يعادل عشرين يوم عمل. وفي حالة عدم استخدام أيام العمل المتاحة خلال السنة يحق للطرف المستفيد (وزارة الداخلية) استخدام أيام العمل المتبقية لاي مساعدة أخرى تخص نظام خدمات الحدود.

8.6 All the records of the Data processed by Second Party to Ministry of Interior of Kuwait shall be in the property of the latter and Second Party may not retrieve or share with any third party. The Ministry of Interior shall have the right to use the Data in the manner it deems appropriate and in accordance with Applicable Data Protection Law, and the Second Party shall send the Data to any entity identified by the said Ministry provided that the said entity is technically able to receive the Data.

8.6 تُعتبر جميع سجلات البيانات والمعلومات المرسلة من الطرف الثاني لصالح وزارة الداخلية ملكاً لوزارة الداخلية الكويتية ولا يكون للطرف الثاني حق استرجاعها أو التصرف فيها أو مشاركتها مع طرف آخر. ويحق لوزارة الداخلية استخدام هذه البيانات بأي طريقة تشاء وبما يتوافق مع قانون حماية البيانات المعمول به، كذلك يوجب على الطرف الثاني إرسال البيانات الى أي جهة تحددها وزارة الداخلية على ان تكون هذه الجهة مجهزة فنياً لاستقبال البيانات.

8.7 If it becomes aware of a confirmed security incident to the Data, Second Party shall inform First Party promptly without undue delay and shall provide reasonable information and cooperation to First Party so that First Party can fulfil any data breach reporting obligations it may have under (and in accordance with the timescales required by) Applicable Data Protection Law. Second Party shall further take any reasonably necessary measures and actions to remedy or mitigate the effects of the security incident and shall keep First Party of all material developments in connection with the security incident.

8.7 في حال علمه بحدوث حادثة أمنية مؤكدة في البيانات، يجب على الطرف الثاني إبلاغ الطرف الاول بشكل فوري دون تأخير وتقديم المعلومات والتعاون المعقولين إليه حتى يتمكن من الوفاء بأي التزامات للإبلاغ عن إخلال البيانات قد يكون منصوص عليها (ووفقًا للجداول الزمنية المطلوبة) في قانون حماية البيانات المعمول به. يجب على الطرف الثاني اتخاذ أي إجراءات ضرورية بشكل معقول لعلاج أو تخفيف آثار الحادثة الأمنية، ويجب أن يبقي الطرف الاول على اطلاع على جميع التطورات المادية المتعلقة بالحادثة الامنية.

9 Warranties and Indemnity

9.1 First Party agrees, represents and warrants that its procedures and the decision to appoint Second Party as the supplier of Border Services and the collector of the Traveller Charges comply with all relevant laws, regulations and any applicable Kuwait government guidelines and that such appointment has been carried after First Party's procurement of all the relevant authorizations from its respective observatory authorities.

9 الضمانات والتعويضات

9.1 يوافق الطرف الاول، ويتعهّد ويضمن أن إجراءاته وقرار تعيين الطرف الثاني لتقديم خدمات الحدود ولاستيفائه لرسوم المسافر تتوافق مع جميع القوانين والأنظمة ذات الصلة وأي إرشادات لحكومة دولة الكويت المعمول بها بما في ذلك على وجه الخصوص جميع الأنظمة والقوانين المرعية الاجراء وان هذا التعيين قد أتى بعد استحصال الطرف الأول على كافة الموافقات من الجهات الرقابية المختصة التابع لها.

10 Liability

10.1 Subject to clause 16 General Terms and Conditions, Second Party shall not be liable to First Party for:

10.1.1 any Data errors, or

10.1.2 anything which is a First Party responsibility

10.2 Second Party shall under no circumstances be liable to First Party for damages caused as a consequence of terrorist attacks or other criminal acts committed by third parties.

10.3 The parties expressly agree that if any limitation or provision contained or expressly referred to in this clause 10 is held to be invalid under any applicable law, it shall, to that extent, be deemed omitted.

10 المسؤولية

10.1 ومع مراعاة البند 16 من الشروط والأحكام العامة، لن يكون الطرف الثاني مسؤولاً تجاه الطرف الاول عن:

10.1.1 أي أخطاء في البيانات، أو

10.1.2 أي شيء يكون الطرف الاول مسؤولاً عنه،

10.2 لا يتحمل الطرف الثاني تحت أي ظرف من الظروف أي مسؤولية تجاه الطرف الاول عن الأضرار الناجمة عن الهجمات الإرهابية أو غيرها من الأعمال الإجرامية التي ترتكبها أطراف ثالثة.

10.3 يتفق الأطراف صراحةً على أنه في حال اعتبار أي قيد أو شرط وارد أو مشار إليه صراحة في هذا البند 10 غير صالح بموجب أي قانون معمول به، فسيتم حذفه.

10.4 Nothing in this Agreement shall be taken as in any way reducing or affecting a general duty to mitigate loss suffered by a party.

10.4 لا يتم تفسير أي شيء وارد في هذه الاتفاقية على أنه يقلل أو يؤثر بأي شكل من الأشكال على الواجب العام لتخفيف الخسارة التي يتكبدها أي طرف.

11 Carriers Breach

11.1 if there is a material breach by a Carrier of its obligation to pay the Second Party Charges, Second Party shall inform First Party on the same for the latter to take the necessary actions it deems fit, and if the Carries continues not to pay the outstanding Charges as of thirty days of their due date, First Party agrees that Second Party may suspend the receipt of Data from the said breaching Carrier.

11 إخلال الشركات الناقلة

11.1 في حال وجود إخلال جوهري من قبل الشركة الناقلة لالتزامها بدفع أتعاب الطرف الثاني يقوم الطرف الثاني بتوجيه إخطار كتابي الى الطرف الأول يعلمه بذلك لاتخاذ ما يراه مناسباً من إجراءات بحق الشركة الناقلة وإذا استمرت الشركة الناقلة بعدم الدفع لمدة تزيد عن ثلاثين يوماً من تاريخ الاستحقاق يوافق الطرف الأول انه يكون للطرف الثاني الحق في تعليق تلّقي البيانات من للشركة الناقلة المتخلفة.

12 Title in the System, Services and Software

12.1 Ownership of and title in the System and all elements of the Border Services shall remain with Second Party during the term of this Exhibit and this Exhibit does not convey to First Party any right, title or interest in or to the System and/or the Border Services.

12.2 Subject to the subclauses hereunder, title to and ownership of any hardware and the licenses to operating system software and off-the-shelf application software used by Second Party in the delivery of the Border Services which are physically located in Kuwait and which are owned by Second Party shall remain with Second Party.

12.2.1 In the event of expiry of the Agreement the titleship of the Equipment and movables of the iBorder System (without licenses) located in Kuwait will be transferred to the First Party.

12.2.2 In the event of the termination of the Agreement before the delivery of the Project (as stated in the Implementation Plan- Schedule Number 3), the titleship of the Equipment of the iBorder System (without licenses) located in Kuwait, if First Party desires to have the titleship, will be transferred to the First Party provided that the First Party pays the price of such Equipment at the market price taking into account its depreciation.

12.2.3 In the event of the termination of this Agreement by the Second Party, First Party shall not incur any charges and the titleship of the Equipment of the iBorder System (without licenses) located in Kuwait will be transferred to the First Party.

12 ملكية النظام والخدمات والبرمجيات

12.1 تظل ملكية النظام وجميع عناصر خدمات الحدود للطرف الثاني خلال مدة هذا المعرض، ولا ينقل هذا المعرض إلى الطرف الاول أي حق أو ملكية أو مصلحة في النظام و/أو خدمات الحدود.

12.2 مع مراعاة البنود أدناه، تظل ملكية أي أجهزة وتراخيص لتشغيل برمجيات النظام وبرمجيات التطبيقات الجاهزة التي يستخدمها الطرف الثاني في تقديم خدمات الحدود الموجودة فعليًا في الكويت والتي يمتلكها الطرف الثاني بملكية الأخير.

12.2.1 في حال انتهاء مدة هذه الاتفاقية تؤول ملكية الأجهزة والمنقولات المختصة بنظام خدمات الحدود (دون التراخيص) الموجودة في الكويت الى الطرف الأول.

12.2.2 في حال فسخ هذه الاتفاقية قبل انتهاء مدة تسليم المشروع (كما هي محددة في خطة التنفيذ – جدول رقم 3) تؤول ملكية الأجهزة المختصة بنظام خدمات الحدود (دون التراخيص) الموجودة في الكويت الى الطرف الأول في حال رغبته بها بشرط ان يدفع الطرف الأول قيمة هذه المعدات وفقاً لسعر السوق المتوفر بتاريخ الفسخ مع مراعاة حالة الاستهلاك العادي.

12.2.3 في حال قيام الطرف الثاني بفسخ هذه الاتفاقية لا يتحمل الطرف الاول اي رسوم وتؤول ملكية الأجهزة المختصة بنظام خدمات الحدود (دون التراخيص) الموجودة في الكويت الى الطرف الأول.

13 Project Governance

13 إدارة المشروع

13.1 Both Parties shall at all times have appointed one or two representatives (Project Manager) who shall have overall responsibility for receiving the Services and who shall act as a single point of contact for both Parties respectively in relation to all matters arising from or in relation to the Border Services. The Project Manager shall have the authority to act on behalf of the Party representing on all such operational matters.

13.1 يلتزم الطرفان في جميع الأوقات بتعيين ممثل واحد أو ممثلين (مدير مشروع) يكون/يكونان مسؤولاً بشكل عام عن الخدمات نيابة عنه ويكون بمثابة ضابط اتصال مع الطرف الآخر في ما يتعلق بجميع المسائل الناشئة عن أو المرتبطة بخدمات الحدود. يتمتع مدير مشروع بسلطة التصرف نيابة عن الطرف الذي يمثله في جميع هذه الأمور التشغيلية.

13.2 Both Parties shall notify the other Party in writing of the identity of the First Party Project Manager and any change thereto from time to time.

13.2 يجب على كلا الطرفين إخطار الطرف الآخر خطياً بهوية مدير مشروع وأي تغيير يحدث بذلك من وقت لآخر.

Schedule 2 ─ Service Description Schedule for Border Services

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Appendix 1 – APP Processes

Appendix 2 – Data Acquisition Processes

Appendix 3 - Risk Management Processes

1. Definitions and Descriptions

Defined terms in this Schedule shall have the meanings given in the General Terms and Conditions and Exhibit 2 Schedule 1 of this Agreement as supplemented by the following meanings:

Alert means an alerted Referral. An Alert typically results in interception of a passenger by the Intervention Team because one or more Hits have been ruled against that passenger in the System.

API means advance passenger information, a standard for flight and document data developed by the World Customs Organization. This is a generic name for passenger identity/flight data and includes APP data.

APIS means advance passenger information system, a standard for flight and document data developed by the World Customs Organization.

APP means advance passenger processing, a standard for flight and document data declaration in real-time, developed by Second Party and partners in the air travel industry.

ARS means airline reservation system, the inventory system used by a carrier to record passenger reservations (also known as CRS or Res).

Booking means a booking for air travel (and possibly other services) on an ARS or GDS.

Carrier Portal means a web portal provided by Second Party as part of the Second Party Government Gateway service to allow Carriers to manually submit APP and APIS data to the System over the Internet.

Check-in means the event of assigning a physical seat on a flight to a passenger. This event usually occurs close to the actual take-off of the flight and also involves the passenger handing over his luggage to the carrier for transport to his destination.

Cleared Document List means a list with details of people who were falsely matched as suspects on the Watch List Target (also known as a target's 'white list'). The list ensures that the document bearer is automatically cleared in future checks.

Code Share means an agreement between carriers to sell space on each other's flights. The flights will have both the operating carrier's flight number and the code sharing flight number. The operating carrier or carrier uses the aircraft and the code sharing carrier sells space on the aircraft.

DCS means departure control system, the system used by carriers and ground handling agents to check in and board passengers on to flights. In some cases, the DCS and ARS are the same system. More often, they are distinct systems (the ARS hands data over to DCS; after flight closure the DCS hands data back to the ARS).

Disaster Recovery Environment means a functional copy of the Production Environment that can take over the Services in the event of failure of the Production Environment.

Escalation means an automatic forwarding of an Alert by the System to the next level of command (if any), if the original set of recipients of the Alert have not viewed it within a pre-determined period of time.

GDS means global distribution system (such as Amadeus, Apollo, Galileo, Sabre and Worldspan). GDSs are the predominant method of distribution for scheduled air flights. They are also a major distribution channel for car and hotel bookings, especially for business travelers.

Hit means an evaluation by the System that a given passenger flying a particular journey exceeds configured risk thresholds on the System).

IATA means International Air Transport Association, a trade association serving carriers, passengers, shippers, travel agents, and governments. The association promotes safety, standardization in forms (baggage checks, tickets, weigh bills), and aids in establishing international airfares.

ICAO means The International Civil Aviation Organization, an agency of the United Nations, codifying the principles and techniques of international air navigation and fostering the planning and development of international air transport to ensure safe and orderly growth.

Intervention Team is a First Party (or Approved Service User's) team responsible for intercepting any Travelers at the airport that require further investigation. The Intervention Team would normally consist of border control officers and border control managers.

IP means Internet Protocol.

IP VPN means Internet Protocol Virtual Private Network.

LDAP means Light-Weight Directory Access Protocol.

Match means a match of a passenger record (it is equivalent or similar) to a record on a Watch List.

Module means one of the core System processes, set out in paragraph.

Profile means a series of attributes associated with a passenger or a Booking that may identify a passenger of interest. This technique is sometimes known as profiling.

PNR means passenger name record, a Booking.

Primary Line means the First Party's immigration entry clearance management system.

PRL means passenger reconcile list, an industry message sometimes used to hand data back from the DCS to the ARS.

Production Environment has the meaning set out in paragraph 0.

Referral means a record of a passenger who has one or more active Hits (i.e. Hits that have not been qualified-out) against him or her.

SAN means a Storage Area Network.

Service Net means a Second Party service of the same name, which provides access to a range of Second Party and third parties' air transport applications (immigration control, DCS, reservations, baggage and other applications).

SSR means special service request, extra information sent to the carrier, within a PNR. SSRs are distinguished from OSIs as they need receipt of confirmation from the carrier when transmitted, whereas OSIs do not.

Traveler Database means a data repository in the System, which contains the current and past information on passengers travelling to, from or through the country or territory of the First Party (document, Booking, Check-in, when the person took off or landed, when they cleared the Primary Line).

Watch List means a list of suspects or undesirable individuals containing some or all of: name information, document information, date of birth, place of birth, reason for inclusion on the list, action to be taken.

XML means extensible mark-up language.

2. Second Party iBorders System Overview

2.1. System Overview

2.1.1. Second Party iBorders portfolio

The Second Party iBorders portfolio is composed of four (4) business layer capabilities:

1. Information
2. Intelligence
3. Interaction
4. Insight

Each business layer possesses 2 or more modules and each module has one or more functional components that are shown in the following diagram.

The modules that Second Party will implement in this Project are highlighted in yellow.

2.1.2. iBorders Traveler Data

Enables the pre-clearance of passengers and crew based on their travel document information prior to the departure of their flight. Provides and delivers booking, manifest and check-in data from carrier systems to governments in a secure, reliable fashion. This enables governments to get a reliable view of the flights and passengers arriving in/departing from their country.

Stores the data and provides tools to search and view the data. This enables governments to perform analysis on the data.

2.1.3. iBorders Government Link

Enables secure communication between iBorders systems and other government-owned databases and systems. It is the integration abstraction layer that allows iBorders to access external systems and databases and for those external systems to access data inside iBorders.

iBorders Government Link shall enable bi-lateral, secure communication between iBorders systems and other databases and systems. It is the integration abstraction layer that allows iBorders to access external systems and databases and for those external systems to access data inside iBorders.

In one direction it provides the iBorders Risk Management product with an interface to use for accessing government watch lists, passports and visa systems, Interpol, and Border Control Database / System, and any other Databases and Systems that maybe implemented) in order to provide data for its risk assessment functions.

In the other direction it provides services to external government systems to have controlled, authorized access to data held within the iBorders TravelerData database. It also enables the exchange of expected and actual movement messages between iBorders and a primary line system.

GovernmentLink shall be available with both Adaptors and Services.

Adaptors implement a standardised external facing interface to the external database/system and convert it to the internal interface used by iBorders components. The following adaptors shall be implemented:

- Visa Check
    a) Visa Check is a web service interface to the First Party's Visa service to check the validity of a visa for a traveler.
    b) The Government Visa Service shall publish a web service designed and built in accordance with Second Party's standard web service schema.
    c) iBorders shall include the "CheckVisa" request as part of the risk check for data submission from carriers, which shall call the First Party web service which will service the request and respond with one of the expected service responses published in the standard message specification.
- Travel Document Check

2.1.4. iBorders Risk Management

Enables First Party government agencies to carry out their duties at the border by enabling them to conduct a risk assessment of a wide set of travel information, other event information and operational data available, with access to watch-lists, as well as matching and risk profiling to identify persons of interest.

2.1.5. iBorders Border Operations

Allows First Party government users to monitor and extract management information from the iBorders solution.

2.1.6. iBorders Border Performance Dashboards

The system should provide a Dashboard for understanding the national border status.

The bidder is required to include in his proposal a functional diagram that illustrates the interaction among the different iBorders modules:

2.2. iBorders Traveler Data

2.2.1. Data Acquisition

The following data types will be provided:

2.2.1.1. Manifest Data (also known as API)

Provides governments with Advance Passenger Information for passengers and crew for every flight at the time of take-off.

2.2.1.2. Interactive Data (also known as APP/iAPI)

Provides governments with Advance Passenger Information for every flight at the time of check-in, enabling governments to receive a comprehensive list of passengers and travel document information.

2.2.1.3. Booking Data (also known as PNR)

Provides governments with complete traveler booking, including associated history, delivered at specified times prior to departure.

2.2.1.4. Check-in Data (also known as DCS)

Provides governments with traveler check-in data pushed by the carriers at the departure time.

2.2.2. Data Delivery Schedule

The data delivery times for getting data from Carriers needs to be specified in the government mandate to the carriers. The following times will be configured:

Data Message Type	Inbound Flights	Outbound Flights
iAPI/APP	At Check-in	At Check-in
PNR	T-72hrs, T-24hrs, T-8hrs, T-0	T-72hrs, T-24hrs, T-8hrs, T-0
DCS	T-0	T-0
API	Within 30 minutes of Flight Take-off	Within 30 minutes of Flight Take-off

Note: T represents Scheduled Time of Departure (STD)

2.2.3. Traveler Types

The Traveler Data will process data from the carriers for the following types of travelers:

2.2.3.1. Inbound.

2.2.3.2. Outbound.

2.2.3.3. Transit/Transfer.

2.2.4. Message Types Supported

The solution will accept messages from carriers in the following formats:

Message Type	Supported Formats
APP	Second Party APP format conforming to IATA Host-to-Host standard
API	WCO/IATA UN EDIFACT PAXLST, 2003 Set 02B, 2010 Set 05B, 2013 Set 12B; US EDIFACT v1.02, v1.03, v1.04, v1.05
PNR & DCS	PNRGOV EDIFACT EDI 11.1, 12.1, 13.1, 15.1, PNRGOV XML 15.1 PRL 1719b{PSCRM28}, Amadeus PNR EDIFACT EDI Push

All messages will be sent from the carriers to iBorders using a 'push' mechanism.

iBorders will not be configured to 'pull' data from carriers.

2.2.5. Carriers in Scope for Solution

The solution will provide data for the following list of carriers, subject to their compliance with the government mandate to supply data.

• Kuwait Airways • Wataniya Airways • Tunis Air • British Airways • Fly Dubai • Qatar Airways • Lufthansa • DHL • KLM • Sri Lankan Airlines • Turkish Airlines • Gulf Air	• Jazeera Airways • Iran Air • Yemenia • Egypt Air • Arinana Afghan Airlines • Emirates • Saudi Airlines • Air France • Air India • Mahan Air • Bangladesh Airlines	• Oman Air • MEA • Air Arabia • Royal Jordanian • Jet Airways • Singapore Airlines • United Airlines • Pakistan International Airlines • Ethiopian Airlines

Carriers unable to automatically supply manifest (APIS) and interactive (APP) data from their Departure Control Systems, will use the Second Party hosted Carrier Portal to supply data via completion of an online form batch file upload.

2.2.6. Functionality

2.2.6.1. The Traveler Data system will provide the following the main functions:

2.2.6.1.1. Gather traveler manifest data. Receive and process traveler manifest data (API) from carriers.

2.2.6.1.2. Gather traveler interactive information and boarding directives. Receive and process check-in requests (APP) containing biographic data on passengers and/or crew checking in for a flight and provides a board/no-board response depending on a set of business rules and additional government and internal assessment data.

2.2.6.1.3. Gathers passenger booking information. PNR data is sent to Traveler Data by the carrier. Traveler Data can provide the complete PNR data or a filtered sub-set; this is often required to comply with privacy laws and international agreements governing the transfer of passenger data. The product accommodates carriers' needs in capturing reservation data, as this is the best way of ensuring their cooperation.

2.2.6.1.4. Gathers passenger departure information. DCS information is 'pushed' by the carrier to Traveler Data. Passenger departure information typically includes additional data not included in the PNR, such as the actual seat number assigned (versus the preferred seat requested), the number of bags checked in, and their weight.

2.2.6.1.5. As part of the process, Traveler Data receives and processes original, duplicate, reissued, progressive and late arriving departure information manifest (APIS) data messages pushed by carriers.

2.2.6.1.6. Correlates API, APP, PNR and DCS data. For each passenger, Traveler Data combines all the data into a single record.

2.2.6.1.7. Normalizes passenger data. Traveler Data normalizes (or standardizes) passenger data before storage to ensure that the data is handled and processed uniformly irrespective of the carrier, host, or the format in which the data was received, so that the data provided to governments is, in turn, consistent.

2.2.6.1.8. Stores and provides a searchable view of all collected data. Traveler Data stores the collected data in a long-term data store and provides facilities for First Party

users to search for flights and travelers using various criteria, and to examine all of the available data for travelers.

2.2.6.2. Data Acquisition System

The application receives APP messages from the Carriers through the Application Processor module of the System and other passenger information (API, PNR and DCS) from the Carriers' ARS and DCS hosts. The application then normalizes the acquired data and passes it on to other System modules for storage and risk assessment.

2.2.6.3. The main processes supported by this module are as follows:

- Check messages from carriers for timeliness and correctness
- Link API, APP, PNR and DCS data by passenger flight
- Collect Travel Data – retrieves Traveler PNR and DCS information from Carriers, collates this information with APP data, and passes it onto the Risk Manager module of the System for storage and risk assessment.
- Manage Carrier Processing Rules - allows a Traveler data analyst to configure rules to control the information which is stored by the iBorders System.

2.2.6.3.1. Message Compliance and Validation

The message compliance and validation reports provide feedback on any errors found of the format or timeliness of the API, DCS or PNR messages

The following checks are performed:

- Message Validation for Timeliness - The date and time the messages are received are compared against the configured data-drop times to validate message timeliness. The validation results are recorded as an in-range message or out of range message.
- Message Validation for Correctness - The format of each message received is checked for correctness. Any errors found are recorded in the database together with the segment which contained the error.

2.2.6.4. Application Processor

2.2.6.4.1. This module is based on the Second Party iBorders APP service (APP) and operates as follows:

Carriers submit boarding requests to the Second Party iBorders APP system for Traveler on certain international flights and, in return, receive boarding directives from one or more governments involved. As part of the service, Second Party implements an iBorders application processor, which applies 'rules' to the submitted data and automatically provides boarding directives for a traveler. If a "board" directive is received, an expected movement record is constructed and then exported to a First Party system. If a "do not board" directive is received, the carrier cannot board the traveler and may have to contact the First Party requesting an override.

2.2.6.4.2. The main process supported by the Application Processor module are as follows:

- Enter APP Data - provides a manual mechanism for Carriers to send APP data to the System, where such Carriers are not able to send such data system-to-system. In such cases Carriers submit the APP data using the Second Party hosted Carrier Portal.
- Collect APP Data - gathers APP data sent directly by the Carrier's DCS or via the Enter APP data process. This data is then validated. Using the flight schedules provided by the Carrier, the process checks the full route of the flight and then forwards the APP data onto all governments in the route that use the Second Party iBorders APP service and have registered for the data.
- Process APP Data - implements First Party-specific business logic and data checks to enable pre-clearance of Traveler based on their travel document information prior to departure of their flights. This process returns a "board"/ "do not board" directive to the Collect APP data process for return to the Carrier.

- Manage APP Data - allows users to review and get reports on the APP data in the System. It also allows authorized First Party users to override the Boarding directive defined by the System.

2.2.7 Second Party Gateway Services

2.2.7.1 Data will be provided via the following services

2.2.7.2 Government Gateway API (GG API) Service

Second Party Hosted GG API (Government Gateway API) service acquires API data from airline host systems.

The GG API processes manifest data (API also known as APIS) as follows

- API data is acquired either
- from the airline host system in industry standard formats via Type-B or over MQ
- or via the Multi-Government Carrier Portal (MGCP) – a Second Party hosted web portal that is accessed via the Internet that allows airlines and other organizations to submit API manifests via a webform, or upload the data
- The acquired data is then forwarded onto the in-country iBorder system
- Each message is validated for timeliness and correctness.
- Reports are provided to the government on the results of the message compliance and validation via email.

2.2.7.3 Message Processing

Manifest Data messages are received from the airline DCS upon departure of the aircraft. The messages are parsed, validated (and optionally transformed) and then sent to the relevant configured government agencies.

2.2.7.4 Data Acquisition and Transmission

The table below shows the data acquisition methods from airlines supported by GG API

The table below shows the data distribution methods to Governments supported by the GG API

Data Type	Source	Mechanism	Acquisition Method
API	Departure Control System	Push	Type-B, MQ via Multi-Government Carrier Portal

The table below shows the data distribution methods to Governments supported by the GG API

Data Type	Mechanism	Distribution Method
API	Push	MQ via Second Party GovIDNet
API	Push	Type-B

2.2.7.5 Supported Formats

The tables below show a summary of the input formats supported by the GG API

Data Type	Standard	Version Supported
API	World Customs Organization (WCO)/ IATA UN EDIFACT PAXLST	API PAXLST Version 2003 (UN set 02B) API PAXLST Version 2010 (UN set 05B) API PAXLST Version 2013 (UN set 12B)
API	US EDIFACT	API US EDIFACT v1.02/v1.03/v1.04/v1.05

2.2.7.6 Government Gateway iAPI (GG iAPI) Service

The Government Gateway iAPI (GG iAPI) module processes Interactive data transactions for multiple governments using the Second Party defined APP standard and, in addition, through that same interface, supports the APIS Quick Query (AQQ) standard, as defined by US Customs and Border Protection (CBP).

The Government Gateway can receive data in three ways:

- **Integrated APP -** With integrated APP, the interface between the airline DCS and the Government Gateway runs over the IATA Host-to-Host protocol which provides the session handling (query-response matching, timeouts etc.).
- **Standalone APP -** While desirable in terms of automation, it is not mandatory for the airline to change its DCS. Check-in agents can use bypass entries on the airline workstations which (through a unique feature of the airline industry and the Second Party network) are sent to the Government Gateway. Check-in agents are

presented with a screen-based application and employ this to enter the APP information and receive responses (OK to Board/Do not Board) from the various governments affected by the transaction.

- **Multi-Government Carrier Portal (MGCP) –** The MGCP is a Second Party hosted web portal that is accessed via the Internet that allows airlines and other organizations to submit check-in requests data via a webform, or upload the requests via HTTPS or sFTP

2.2.7.7 Interactive Message Processing

These messages are sent directly from the airline DCS as each traveler checks-in for the flight. A real-time response is provided to the airline DCS with a directive as to whether they can permit the traveler or crew member to board or not or cancellation.

Figure 1 – Interactive Data Process Flow

In carrying out pre-clearance, the airline submits boarding requests, via the Government Gateway, to the Application Processor module for passengers on international flights, and in return they receive boarding directives from the one or more governments involved. If a positive boarding directive is received for a traveler, and then for some reason that traveler does not board the flight, the airline should cancel the transaction.

2.2.7.7.1 Data Acquisition

The table below shows data acquisition methods from airlines supported by GG Iapi

Data Type	Source	Mechanism	Acquisition Method
APP	Departure Control System	Push	Second Party-defined plain text APP format over Type-A via Second Party ISNet XML over SOAP/HTTPS via Second Party GovIDNet/ISNet XML over MQ via Second Party GovIDNet/ISNet

			Via Multi-Government Carrier Portal

2.2.7.7.2 Supported Formats

The tables below show a summary of the input formats supported by the GG iAPI

Data Type	Standard
APP	Second Party-defined fixed-length message format between airlines and the Government Gateway
APP	Second Party-defined XML message between airlines and the Government Gateway

2.2.7.7.3 Government Gateway PNR (GG PNR) Service

GG PNR Service is hosted and managed centrally in Second Party Data Centre.

The GG PNR service acquires, processes and outputs Booking data (PNR) and/or Check-in data (DCS) data from airline host systems to government agencies.

The GG PNR processes Booking (PNR) and Check-in (DCS) data as follows:

1. PNR/DCS data is acquired from the airline host systems in industry standard formats (PNRGOV,
2. The acquired data is checked, normalized, and filtered
3. Optionally, the acquired data is transformed into the format required by the Governments
4. Each message is validated for timeliness and correctness.
5. Reports are provided to the government on the results of the message compliance and validation via email

The acquired data is sent to the relevant government agencies in the message format required and at the required data drop-times as defined by the government.

2.2.7.7.4 Booking Data

Booking Data (PNRGOV) messages are received from the airline reservation systems. The messages are parsed, validated (and optionally transformed) and then forwarded onto the relevant configured government agency.

2.2.7.7.5 Check-in (DCS) Data

Check-in data (PNRGOV DCS and PRL) messages are received from the airline DCS upon departure of the aircraft. The messages are parsed, validated (and optionally transformed) and then sent to the relevant configured government agency.

2.2.7.7.6 Data Acquisition and Transmission

The table below shows data acquisition methods from airlines supported by GG PNR

Data Type	Source	Mechanism	Acquisition Method
PNR	Reservation System (ARS) or Global Distribution System (GDS)	Push	MQ via Second Party GovIDNet
PNRGOV	Airline Reservation System (ARS) or Global Distribution System (GDS)	Push	MQ via Second Party GovIDNet
DCS	Departure Control System	Push	MQ via Second Party GovIDNet
PRL	Departure Control System	Push	Type B

The table below shows the data distribution methods to Governments supported by the GG PNR

Data Type	Mechanism	Distribution Method
PNRGOV	Push	MQ via Second Party GovIDNet

2.2.7.7.7 Supported Formats

The tables below show a summary of the input formats supported by the GG PNR

Data Type	Standard	Version Supported
PNR and DCS	IATA PNRGOV EDIFACT standard	PNRGOV EDIFACT v11.1, v12.1, v13.1, v15.1
PNR and DCS	IATA PNRGOV XML standard	PNRGOV XML v15.1
PNR	Amadeus	Amadeus v1.6, v1.7, SBRRES 5.2
DCS	PRL - IATA PASSENGER RECONCILE LIST	Recommended Practice 1719b {PSCRM28}

2.2.7.8 Multi-Government Carrier Portal

Carrier Portal provides a web-based portal for authorized users of the carrier to enter Interactive Data (APP) and Manifest Data (APIS) manually.

The Carrier Portal Service is hosted and managed centrally in Second Party Data Centre.

2.2.7.8.1 Data Acquisition

Users can submit data in the following ways:

- Direct entry of the data fields in a series of web pages
- Batch uploading of a CSV file containing multiple Interactive or Manifest (APIS) transactions
- Secure FTP (SFTP) a file containing multiple Interactive or Manifest (APP or APIS) transactions.

The Carrier Portal can also be used by non-airline carriers such as cruise or bus companies.

For batch transactions, the Carrier Portal processes each message sequentially, each being validated and submitted to the Application Processor. The response for each transaction is recorded in the Carrier Portal database against the original transaction data.

Users can enquire on the status of processing batch data and, once processing is complete for the batch, may examine the results of processing of individual transactions.

2.2.7.8.2 Carrier Portal Administration

Each Carrier using the Carrier Portal will be provided with a Carrier Administrator user id.

The Carrier Administrator user ids are created and managed centrally by Second Party.

Carrier Administrators users can be set to one of the following statuses:

- Provisional - pending vetting and approval by the government,
- Active - Carriers permitted to submit data via the Carrier Portal.
- De-Activated - Carriers no longer allowed to use the Carrier Portal.

Carrier Administrator will create Carrier Normal user ids to allow carrier agents to submit traveler data

Carrier Normal user ids are created and managed by the Carrier Administrator.

2.2.8 Acceptance Criteria

The acceptance criteria for Traveler Data module are satisfied on demonstration of the following:

- Viewing of Passive APP, PNR, DCS and API data related to multiple travelers on at least 3 flights using the iBorders User Portal, proving receipt of data from an automated carrier
- Viewing of APP data related to multiple travelers on at least 1 flight using the iBorders User Portal, proving receipt of data via the Second Party Carrier Portal from an unautomated carrier. In the event that no unautomated carrier is ready to make use of the Carrier Portal, this may be substituted sample flight data submitted by the Second Party project team
- An AdHoc Search query being executed and showing search results in the User portal

2.3. iBorders Risk Management

2.3.1. The Risk Management product comprises the following components:

2.3.1.1. Risk Manager – receives data from the Traveler Data product, determines what sort of risk assessment is to be performed on it, and uses the services of the Risk Broker component to perform the assessment. If any risks are identified, the Risk Manager provides a process for First Party officers to deal with the risks.

2.3.1.2. Notifications – handles the sending of notifications to interested parties via email.

2.3.1.3. Risk Broker - provides an interface between the Risk Manager and the internal and external risk assessment providers (via Government Link) used to check travelers. The module sends assessment requests to the correct sources (as defined by a set of business rules) and correlates the responses.

2.3.1.4. Watch List Manager – Provides a service which is used to create and maintain an internal series of watch lists, and the risk assessment process to assess traveler identities against these. The risk assessment process uses a Name resolver service to do the name matching against the watchlist targets. With name matching there is always the possibility that an innocent traveler has a similar name to a person on the watch lists. To deal with this case, the Watch List Manager Implements a Cleared Document List. This enables First Party officials, who have intercepted a traveler and found them to not be the person on the list, to enter the traveler's document details on the system. This means that the traveler has been cleared versus specific watch list record(s). Thus, the next time the person travels, they will not be detained for the same reason. All watchlist targets will be created in Latin Character set.

2.3.1.5. Watch lists may be created of three types

- Black List – Known targets of interest who may need to be alerted to the authorities, e.g. criminals
- White List – Known list of persons who may need to be alerted, but not for security reasons, e.g. celebrities, diplomats
- Green List – Known list of identities for whom no further risk assessment should be carried out, e.g. royalty

2.3.1.6. Profiler - a Profile contains a set of characteristics about a traveler and their travel arrangements and allows the Risk Manager to find travelers who conform to those

characteristics. A Profile Administrator can create and maintain Profiles within the system using a simple web-forms user interface.

2.3.1.7. Name Resolver – The BASIS Rosette name matching engine performs fuzzy-logic matching on names.

2.3.1.8. Ad Hoc Search – Extends the scope of the search functionality by providing the ability to perform ad hoc full-text and structured queries on all stored iBorders data (up to 3 months old).

2.3.1.9. Risk Configuration – the Risk Management product uses shared Action and Reason entities within all of its modules. An Action defines what action should be performed on a traveler if they match against a watch list or profile hit. A Reason defines why the hit has occurred, and its relative severity to other hits.

2.3.1.9.1. Two types of risk assessment are performed by this Module:

- Watch List - The Traveler's identity (i.e. the set of personal details such as name, date of birth, travel document) is compared against one or more Watch Lists using a flexible matching algorithm. Each possible Match against an entry in a Watch List is given a score, and for those Matches which are over a certain threshold, a Hit record is created.
- Profiling - The Traveler's personal and travel characteristics are compared against a pre-configured Profile and a score is calculated based on each matching characteristic. If the score is greater than the Profile threshold, then a Hit record is created.

2.3.1.9.2. In each case, when a Hit is generated, a Referral record is automatically created or updated if the scoring exceeds configured thresholds.

2.3.1.9.3. Once created, Referral records are made available to authorized users to determine whether further action is required, by either ruling it in, or ruling it out. It is also possible to configure the System to automatically rule-in certain Watch List Hits (on the basis of pre-defined rules). If the Referral contains ruled-in Hits, it is 'alerted' to the Intervention Team. Both, security analysts and Intervention Team officers, can update a

Referral record with notes or actions and can close a Referral with a particular recorded outcome.

2.3.1.9.4. Only one Referral exists for each Traveler, and unqualified Hits (neither ruled-in nor ruled-out) generated later by ongoing risk assessment processes are added to the same Referral.

2.3.1.9.5. Authorized users can amend the status of Hits (qualified as well as unqualified) at any time.

2.3.1.9.6. The main processes supported by this Module are illustrated below and are as follows:

- Store Data - receives and stores the Traveler and flight data from the Data Acquisition System Module of the System.
- Qualify Referrals - allows a security analyst to review Hits and rule them in or out.
- Manage Notifications - notifies the Intervention Team when a Referral is qualified in.
- Manage Interventions - allows the Intervention Team (as authorized system users) to review the Alert and update it as the investigation proceeds, before finally closing it upon completion of the investigation.

2.3.1.9.7. The System allows security analysts to see all Referrals even if the Hits are associated with different departments. The members of the Intervention Team can see all alerted Referrals. Both types of users can view Hit summary details but cannot drill down into sensitive details unless they are also members of the department associated with the Hit.

2.3.2. Risk Broker Module

The main processes supported by this Module are illustrated below and are as follows:

2.3.2.1. Manage Profiles - allows an administrator to create and maintain Profiles (traveler profiles) within the System. Each Profile contains a set of characteristics about a

Traveler and their travel arrangements. The System can then query these Profiles to identify Travelers who conform to those characteristics.

2.3.2.2. Manage Watch List - allows a Watch List administrator to maintain a list of persons of interest. The process also allows for a Cleared Document List to be maintained on the System, enabling Travelers, who have been previously intercepted and been 'cleared', to have their details entered on the System so the next time the Traveler flies they will not be detained for the same reason.

2.3.2.3. Assess Traveler Profile - compares all of the Travelers on a flight against a particular Profile. The System raises a Hit for any Travelers scored above a certain score threshold.

2.3.2.4. Check Traveler in Watch List - compares all of the Travelers on a flight against the Watch List. The System raises a Watch List Hit for any Travelers scored above a certain score threshold and the Traveler is not on the associated Cleared Document List for the hit in question.

2.3.3. Watch List Manager

2.3.3.1. Provides a service which is used to create and maintain internal watch lists, and the risk assessment process to assess traveler identities against these. The risk assessment process uses a Name Resolver service to do the name matching against the watchlist targets. With name matching there is always the possibility that an innocent traveler has a similar name to a person on the watch lists. To deal with this case, the Watch List Manager Implements a Cleared Document List. This enables authorized users, who have intercepted a traveler and found them to not be the person on the list, to enter the traveler's document details on the system. This means that the traveler has been cleared versus specific watch list record(s). Thus, the next time the person travels, they will not be detained for the same reason. All watchlist targets will be created in Latin Character set.

2.3.3.2. Watch lists may be created of three types

- Black List – Known targets of interest who may need to be alerted to the authorities, e.g. criminals
- White List – Known list of persons who may need to be alerted, but not for security reasons, e.g. celebrities, diplomats

- Green List – Known list of identities for whom no further risk assessment should be carried out, e.g. royalty

2.3.3.3. Watch list targets may be imported from external services using an Excel spreadsheet upload or an XML formatted file.

2.3.4. Profiler

2.3.4.1. The Profiler component enables complex profiles to be created using a dynamic rule builder to construct profile rules using a large set of travel characteristics. Users with appropriate permissions (typically a Profile Administrator role) are able to administer profiles.

2.3.4.2. Profile Conditions

2.3.4.3. The profile conditions panel displays a set of fields enabling the user to:

- Set the profile conditions to match against traveler data
- Provide a comparator for the condition such as =, >, <, contains.
- Set the weight that a match against a condition will contribute to an overall score.

2.3.4.4. Multiple Conditions

2.3.4.4.1. Multiple conditions may be entered using logical AND and/or OR parameters as shown in the example below:

2.3.4.4.2. A maximum of three levels of nested condition logic is supported.

2.3.4.4.3. For each 'matched' condition group, the user assigned weighting will contribute to the total score given for a traveler against this profile. The sum of all the matched condition weightings (score) is calculated as a

percentage of the total possible sum of the weightings and compared with the Hit Threshold % given for the profile.

2.3.4.4.4. The system will only allow a maximum of thirty (30) profiles to be enabled (for risk assessment) at any one time.

2.3.4.5. Profile Tuning

2.3.4.5.1. Profiles may be tuned for optimal results by viewing the effects of changes to the profile conditions on travelers for the selected events

2.3.4.5.2. Profile Administrators tune a Profile by selecting historic events to model changes against. This will enable the Profile Administrator to see the effects of the conditions and weightings under consideration. The Profiler will run the profile against the historic data and will highlight which passengers would raise a hit with the modified profile conditions.

2.3.4.6. Profile Rules

2.3.4.6.1. The Profiler makes use of Risk Rules that specify events for which the Profiler will be run automatically. Each rule can be mapped to one or more profiles that will be used to risk-assess an event if it matches the rule. One particular event may match several rules, and multiple profiles may be used to assess the traveler.

2.3.4.6.2. For a manual assessment, the user will identify the single profile to be used.

2.3.4.6.3. The Profiler collects the information on the traveler from the stored data sources and compares these against the set of conditions used in the profile. Each condition in the profile will have one or more specific values or a range to match against, and a particular weighting.

2.3.5. Name Resolver

The BASIS Rosette name matching engine performs fuzzy-logic matching on names.

2.3.6. Ad Hoc Search

The Ad Hoc Search facility enables a user to perform a flexible full-text search across the Event, Hit, and Identity data stored in the iBorders system. The search is performed interactively against a large, distributed database.

2.3.6.1. Search Domains

A user is able to search using one of three domains:

- Events
- Identities
- Hits

2.3.6.2. Query Types

2.3.6.2.1. There are two query search types:

- Basic
- Advanced

2.3.6.2.2. Results from the basic search criteria entered are displayed on the results panel to the side.

2.3.6.2.3. Ad Hoc Search basic query provides a check-box option for Fuzzy Matching on name and document fields

2.3.6.3. Ad Hoc Search Advanced Queries

2.3.6.3.1. As the user enters characters in the 'Attribute name' field, an Attribute Helper pop-up displays the attribute name and the attribute description of matching attributes and allows the user to select one. Entered characters match either the attribute name or the attribute description.

2.3.6.3.2. Ad Hoc Search uses the user permissions and displays the attributes that the user is allowed to access e.g. if the user does not have access to PNR

then they will not see the PNR document number in the suggested list when document number is entered into the 'Attribute field' box.

2.3.6.3.3. The user may select a single attribute from the list or may press the 'Select All' button to add all of the attributes (maximum 30) to the selection.

2.3.6.3.4. Text type fields have the following options for the comparator.

Comparator	Description
=	Field must be the same as the search value
< >	Field must NOT be the same as the search value
~	A fuzzy search is performed
Is present	The specified field must contain a value
Is not present	The specified field must NOT contain a value
Regular Expression	A match is performed based on the regular expression term queries.
Sounds Like	A match is performed based on similar sounding value. (Only applies to Name attributes).

Date, date/time and number type fields have the following options for the comparator.

Comparator	Description
=	Field value must be the same as the search value
< >	Field value must NOT be the same as the search value
<	Field value must be less than the search value
<=	Field value must be equal or less than the search value
>	Field value must be greater than the search value
>=	Field value must be equal or greater than the search value
Is between	Field value must be between the values specified (inclusive?)
Is present	The specified field must contain a value
Is not present	The specified field must NOT contain a value

2.3.6.4. Nested Search Conditions

Once a condition has been entered, the Ad Hoc Search screen then allows additional conditions to be added. Multiple conditions can be entered using logical AND and/or OR parameters as shown below.

2.3.6.5. Ad Hoc Search – Regular Expression search

Basic or Advanced queries support wildcard and regular expression-based searches for string fields.

2.3.6.6. Ad Hoc Search – Results panel

2.3.6.6.1. When a search has been initiated and matching results have been found, the matching results are shown in a list. A count of the number of search results is displayed. (An appropriate message is displayed if no matches are found). Search Results can be exported to PDF/Excel format using the report export icons.

2.3.6.6.2. The content of the results shown will vary according to the Domain in which the search was made.

2.3.7. Acceptance Criteria

Risk Assessment will have passed the acceptance criteria on demonstration of the following functional events:

- A risk referral being generated as a result of a watchlist hit and a profile hit against a test entry in the watchlist and a test profile specifically configured to generate a hit
- Acceptance of the Profiler will be achieved by demonstration of a multi-level profile being created, stored and executed, with pre-selected known output results which can be verified as having satisfied the search requirement.
- A notification by email of a referral to an authorized service user

2.3.8. Specific Exclusions

Name resolver (fuzzy-name matching) works by indexing the target dataset against matching algorithms. As a result, it can only work against iBorders internal watch lists and data.

2.3.9. Responsibilities

The First Party is responsible for providing and maintaining watch list and profile target information.

2.4. iBorders Government Link

2.4.1. iBorders Government Link enables bi-lateral, secure communication between iBorders systems and other First Party databases and systems. It is the integration abstraction layer

that allows iBorders to access external systems and databases and for those external systems to access data inside iBorders.

2.4.2. In one direction it provides the iBorders Risk Management product with a standardized interface to use for accessing government watch lists, passports and visa systems and Interpol in order to provide data for its risk assessment functions.

2.4.3. In the other direction it provides services to external government systems to have controlled, authorized access to data held within the iBorders Traveler Data database. It also enables the exchange of expected and actual movement messages between iBorders and a primary line system.

2.4.4. Government Link is available with both Adaptors and Services.

2.4.5. Adaptors implement a standardized external facing interface to the external database/system and convert it to the internal interface used by iBorders components. The following adaptors will be implemented subject to First Party readiness:

2.4.5.1. Visa Check

2.4.5.1.1. Visa Check is a web service interface to the First Party's Visa service to check the validity of a visa for a traveler.

2.4.5.1.2. The Government Visa Service will publish a web service designed and built-in accordance with Second Party's standard web service schema.

2.4.5.1.3. iBorders will include the "Check Visa" request as part of the risk check for data submission from carriers, which will call the First Party web service which will service the request and respond with one of the expected service responses published in the standard message specification.

2.4.5.2. Travel Document Check

2.4.5.2.1. Travel Document Check is a web service interface to the First Party's Passport service to check the validity of a citizen passport.

2.4.5.2.2. The Government Passport Service will publish a web service designed and built-in accordance with Second Party's standard web service schema.

2.4.5.2.3. iBorders will include the "Check Travel Document" request as part of the risk check for data submission from carriers, which will call the First Party web service which will service the request and respond with one of the

expected service responses published in the standard message specification.

2.4.5.3. External Watch List Check

2.4.5.3.1. External Watch List Check is a web service interface to the First Party's Watch List service to check the security risk status of a traveler.

2.4.5.3.2. The Government Watch List Service will publish a web service designed and built-in accordance with Second Party's standard web service schema.

2.4.5.3.3. iBorders will include the "Check Watch List" request as part of the risk check for data submission from carriers, which will call the First Party web service which will service the request and respond with one of the expected service responses published in the standard message specification.

2.4.5.4. Interpol FIND

The Interpol FIND adapter is one of the risk source adapters available in iBorders. The system will be configured to interface with the Interpol FIND web services. Risk rules within iBorders will be configured to determine when the FIND service lookup is invoked during risk assessment.

The Second Party – Interpol FIND service adapter provides lookups for:

- Stolen and Lost Travel Documents (SLTD): List of documents reported stolen or lost to Interpol, including passports, ID cards, blank documents, etc. Request is submitted using:
  - Document number
  - Document country of issue
  - Document type
- Nominal Data: Criminal, missing persons, dead bodies, etc. The Nominal adapter request is submitted using biographic information:
  - Family name
  - First name
  - Date of birth
  - Document number

2.2.7 Services

2.2.7.3 The iBorders system will enable external systems to send and retrieve data from iBorders. The following services will be implemented subject to First Party readiness:

2.2.7.4 Export Expected Movement

2.2.7.4.1 As traveler data is normalized and stored in the iBorders database it creates an Expected Movement Record (EMR). These records can be exported to approved external systems, for alternate uses by the client.

2.2.7.4.2 iBorders will export expected movement records which contain event data to the external service over MQ channels.

2.2.7.4.3 EMRs are created as a Second Party specified fixed format XML file containing information about the traveler identity and the travel journey expected to be taken by the individual.

2.2.7.4.4 EMR output will be configured to send both identity/travel information and risk results information generated as part of the iBorders Risk Assessment process.

2.2.7.4.5 Generated EMRs will be posted to an outbound Second Party managed IBM WebSphere MQ channel configured to send the data to a

corresponding receiving MQ channel as configured and managed by the First Party.

2.2.7.4.6 Second Party will provide the specification of the EMR output XML to the First Party to enable consumption of the messages by the First Party receiving service.

2.2.7.4.7 Up to three (3) EMR end point destinations will be configured as part of the EMR export setup process.

2.2.7.5 Submit Border Movement

2.2.7.5.1 This facility allows the primary line service to submit border movement records to iBorders, which will link the border movement with the expected movement received earlier.

2.2.7.5.2 The First Party will receive expected movement records from iBorders.

2.2.7.5.3 The First Party will match and link the border movement with the expected movement record using the unique ID contained in the expected movement record.

2.2.7.5.4 The First Party will send the border movement to iBorders.

2.2.7.5.5 iBorders will be configured to receive Border Movement Records (BM) from the First Party Primary Line system as a record of border crossings to include the event with the traveler data events.

2.2.7.5.6 BMs will be created as XML messages to the Second Party specified format and submitted to iBorders from a First Party configured and managed IBM

WebSphere MQ channel to a corresponding Second Party configured and managed iBorders receiving MQ channel.

2.2.7.5.7 Second Party will provide the specification of the BM message XML to the First Party to enable creation of the messages by the First Party receiving service and to ensure consumption of the messages by iBorders

2.2.7.5.8 If configured, BMs received by iBorders will be risk assessed in the same way as traveler data received from air carriers.

2.2.7.5.9 iBorders will be configured to import border movement records from one (1) end point.

2.2.7.6 Acceptance Criteria

Government Link acceptance criteria will be met when the configuration parameters for each of the pre-agreed adaptors to be deployed has been configured into iBorders as part of the setup operations.

2.2.7.7 Specific Exclusions

2.2.7.7.1 Second Party will not provide any customization of the standard Government Link adaptors or services.

2.2.7.7.2 Customized adaptors or services are outside of the scope of this contract.

2.2.7.8 Government Link Integration Dependencies

2.2.7.8.1 All Second Party Government Link service adapters are based on Second Party standard interface specifications. The Government is required to

adopt the published Second Party standard and create corresponding services at the receiving point of integration for the following services.

2.2.7.8.2 Expected Movement Record Service - to receive the Second Party spec XML messages on an MQ channel, and to parse the data for import into the target system.

2.2.7.8.3 Border Movement Record Services – To create and send Second Party standard XML messages over an MQ channel, the border movement information for each traveler from the Primary Line system to the iBorders system.

2.2.7.8.4 Passport Check Service – To create a web service for iBorders to interrogate the Kuwaiti passport document database for validity. The service is required to receive Second Party standard XML queries and respond with a standard Second Party message format within 0.5 seconds of receiving the query.

2.2.7.8.5 Visa Check Service – To create a web service for iBorders to interrogate the Kuwaiti visa database for validity. The service is required to receive Second Party standard XML queries and respond with a standard Second Party message format within 0.5 seconds of receiving the query.

2.2.7.8.6 Watch List Check Service – To receive Second Party standard watch lists lookup requests via web service request. The service should then query the necessary Government watch lists for security checks and respond to

iBorders using the Second Party standard message specification within 0.5 seconds of receiving the request.

2.2.7.8.7 Interpol FIND Service – The First Party is required to ensure the engagement with the local Interpol authority to authorize the connection and facilitate the engagement with Interpol HQ for provision of the FIND service.

2.2.7.8.8 Second Party will supply interface specification documents to the necessary First Party software development groups on request.

2.2.7.8.9 The external Government Link services are excluded from service acceptance sign-off, as they are not critical to the operations of iBorders itself and often have external dependencies on outside bodies to develop their respective interfaces.

2.2.7.9 Responsibilities

2.2.7.9.1 The First Party will develop all data services external to iBorders for purposes of receiving and responding to messages from iBorders. See dependencies above.

2.2.7.9.2 The First Party will be responsible for the setup and maintenance of necessary communications protocols external to iBorders and provide suitable software licenses to cover the proposed use.

2.5. iBorders Border Operations

2.5.1. Border Operations provides a set of features and capabilities to provide live, predicted and retrospective insight into the operation of the First Party's border business. Tools are provided

to allow First Party operations staff to plan, adjust and react to as required based on live system, resource and traveler status. The product comprises the following components:

2.5.2. Operational Portal

2.5.2.1. Designed for operation and service managers for monitoring system performance. It provides end to end service monitoring for iBorders System.

2.5.2.2. iBorders Border Operations Portal provides an operational dashboard for the monitoring of the infrastructure and application in real time.

2.5.2.3. iBorders Operations Monitoring has the following standard features.

- End to end service monitoring for iBorders System.
- An operational dashboard for the monitoring of the infrastructure and application in real time.
- A drill down capability down to individual monitors
- A historical view of system activity (trend analysis)
- Service alerts when thresholds are exceeded via SMTP
- Monitoring of system Response Times
- Monitoring of Service Availability
- Monitoring of MQ Queue Depths
- Standard SLA reports (availability and response times).

2.5.3. Business Reporting

2.5.3.1. Provides a facility for authorized business users to extract and schedule reports on border management statistics.

2.5.3.2. iBorders Border Operations Reporting provides reports for Business Users. These provide Monthly statistics. There is no access to raw data which allows data

administrators to generate reports without the need for clearance where traveler data is considered sensitive data.

2.5.3.3. iBorders Operations Reporting has the following standard features.

2.5.3.3.1. Accesses the following iBorders data sources:

- iBorders Database tables
- iBorders Database views
- Ad Hoc search

2.5.3.3.2. Provides simplified data domains that access the underlying data to allow the creation of custom reports.

2.5.3.3.3. Integrated with iBorders Security Model and uses the same user population and access controls. Data access restrictions imposed by iBorders roles, departments and locations are enforced in the reporting platform.

2.5.3.3.4. Accessible to those with specific permissions for report access. Access is through a menu option in the User Portal, opening a new browser window.

2.5.3.3.5. User access is provided via the same user credentials as provided for the iBorders User Portal.

2.5.3.3.6. Maintains the language settings from iBorders User Portal.

2.5.3.3.7. Allows users to create their own reports based on existing ones or creating them from scratch, by dragging and dropping elements from the available data domains.

2.5.3.3.8. Allows users to store their custom reports in the report repository, and restrict access to themselves, their group, or everyone.

2.5.3.3.9. Reports can be configured to be run on a scheduled basis (e.g. daily, weekly, monthly) and distributed to a list of email addresses.

2.5.3.3.10. Allows users to export reports in PDF, Excel, CSV, Word or PowerPoint formats.

2.6. iBorders Risk Tracker

2.6.1. The Second Party Risk Tracker module provides a situational display of aircraft movements with risk data overlaid (if available).

2.6.2. The map display is integrated with Private map tile solution, as a local deployment. The map supports different layers and modes for different views and includes a zoom function to view data in more detail.

2.6.3.

- Real time display of aircraft position should be done using data from a flight data supplier
- There should be filtering to reduce the number of flights displayed on the screen.
- There should be a method of displaying passenger risks associated with the flight.
- Flights should be displayed minimum of up to 24 hours before departure and until flight departure.

2.6.4. Provision of FlightAware data requires an internet connection to the Risk Tracker server in the datacenter – to be provided by the First Party. Risk tracker services will be replicated in both datacenters for business continuity resilience

2.6.5. Border Operations Risk Tracker has the following standard features.

2.6.5.1. A web based real time display of aircraft position overlaid on a private map tile solution.

2.6.5.2. Flights shown with flight and route data.

2.6.5.3. Flights can be clustered together into one icon when there are several flights in the same airspace.

2.6.5.4. User can filter the flights being displayed, using criteria such as direction, service code, departure and arrival airports, and risk level

2.6.5.5. Support for different map modes:

2.6.5.5.1. Normal map mode with minimal features displayed.

2.6.5.5.2. Map with terrain relief highlighted.

2.6.5.5.3. Satellite image map.

2.6.5.6. Support for different map layers:

2.6.5.6.1. Major airports across the world displayed as small blue circles. The airport identification shows as a tooltip when hovered over.

2.6.5.6.2. Map latitudes and longitudes on a grid spaced appropriately for the zoom level.

2.6.5.7. Zoom function on the map to view data in more detail

2.6.5.8. Flight data colored according to the passenger risks associated with the flight.

2.6.5.9. Support of different data feeds:

2.6.5.9.1. Process data provided by a third-party supplier of global air traffic data, Flight Aware

2.6.5.9.2. Process data from Air Traffic Control in Asterix format

2.6.5.9.3. Process data from Air Traffic Control in ADS-B format

2.6.5.9.4. Process data from Air Traffic Control in AFTN format

2.6.5.10. Controlled access to the browser interface via user name and password.

2.7. iBorders Border Performance Dashboards

2.7.1. Data Sources

Dashboards will have access to information from multiple data sources within iBorders:

- Traveler Data – Traveler Database
- Risk Manager – Watchlists; Profiles; Hits & Referrals
- iBorders Common Services – Reference Data (Airports, Locations, Countries, Carriers).
- Movement Event – Border Movement/Actual Movement
- APP Information– Travelers Check-in transactions, Travelers APP Movement Directive data

2.7.2. Data Refresh

The data refresh within Border Performance Dashboard will be a configurable value. Generally, the data refresh rate is a trade-off between performance and refresh time. During implementation, the data refresh rate will be tuned to reach the optimum setting based on data volumes specific to Kuwait and international standards and best practices provided it does not exceed fifteen minutes.

When integrated with a Disaster Recovery database, Dashboard data will be subject to a lag equivalent to the sum of the DR replication lag plus the incremental data load frequency.

Border Performance Dashboards will store data for 1 year.

2.7.3. Dimensions & Data Entities

Border Performance Dashboards will provide data on the following facts and dimensions:

- Service (Flight / Cruise / Bus)
  - Departure Location
  - Arrival Location
  - Departure Time and Date
  - Arrival Time and Date
  - Direction: Inbound or Outbound
  - Number of Hits
- Traveler
  - Departure Location
  - Arrival Location
  - Departure Time and Date
  - Arrival Time and Date
  - Direction: Inbound or Outbound
  - Type: Normal, Transit, Transfer
  - Nationality
  - Travel Case (if APP data is available)
- Hits
  - Type (Watch List or Profile)
  - Severity
  - Priority
  - Status (Qualified / Unqualified)
  - Source (Watch List Source or Profile Name)
  - Reason
  - Action

- Pre-Clearance AP
  - Departure Location
  - Arrival Location
  - Departure Time and Date
  - Arrival Time and Date
  - Direction: Inbound or Outbound
  - Type: Normal, Transit, Transfer
  - Nationality
  - Travel Case
  - Movement Directive
- Border Movement
  - Departure Location
  - Arrival Location
  - Arrival Date and Time
  - Departure Date and Time
  - Direction: Inbound (Arrival) or Outbound (Departure)
  - Nationality

2.7.4. Standard Dashboards

The following standard dashboards are available.

- Main
- Services
- Travelers
- Border Movement
- Pre-Clearance APP

- Risk Management
- Risk Processing

2.7.5. Common Filters

The dashboards include a set of common filters. The filters enable the user to search the displayed data for in-depth analysis of the data charts. As each filter is applied, the chart is updated with the filtered data.

The following common filters are defined:

Name	Description
Time Range	The following time range filters are available • Next 4 hours • Next 12 hours • Next 24 hours • Last Week • Last Month • Last Year
Time	The following time filters are available • Year • Month • Day • Hour • Weekday
Service	The following standard service filters are available • Type (e.g. Domestic / International) • Direction (e.g. Arriving / Departing) • Service Type (e.g. Air/General Aviation/Sea) • Operator Name • Operator Code • Domestic Location – Name • Foreign Location – Country Group • Foreign Location – Country • Foreign Location – Name
Traveler, Border Movement, Pre-Clearance	The following standard filters are available • Nationality • Nationality Group (e.g. GCC/ EU) • Travel Type (e.g. Normal / Transit / Transfer)
Risk Management	The following standard risk filters are available • Alert Type (e.g. APP / Watch List / Profile) • Traveler Event Type • Source (e.g. Watch List Name / Profile Name) • Severity (1 – 5)

Table 1 – Common Filters

2.8. Common Services

2.8.1. The iBorders Traveler Data, Risk Management, Government Link and Border Operations modules all make use of the Common Services components to secure and manage the iBorders internal services.

2.8.1.1. User Portal - a web-based user interface that brings together all iBorders user interface components used in the solution. The User Portal makes use of common user access and audit processes.

2.8.1.1.1. The User Portal will be available in English and Arabic languages.

2.8.1.2. Configuration and Reference Data – provides a series of configuration parameters for use in the rest of the system, and commonly held reference data such as lists of countries and locations and their associated codes.

2.8.1.3. Audit – all modules log noteworthy events to a central Audit module. Authorized First Party users can then later review these audit events to see what has been happening in the system. All logs will be purged, rolled over and will have clear naming conventions

2.8.1.4. User Management – provides a set of facilities for an administrator to manage the user accounts in the system. Each user of the User Portal has an account with an associated set of roles that determine their access rights within the system. Individual users are also able to examine their own account information and to change passwords.

2.8.1.5. Authentication – this module provides a login and single sign-on capability for the modules in the User Portal. iBorders incorporates role-based access controls which means that different levels of First Party user will be able to access different data and functionality according to their role (job function).

3. Technical Infrastructure

3.1. Technical Environments

The System architecture will be tested in a hosting environment at a Second Party site.

The staging of the System, as well as its live running, will be hosted at a dual resilient production site (Production Environment) in Kuwait City with a Disaster Recovery Environment (running on a 24 * 7 basis) hosted at a second non-resilient site in Kuwait City.

The main hardware is HP running Red Hat Enterprise Linux.

3.1.1. Production Environment

The Production Environment has the following architecture:

The Production Environment is divided into security domains, each security domain protected by a firewall.

Disaster Recovery Environment:

The Disaster Recovery Environment's infrastructure provides a functional replication of the Production Environment, provide continued access to all current information when the primary site is unable to continue within normal operational parameters. This cut-over from the primary site would be a manual discussion involving all stakeholders responsible for the system, including Second Party.

3.1.2. Scaling and Sizing

The System's technical infrastructure will be appropriately sized to cope with the expected passenger information load.

3.1.3. General environment notes

The iBorders infrastructure includes

- A resilient production environment.

- A staging environment (to allow functional testing).
- A non-resilient disaster recovery environment.

Both the production and staging environments will be hosted in a First Party Data Centre in Kuwait City.

The Disaster Recovery suite will be hosted in another First Party Data Centre in Kuwait City.

Second Party will procure the iBorders infrastructure and will rack and stack the equipment in the First Party provided data centers. Second Party will provide all in-rack networking infrastructure for iBorders application communications between modules.

First Party is responsible to provide redundant network links between the two datacenters routed over diverse networks to reduce uncontrolled environmental impact provided it is in line with section 3 of Exhibit 2.

All external network connections and associated services are physically separated from the rest of the environment. The convergence points of the different security zones are double paired firewalls.

All edge firewalls are configured with intrusion prevention technology.

3.1.4. Communication Network Infrastructure

Second Party will provide a Dual Resilient Private MPLS circuits (512k) from the Second Party Data Centre to Production and DR environments in the First Party Data Centers, sufficient to meet contractual service levels.

The WAN connections deployed for the iBorders System will be as follows:

Connection Name	Description
Second Party Network connection	Dual Resilient IP link provided by Second Party between the Second Party iBorders Government Gateway and the local infrastructure. This connection provides a link to a Second Party Service Net service called Gov net.
Carrier host connections	Connections to all Carrier ARS and DCS hosts required. These are based on the Second Party Service Net architecture which supports a hub and spoke network connection model over IP.
Remote support connection	Connection allowing Second Party staff to provide 3rd level remote support for the System. This connection is provided via the Second Party Internet VPN service.
Government Intranet connection	Connection must be provided by First Party
Production Environment to Disaster Recovery Environment connection	First Party is responsible to provide Kuwait City ßà Kuwait City connection of minimum 10 Mbps bandwidth; Second Party is responsible to provide the extensions prescribed in section 3 of this Exhibit 2.

The airlines will be mandated by the Government to send APP information to the API/APP/PNR system in Kuwait.

The Second Party network connections will be sized to cater for the required load.

The Government Intranet connection will be sized based on the number of users requiring access.

The First Party will provide local network facilities (both LAN and WAN) for business user access to the iBorders User portal via internet browser.

Second Party will provide all in-rack networking infrastructure for iBorders application communications between modules

Network	Description
Second Party Network Connection	Resilient IP Link between Second Party Communication Gateway and local infrastructure (Data Center). This is a Second Party IPVPN Service Net called Gov ID net
Carrier Host Connections	Connectivity to all Carrier hosts required. This is based on the Second Party Service Net architecture which supports a hub and spoke network connection model over IP. Subscriber and provider design allows many subscribers to connect to a single provider in a secure manner – it does not allow subscriber to subscriber connections).

Remote Support Connection	Support VPN for Second Party staff to provide 3rd level support to the application infrastructure. This is provided via the Second Party IPVPN

3.1.5. Data Storage and Retention

- Second Party will provide disk storage space on the production and staging environments to meet contractual commitments including account for growth in passenger volumes during the term of the contract.
- Second Party will provide a Data Retention policy and Data Back-up solution
- Data stored by the System will be retained as follows:

Data Type	**Description**
Traveler Data	5 years
Audit Data	6 months
Ad hoc Search Data	Search up to 3 months old data.

- Data stored by the iBorders System will be kept on-line on a SAN. A regular backup schedule of the SAN will be maintained, including daily incremental backups, weekly full backups and monthly System images.
- All data will be kept on-line on a Storage Area Network (SAN). A regular backup schedule of the SAN is maintained including: -
- daily incremental backups
- weekly full backups,
- monthly system images

3.1.6. Business Continuity

3.1.6.1. In the event that a fault occurs, the high availability features of the platform and application will automatically ensure the service is maintained.

3.1.6.2. All data contained in the Production Environment of the System will be automatically replicated in the Disaster Recovery Environment on a continuous basis.

3.1.6.3. In the event that a failover of the System is required to the First Party site hosting the Disaster Recovery Environment, the fail-over will not be instantaneous.

3.1.6.4. First Party senior stakeholders responsible for the iBorders service will be consulted for a decision to initiate the failover to the alternate site. Second Party will then implement the DR plan to make the disaster recovery site operational within two (2) hours of the decision to failover to the Disaster Recovery site. Notwithstanding the afore mentioned, Critical services will be made operational within thirty (30) minutes.

3.1.6.5. Second Party will supply, install and maintain the Disaster Recovery environment at First Party's disaster recovery data Centre in Kuwait for such purposes.

The Disaster Recovery infrastructure will be a non-resilient environment with similar components as that of the Production environment. Data is replicated from the Production environment to the Disaster Recovery environment by means of Oracle Data Guard. In the event of a complete failure of the Production environment, the Service will be failed over to the Disaster Recovery site, as described below.

3.1.6.6. Failover Management

3.1.6.7. Failover from the resilient Production site to the Disaster Recovery site is a manual process. The Oracle database at the DR site will reflect the latest state of the data from the replication process.

3.1.6.8. Failback is the same process in reverse.

3.1.6.9. Fail-over may take up to 2 hours.

3.1.6.10. The user portal failover is handled by the Client Intranet DNS service which will be configured with a round robin setup.

3.1.6.11. The Wide Area Network for Airline traffic is failed over within the network infrastructure.

3.1.6.12. First Party is responsible for authorizing all failover and failback events; Second Party is not responsible for service interruption occurring during the period of identifying that failover should be performed and First Party issuing the formal approval to proceed.

3.1.6.13. The definition of detailed failover and failback processes will be a specific work package listed in the Project Management Plan and completed during the Implementation Phase of the Project. The processes will form part of the pre-production Acceptance Tests.

3.1.6.14. Second Party and First Party will perform regular exercises of the Disaster Recovery site in order to validate that it is capable of performing active processing of the live production traffic. These exercises will be defined during project implementation and will form part of the pre-production Acceptance Tests for Phase 1.

3.1.6.15. Storage

The SAN storage capacity in the DR environment shall be the same as the Production environment.

3.1.7. In accordance with section 3of the Schedule 1 of the Exhibit 2 of this Agreement, Second Party will equip either of the following (as defined in sections 3.1.7.1 or 3.1.7.2) or a combination of the said mentioned provided it does not exceed the specifications of either of them:

3.1.7.1. One (1) command Centre room (premises and infrastructure provided by First Party) including the following:

3.1.7.1.1. Furniture for up to 15 First Party agents, including desks and chairs.

3.1.7.1.2. Computers for up to 15 First Party agents (Dual Monitors PCs) for the purpose of monitoring activities provided by the iBorders system.

3.1.7.1.3. Video Wall consisting of one row of 5 Screens, to provide the agents with a visual overview supporting:

3.1.7.1.3.1. A master data feed (e.g. Risk Tracker feed or Dashboard) which can be displayed on 1 LCD panel or stretched across the screens.

3.1.7.1.3.2. Picture in Picture to display individual desktop monitor (up to 15 frames per second)

3.1.7.1.3.3. A Management console application (to configure what is displayed).

3.1.7.2. 4 operations rooms (premises and infrastructure provided by First Party) including the following:

3.1.7.2.1. Furniture for up to 4 First Party agents, including desks and chairs in each room.

3.1.7.2.2. Computers for up to 4 First Party agents (Dual Monitors PCs) in each room, for the purpose of monitoring activities provided by the iBorders system.

3.1.7.2.3. Video Monitoring Screen consisting of one large display 60” or equivalent in each room, to provide the agents with a visual overview supporting:

3.1.7.2.4. A master data feed (e.g. Risk Tracker feed or Dashboard) which can be displayed on the LCD panel.

3.1.7.2.5. Picture in Picture to display individual desktop monitor (up to 15 frames per second)

3.1.7.2.6. A Management console application (to configure what is displayed).

3.2. System Security

3.2.1. All actions performed in the System will be logged for security purposes;

3.2.2. All sensitive data (Watch Lists, Hits) used or generated by the System will be stored in an encrypted part of the database;

3.2.3. A separate firewall will be provided for the internet DMZ, the intranet DMZ and the application LAN;

3.2.4. The primary external network connections will be encrypted;

3.2.5. A single user sign-on capability will be built into the System. It will use LDAP architecture for holding user records. Single factor authentication will be included;

3.2.6. Remote System management security will be addressed by taking the following additional security measures where necessary:

- Client authentication for remote Second Party support staff;
- Named/approved Second Party support staff; and
- Secure shell access.

3.2.7. Service Audit Logs

3.2.7.1. Audit logs will be maintained for security purposes. The iBorders System will keep an online audit trail for Authorized User transactions. This audit trail is accessible to Authorized Users to view summary data.

3.2.7.2. All auditable User events will be stored in a common audit database for a period of 60 days months from the date of such events. All System events will be stored in audit log files for a period of 180 days.

3.2.8. Database Security

3.2.8.1. All sensitive First Party Data (imported Watch Lists) will be stored in an encrypted part of the iBorders System.

3.2.8.2. All access to the data is restricted to authorized users only

3.2.9. Firewall Security

3.2.9.1. A secure firewall architecture with Intrusion detection will be provided.

3.2.9.2. A dual vendor double bastion firewall architecture (with intrusion detection on the edge firewall) will be provided as part of the System.

3.2.10. Network Security

3.2.10.1. The primary external network connections will be encrypted.

3.2.11. User Management

3.2.11.1. A single sign on solution will be built into the Second Party application. This will use LDAP architecture for holding user records. Single factor authentication will be included.

3.2.11.2. User credentials are stored in Single Sign-on (LDAP) and the user password is hashed using SHA-512 algorithm (or better).

3.2.12. Remote Management Security

Remote access security will be addressed by taking the following additional security measures:

- Client authentication for remote support staff

- Named/approved support staff
- Secure Shell access (SSH)
- Access control log

3.2.13. Acceptance Criteria

The technical infrastructure will have met the acceptance criteria upon successful demonstration of the following:

- Demonstration of the operational iBorders User portal for production and staging environments from within the data Centre
- Operational demonstration of data backup facilities
- Operational demonstration of database failover

A separate acceptance will be managed for the integration of the Disaster Recovery site into the overall solution.

3.3. First Party Responsibilities

3.3.1. The First Party will be responsible for the following with regard to the technical infrastructure

- Provision of any security clearances and security passes to enable Second Party project staff access to the data Centre during the build phase
- Provision of local network facilities (both LAN and WAN) for business user access to the iBorders User portal via internet browser
- Provision of suitable data Centre facilities for the co-location of the iBorders technical infrastructure, including:
- Rack location space and floor structure capable of carrying the iBorders racks, to Second Party provided dimensions and weight specifications per rack
- Adequate heating, cooling and air-conditioning to accommodate the additional equipment being installed, to Second Party provided HVAC specifications

- Adequate smoothed and UPS protected power facilities and power outlets to accommodate the iBorders rack power requirements, to Second Party provided electrical specifications
- Adequate physical security precautions to prevent theft or loss of equipment
- Suitable fire suppression facilities.
- Storage/Disposal of packaging on completion of installation
- Network core and edge switchgear for the iBorders network to connect to the business network
- Networking and routing skills to configure the necessary communications for connection to the First Party network
- Network WAN links between Production and Disaster Recovery data centers, with diverse routing.

4. Training

The principal objective of Second Party's training program is to provide qualified Government trainers with a detailed knowledge of the functionality, operation, configuration and administration of the system, such that Government trainers will then be able to provide the first line of support for the system and train end users directly.

الهدف الرئيسي من برنامج الطرف الثاني التدريبي هو إطلاع المدربين الحكوميين المؤهلين بشكل مفصل على وظيفة النظام وتشغيله وتشكيله وإدارته، بحيث يصبح المدربون الحكوميون قادرين على توفير أول خط دعم للنظام وتدريب المستخدمين النهائيين مباشرة.

4.1. Overview

Second Party shall provide initial training to nominated Service User trainers, upon delivery of the System.

يقدم الطرف الثاني تدريبًا أوليًا لمدربي مستخدمي الخدمة المعينين، عند تسليم النظام.

Second Party will provide training for up to sixty (60) end-users and twenty (20) administrators of the iBorders system. All training will be delivered using the 'Train the Trainer' methodology. The training materials will be provided to Service Users trainers for their use in training the end users. Training will include practical exercises using the Training Environment.

سيوفر الطرف الثاني تدريبًا لما يصل إلى ستين(60) مستخدمين نهائيين وعشرين (20) مسؤولين عن نظام iBorders. وسيتم تقديم جميع التدريبات باستخدام منهجية "تدريب المدرب". وسيتم توفير المواد التدريبية لمدربي مستخدمي الخدمة لاستخدامها في تدريب المستخدمين النهائيين. وسوف يشمل التدريب تمارين عملية باستخدام بيئة التدريب.

Training will be provided once prior to go-live of each Phase.

سيتم توفير التدريب مرة واحدة قبل بداية كل مرحلة.

Each training session will be arranged during working hours, from 9:00 a.m. – 5:00 p.m. local time.

سيتم تقديم جميع الدورات التدريبية خلال ساعات العمل، من الساعة 9:00 صباحًا إلى الساعة 5:00 مساءً بالتوقيت المحلي.

Our Training Manager will provide a Training Plan during the project that will offer details concerning the scope of the training courses, the required training material, as well as their dates and length. We will review the plan in detail with the client prior to starting the training. The Training Syllabus, including course descriptions and duration, is given in the following section.

سيقدم مدير التدريب خطة تدريب خلال المشروع تقدم تفاصيل تتعلق بنطاق الدورات التدريبية، والمواد التدريبية المطلوبة، وكذلك تواريخها ومدتها. وسنراجع الخطة بالتفصيل مع الطرف الاول قبل بدء التدريب. ويتم تقديم منهج التدريب، بما في ذلك وصف الدورة ومدتها، في القسم التالي.

An annual training course will be run for new Service Users trainers.

سيتم إجراء دورة تدريبية سنوية للمدربين الجدد لمستخدمي الخدمة.

Further training can be provided on a consultancy basis (charged at prevailing time and material rates).

يمكن توفير تدريب إضافي وعلى أساس استشاري (وفقاً للظروف السائدة ومعدلات المواد).

4.2. Trainees

The Ministry of Interior of Kuwait will be responsible for identifying end users who will use the system and System Management staff who will support the operational needs of the end users.

ستكون وزارة الداخلية الكويتية مسؤولة عن تحديد المستخدمين النهائيين الذين سيستخدمون النظام وموظفي إدارة النظام الذين سيدعمون الاحتياجات التشغيلية للمستخدمين النهائيين.

The list of trainees must be provided at least one week in advance of the start of training to allow configuration of the Training Environment.

يجب تقديم قائمة المتدربين قبل بدء التدريب بأسبوع على الأقل للسماح بتشكيل بيئة التدريب.

4.3. Syllabus

4.3.1. Administration

Course Name	Administration
Delivery Mode	Classroom, eLearning
Duration	1.0 hours
Course Prerequisite(s)	None
Required for	System Administrators
Course Description	This course takes you through the process by which a user administers user accounts within iBorders.
Lessons and Topics	Lessons/Topics Include: • Managing User Roles • Managing User Accounts
Course Objectives	At the end of this course, participants will be able to: • Demonstrate the creation and management of a user role using the permissions available within the system. • Create, update, and delete user accounts.

4.3.2. Configuration

Course Name	Configuration
Delivery Mode	Classroom, eLearning
Duration	6.0 hours
Course Prerequisite(s)	None
Required for	System Administrators and Business Rules Managers
Course Description	This course takes you through the process by which a user configures iBorders so that it operates to meet the business requirements.
Lessons and Topics	Lessons/Topics Include: • Managing Reason Codes • Managing Recommended Action Codes • Managing Watch lists • Managing Department • Managing User Roles • Managing Risk Rules • Managing Route Management Rules.
Course Objectives	At the end of this course, participants will be able to: • Explain reason codes - what they are, how they are created, how they are managed, and how they are used within iBorders. • Describe recommended action codes are and how they are created and managed in iBorders. • Explain what watch lists are, and how to create and manage them. • Describe the management of departments within iBorders. • Demonstrate the creation and management of a user role using the permissions available within the system. • Demonstrate how to add, update, and delete the rules that define how event data is risk assessed. • Explain and specify, on a per country, port, or service level, the types of data that will be stored in the system.

4.3.3. Investigation

Course Name	Investigation
Delivery Mode	Classroom, eLearning
Duration	8.0 hours
Course Prerequisite(s)	None

Required for	Alert Officer, Investigator, Travel Data Analysts, Security Analysts, Security Managers
Course Description	This course covers the process by which a user can search iBorders using appropriate mechanisms to find records and information of interest.
Lessons and Topics	Lessons/Topics Include: • Search using an Identity • Searching for a List of Travelers • Searching for a Traveler using PNR Data • Search Using a Traveler Journey • Search Using a Border Movement
Course Objectives	At the end of this course, participants will be able to: • Describe how users can search for an identity in iBorders using appropriate mechanisms. • Demonstrate and explain different ways of searching for a traveler using identity. • Demonstrate and explain the different ways of searching for a traveler using non-identity fields, such as bag tag information. • Demonstrate searching for a journey leg. • Demonstrate and explain how to search using ad-hoc, full text and structured queries from the stored iBorders data. • Describe how to search for travelers using border movements in iBorders.

4.3.4. Managing Risk Sources

Course Name	Managing Risk Sources
Delivery Mode	Classroom, eLearning
Duration	4.0 hours
Course Prerequisite(s)	None
Required for	Watch List and Profile Administrators
Course Description	This course takes you to the process by which targets and profiles are maintained in iBorders for use as part of the risk assessment process.
Lessons and Topics	Lessons/Topics Include: • Profile Management • Target Management
Course Objectives	At the end of this course, participants will be able to: • Demonstrate the creation, management, and tuning of profiles. • Demonstrate and explain the creation and management of targets on watch lists.

4.3.5. Handling Referrals

Course Name	Handling Referrals
Delivery Mode	Classroom, eLearning
Duration	6.0 hours
Course Prerequisite(s)	None
Required for	Alert Officer, Security Analysts, Security Managers,
Course Description	This course covers the process by which a user reviews and resolves alerts generated by the risk assessment.
Lessons and Topics	Lessons/Topics Include: • Resolving a referral • Search for a Referral • Using the Referral ID • Qualifying a Referral • Closing a Referral
Course Objectives	At the end of this course, participants will be able to: • Describe how users can search for a referral • Understand how to qualify a referral and the implications

4.3.6. Management of Reports

Course Name	Management of Reports
Delivery Mode	Classroom, eLearning
Duration	8.0 hours
Course Prerequisite(s)	None
Required for	Alert Officer, Investigator, Travel Data Analysts, Security Analysts, Security Managers, Carrier Administrators, Data Quality Analysts, Watch list Administrator, Auditors
Course Description	This course covers the process by which a user can run, schedule and customize reports within iBorders.
Lessons and Topics	Lessons/Topics Include: • Running and Scheduling Reports • Managing Custom Reports
Course Objectives	At the end of this course, participants will be able to: • Describe the running and scheduling of reports within iBorders. • Demonstrate and explain how to create, update, and delete custom report.

4.3.7. Auditor

Course Name	Auditor
Delivery Mode	Classroom, eLearning
Duration	1.0 hour
Course Prerequisite(s)	None
Required for	Auditor
Course Description	This course describes the process by which an auditor can search for and review the actions taken by other users within iBorders.
Lessons and Topics	Lessons/Topics Include: • Performing a System Audit • Performing a User Audit • Carrier Compliance Monitoring
Course Objectives	At the end of this course, participants will be able to: • Demonstrate how to search and view the audit trail that is created by users for making transactions and by system for performing an audit of system events.

	• Explain various methods of ensuring carriers are complying with legislation on data quality and provision of data.

4.3.8. Using Risk Tracker

Course Name	Using Risk Tracker
Delivery Mode	Classroom, eLearning
Duration	1.0 hours
Course Prerequisite(s)	None
Required for	Alert Officer, Security Analysts, Security Managers,
Course Description	This course covers how to use the Aircraft Situation Display map to provide a real-time view of the flights within the country's airspace overlaid with the results of the risk assessment of travelers.
Lessons and Topics	Lessons/Topics Include: • Configuration of the Aircraft Situation Display • Understanding of the information in the Aircraft Situation Display • Filtering of the Aircraft Situation Display
Course Objectives	At the end of this course, participants will be able to: • Filter the Aircraft Situation Display to meet their needs • Access referrals from the Aircraft Situation Display.

4.3.9. Using the Dashboard

Course Name	Using the Dashboard
Delivery Mode	Classroom, eLearning
Duration	2.0 hours
Course Prerequisite(s)	None
Required for	Alert Officer, Security Analysts, Security Managers,
Course Description	This course covers how to use the Aircraft Situation Display map to provide a real-time view of the flights within the country's airspace overlaid with the results of the risk assessment of travelers.
Lessons and Topics	Lessons/Topics Include: • Introduction to Dashboards • Perform On-Demand Analysis

	• Understand the Analysis Data Model description
Course Objectives	At the end of this course, participants will be able to: • Analyze different types of data in the dashboard.

4.4. Training Plan

The training courses shown in the previous section will be provided before the Phase 1 Go Live.

Our Training Manager will provide a Training Plan during the project that will offer details concerning the scope of the training courses, the required training material, as well as their dates and length. We will review the plan in detail with the client prior to starting the training.

The intention would be to provide the required training for each phase as close to go live as possible but allowing enough time for Service User trainers to train their own end users.

4.5. Training Facilities

The First Party must provide a training location / facility at either a First Party office or a First Party training facility in Kuwait City. The First Party is responsible for arranging security passes, if required, for Second Party trainers. The facility must have a projector and screen, or a wide screen LCD display. The facility must have network access, configured to permit access to the Training Environment on the iBorders servers in the First Party data Centre.	يجب على الطرف الاول توفير موقع/مرفق تدريب في مكاتب الطرف الاول أو في مرفق تدريب الطرف الاول في مدينة الكويت. والطرف الاول مسؤول عن توفير تصاريح المرور، إذا لزم الأمر، لمدربي الطرف الثاني. ويجب أن يكون للمرفق جهاز عرض وشاشة أو شاشة LCD عريضة. يجب أن يتيح المرفق الوصول إلى الشبكة وإلى بيئة التدريب على خوادم iBorders في مركز بيانات الطرف الاول.
The room must have workstations connected to the network, desks and seating for up to 15 students plus 2 trainers. The room must have access to toilets.	يجب أن تحتوي الغرفة على محطات عمل متصلة بالشبكة ومكاتب ومقاعد تتسع لما يصل إلى 15 طلاب بالإضافة إلى مدربَين اثنين. ويجب أن تحتوي الغرفة على دورة مياه.

5. Consulting Services

To ensure an effective and a successful project implementation, Second Party includes Business Change Management as a core element of its First Party engagement and delivery process. Business Change Management is a structured, people and process-focused approach to avoiding project pitfalls and ensuring long-term project benefits. It ensures that the critical changes that must be made are aligned with stakeholder business objectives and that success criteria are clearly defined and are realizable.	لضمان التنفيذ الفعال والناجح للمشروع، يدرج الطرف الثاني عملية تغيير الخدمات كعنصر أساسي في عملية الاشتراك مع زبائنها في عملية التسليم. تعد عملية تغيير الخدمات في العمل أسلوبًا منظمًا يركز على الأفراد وعلى العمليات لتجنب معرقلات المشروع وضمان فوائد المشروع على المدى الطويل وهي تضمن أن تتوافق التغييرات الضرورية التي يجب إجراؤها مع الأهداف التجارية لأصحاب المصلحة وأن تكون معايير النجاح محددة بوضوح وقابلة للتحقيق.

5.1. Change Management Engagement

A Second Party Business Change Manager will engage with the Kuwaiti Ministry of Interior through a series of workshops over the Delivery period of the Project and subsequently in annual workshops to ensure that change is managed across the program.	سيعمل مدير إدارة التغيير التابع للطرف الثاني مع وزارة الداخلية الكويتية خلال فترة تسليم المشروع وبعد ذلك في ورش العمل السنوية لضمان حُسن إدارة التغيير عبر البرنامج.
The initial Change Management engagement will comprise conducting workshops to engage with all key project stakeholders and formulate a change management strategy and develop a change management plan. The Second Party Change Manager will then work with the First Party's Change Management Team to support them in implementing that plan across the program. The key change management activities will include:	ستشمل المرحلة الاولية من عملية إدارة التغيير القيام بورش مع جميع أصحاب المصلحة الرئيسيين في المشروع وصياغة استراتيجية لإدارة التغيير ووضع خطة لإدارة التغيير. وسيعمل مدير إدارة التغيير التابع للطرف الثاني بعد ذلك مع فريق إدارة التغيير التابع للطرف الاول لدعمه في تنفيذ هذه الخطة عبر البرنامج. وتشمل أنشطة إدارة التغيير الرئيسية ما يلي:
• Identifying key stakeholders and their business objectives.	• تحديد أصحاب المصلحة الرئيسيين وأهداف عملهم.
• Defining KPIs to measure the success of the project against the business objectives.	• تحديد مؤشرات الأداء الرئيسية لقياس نجاح المشروع مقارنةً بأهداف العمل.
• Identifying current processes and systems and the potential impact of implementing the new system on individuals and organizations.	• تحديد العمليات والأنظمة الحالية والتأثير المحتمل لتنفيذ النظام الجديد على الأفراد والمنظمات.
• Identifying current processes and systems and the potential impact of implementing the new system on individuals and organizations.	• تحديد العمليات والأنظمة الحالية والتأثير المحتمل لتنفيذ النظام الجديد على الأفراد والمنظمات.

• Developing a change strategy, including formulation of a Communication Plan, to manage the transition from today's ways of working to optimized, new ways of working.	• وضع استراتيجية للتغيير، بما في ذلك صياغة خطة للتواصل، لإدارة الانتقال من طرق العمل الحالية إلى طرق عمل جديدة ومُحسّنة.
• Assisting the First Party in appointing a Business Change Management Team (comprising representatives of each key stakeholder) to manage the business transformation within their respective organizations.	• مساعدة الطرف الاول في تعيين فريق لإدارة التغيير في العمل (يضم ممثلين عن كل صاحب مصلحة رئيسي) لإدارة تحول الأعمال داخل مؤسساته.
• Supporting the First Party's Business Change Management Team in:	• دعم فريق إدارة التغيير في العمل التابع للطرف الاول في:
- Identifying and leveraging 'Champions' for change in each affected organization.	- تحديد مشجعي التغيير المعنيين بالتغيير في كل منظمة متأثرة والاستفادة منهم.
- Delivering the Communications Plan including Training [see Section Five].	- تسليم خطة التواصل بما في ذلك التدريب [انظر القسم الخامس].
- Monitoring progress, gathering feedback and assessing results.	- مراقبة التقدم، وجمع ومراقبة التغذية الراجعة وتقييم النتائج.
- Change Management and Innovation workshops will then be conducted on an annual basis to reinforce the Change; assess the extent that benefits have been realized; share best practice and identify opportunities for enhancement. The key activities within these annual workshops will be:	- سيتم بعد ذلك إجراء ورش عمل حول الابتكار وإدارة التغيير على أساس سنوي لتعزيز التغيير؛ وتقييم مدى تحقيق الفوائد؛ ومشاركة الممارسات الفضلى وتحديد فرص التحسين. وفي ما يلي الأنشطة الرئيسية في ورش العمل السنوية هذه:
- Measuring benefit realization against agreed KPIs.	- قياس تحقيق الفوائد مقارنةً بمؤشرات الأداء الرئيسية المتفق عليها.
- Gathering feedback on successes and identifying areas for improvement and feeding them back into the project.	- وتحديد النجاحات و مجالات التحسين وإعادة تنفيذهم في المشروع.
- Conducting best practice and innovation workshops to identify concepts for process improvement and solution enhancements.	- إجراء ورش عمل حول الابتكار والممارسات الفضلى لتحديد مفاهيم تحسين العمليات والحلول.
Assumptions	**الافتراضات**
• Up to five workshops will be conducted during the Project delivery period and one workshop will be conducted annually during the operational phase.	• سيتم إجراء ما يصل إلى خمس ورش عمل خلال فترة تسليم المشروع وسيتم إجراء ورشة عمل واحدة سنويًا خلال المرحلة التشغيلية.
• Workshops will be a maximum of five working days duration and will accommodate up to 30 attendees.	• ستكون ورش العمل ممتدة لخمسة أيام عمل كحد أقصى وسيشارك فيها ما يصل إلى 30 شخصًا.

• First Party will provide suitable meeting facilities to conduct the workshops.	• سوف يوفر الطرف الاول مرافق اجتماعات مناسبة لإجراء ورش العمل.
• First Party will appoint a business change manager as the primary coordinator for all activities related to change management procedures on behalf of the First Party.	• سيقوم الطرف الاول بتعيين مدير إدارة التغيير كمنسق رئيسي ليكون مسؤولاً عن تنسيق جميع أنشطة إدارة التغيير من جانب الطرف الاول.

6. Service Acceptance

6.1. Overview

Service Acceptance will be conducted over the delivery period to align with activation of functionalities within the system, in line with Acceptance as defined, and in conjunction with the Implementation Plan – Exhibit 2 Schedule 3.

The high-level acceptance criteria below will provide the key indicators for acceptance. Each of the acceptance criteria will be achieved via Second Party standard functional and non-functional test protocols used during the installation and commissioning program.

6.2. Phase 0

Phase 0 will have satisfied the acceptance criteria when the following milestones have been reached as part of the Project delivery:

- Delivery, installation and configuration of the Interim Single Server Solution.
- Link of Kuwait iBorders to Second Party's Government Gateway via Internet VPN connection to submit API to the in-country iBorders Interim Single Server Solution.
- Provided that the Dependencies stated in 2.4.6.2 are met by the First Party, submit the API data as EMR.

6.3. Phase 1

Phase 1 will have satisfied the acceptance criteria when the following milestones have been reached as part of the Project delivery:

- Delivery, installation and configuration of the primary site and QA environment
- Link of Kuwait iBorders to Second Party's Government Gateway via dual resilient WAN connection to submit API/APP/PNR to the in-country iBorders solution
- Airline engagement certification for the national airlines (Kuwait and Jazeera Airways) to supply correctly formatted data to iBorders

- Receipt and processing of APP data from Kuwait national airlines with a passive boarding response to the submitting airline, and the ability to view the flight and traveler information in the iBorders User Portal
- Receipt and processing of APP data from a single airline using the Second Party Carrier Portal as a means of data submission, with a positive boarding response to the submitting airline, and the ability to view the flight and traveler information in the iBorders User Portal
- This phase requires the Government of Kuwait to issue a mandate to all carriers to commence sending APIS, APP, PNR and DCS data via Second Party to the in-country iBorders system.

6.4. Phase 2

Phase 2 will have satisfied the acceptance criteria when the following criteria have been achieved:

- Onboarding of the remaining 30 listed airlines specified in section 2.2.3 “Carriers in Scope for Solution”. Demonstration of a successful Disaster Recovery test by manual failover
- EMR/AMR Integration between iBorders and Government Entry/Exit
- Display of Risk tracker functionality on one screen
- Display performance dashboard on one screen

6.5. Phase 3

Phase 3 will have satisfied the acceptance criteria when the following criteria have been achieved

- DR Site implementation
- Demonstration of a successful Disaster Recovery test by manual failover
- Support of APP with negative directives (Subject to readiness of the government).
- Any remaining airlines for Certification

- Configuration within iBorders up to five (5) external interface adapters provided that DGCA and the stakeholders implement the interfaces from the government side and any future additional interface requirement will be treated as change order.

Appendix 1 – APP Processes

1. Enter APP Data

This process utilizes a browser-based portal providing access and tools enabling APP submission by Carriers that are not technically capable of submitting such APP transactions via the Second Party network or that are performing Traveler Check-in at unautomated airports.

2. Collect APP Data

This process implements all Carrier-specific connectivity and system requirements for the submission of APP data to First Party (and other relevant governments).

It provides:

- basic data validation
- protocol and data translation
- flight schedule validation and enrichment (to identify hidden flight segments which the Carrier Check-in agent may not be aware of)
- message brokering function to distribute the APP data to First Party (and other relevant governments)
- response consolidation service to return a single response to the Carrier.

The iBorders gateway supports three methods of APP data provision by Carriers:

- integrated APP - the interface between the DCS and the iBorders gateway runs over IATA host-to-host which provides the session handling (query-response matching, timeouts etc.). In terms of transmission protocols, the Carrier can choose from TCP/IP-MATIP, AX.25, X.25-EMTOX or SLC with the Second Party network providing protocol conversion as necessary.
- standalone APP - Check-in agents use bypass entries, which (through a unique feature of the airline industry and the Second Party network) are sent to the iBorders gateway in London. Check-in agents see a stand-alone screen-based application and employ this to enter the APP information and receive the “board”/”do not board” responses from First Party (and other relevant governments).
- through the “Enter APP data” process of this Module.

When validating APP data submitted, as well as validating that all mandatory fields are present, and that all fields have the correct format, the iBorders gateway also ensures that the flight details are correct. Therefore, it validates the flight number, origin and destination and dates, and verifies the flight schedule against the Official Airline Guide (OAG) schedules. Any validation that fails, results in an error message being returned by the gateway to the Carrier which must correct the data entry and re-submit it again.

3. Process APP Data

There are two main parts to this process carried out by the iBorders applications processor – validation of the data and checking of the data against First Party systems.

APP data is validated against pre-defined validation rules to ensure there are no security, data, logic or communications errors. Any validation that fails, results in an error message being returned to the Carrier which must correct the data entry and re-submit it again.

3.1. Validation of Passenger Data

Where the Carrier has submitted the minimum passenger data required by the System - travel document number, national and family name, the following validation checks and cleansing of data will be performed by the System:

No.	Data item	Validation and cleansing carried out by the System	Action on validation failure
1	Travel document number	a) spaces and non-alphanumeric characters will be stripped. b) If passport issued by First Party, the number must comply with the First Party's passport numbering conventions. If other passport, follow Passport Number Conversion Routines, where applicable.	Return error code 6033 to Carrier.
2	Nationality	a) a valid ISO or ICAO country code must be present. b) may be supplied by Carrier as 1- 3-characters. c) Standardize with reference to a country alias table used by the System.	Return error code 6003 to Carrier.
3	Family name	a) must consist only of characters 'A-Z', space, hyphen, or apostrophe. b) first and last characters must be alphabetic. c) must not contain contiguous hyphen, apostrophe, space.	Return error code 6001 to Carrier.

If some or all of the travel document data in the table below is also supplied by the Carrier, the following additional validation checks and cleansing of data will be performed by the System:

No.	Data item	(M)andatory /(O)ptional	Validation and cleansing carried out	Action on validation failure
4	Given names	O	Validation same as for family name above, except that '-' is also allowed (to indicate that the passenger has no given names).	Return error code 6002 to Carrier.
5	Document type	M	a) If null and TD number supplied, substitute 'P'. b) Must be [P] Passport, [O] Other, or [N] No Document.	Return error code 6062 to Carrier.
6	Issuing state	M (except for document type = 'O')	a) May be null, except cannot be null if doc type is 'O'. b) If null and document type is 'P', substitute nationality code unless nationality is one the exceptions (First Party can compile a list of exceptions for which the passport nationality cannot be used as passport's issuing state). c) Must be valid ISO or ICAO country code. d) Standardize with reference to a country alias table used by the System.	Return error code 6076 to Carrier.
7	Date of birth	M	a) Must have a year but does not have to contain a month or a day. b) Must be 8 characters in length. c) If the day is '00', month cannot be '00'. d) Must be a valid date and less than 120 years from current date.	Return error code 6015 or 6016 to Carrier.
8	Sex	M	a) Must be valid sex code ('M', 'F', 'U', 'X')	Return error code 6004 to Carrier.
9	Country of birth	O	a) If given, must be valid ISO or ICAO country code. b) standardize with reference to country alias table used by the System.	Return error code 6084 to the carrier.
10	Travel document expiry date	M	a) Must be a valid date. b) Must be within a pre-defined validity period in the System for this country or the default validity period ('120' months from current date).	Return error code 6009 or 6017 to Carrier.

3.2. Validation of Other Transaction Data

The following data items also appear in the transaction, and are subject to validation checks and cleansing by the System as outlined below:

No.	Data item	(M)andatory / (O)ptional	Validation and cleansing carried out	Action on validation failure
11	Passenger /Crew Indicator	M	Must be 'P' or 'C' or 'X'	Return error code 6059 to Carrier
12	Transit Flag	O	a) If null, substitute 'N'. If given, must be 'Y' or 'N' b) Carrier should set transit flag to indicate whether the flight in question transits through an airport.	Return error code 6077 to Carrier
13	Passenger Sequence Number	M	Relevant if more than one passenger is submitted in the request	Return error code 6058 to Carrier
14	Expected Passenger Identifier	M	a) Must be a unique number b) Must be a valid numeric This number is externally set by the System.	Return error code to Carrier: a) 6068, b) 6070, c) 6069

3.3. Positive Boarding Directives

If all validation checks are passed, one of two positive boarding directives may be returned:

Message code	Message Text	Meaning	Action required by carrier	Sent to First Party
8503	BOARD IF DOCS OK	Board if documents are OK	Allow the passenger to board if travel documents are in order.	Expected Movement Record
8519	BRD WITH OWT	Board with onward ticket	Verify that the passenger has an onward ticket before allowing to board.	Expected Movement Record

4. Manage APP Data

The System is equipped will a web browser-based user interface in English that can be used to search, manage, monitor and obtain reports on the iBorders APP service.

Traveler data analysts will have access to the following functionality:

- view all available flights or search by time window, Carrier, arrival or departure, route, or a combination of these;
- access to individual passenger records, displaying all passenger data received in the APP transaction; and

- sorting flight lists, passenger lists, and search results based on any column (e.g. by flight number).
- Operations staff also have access to the following functionality:
- monitor, in real-time, the status of the System and any Matches through an operator console in a browser window.

Appendix 2 – Data Acquisition Processes

1. Collect Traveler Data

This process is implemented using the Second Party DAS Core module within the DAS application. It handles incoming messages from various sources, as listed in the table below:

Data Type	Source	Mechanism
APP	Pre-Clearance Module of the System	Push
DCS	Carrier's DCS	Push
PRL	Carrier's DCS	Push
PNR	Carrier's ARS	Push
APIS	Carrier's DCS	Push

Note that support for 'pull' is not included as part of Kuwait iBorders.

1.1. Filtering

The DAS application is configured to filter all incoming messages in two ways:

- firstly, it allows only applicable messages for the country of the First Party to be selected for processing;
- Secondly, it applies the rules set by Traveler data analysts to filter out any data that is not wanted or legally permitted by the First Party.

1.2. Processing

Once the DAS application has established it can continue to process the data, it performs standard processing that applies to all messages regardless of the government using the System. This includes:

- checking if the received data is for a new flight;
- checking if this is a new, updated or duplicate message for an existing flight;
- checking if the message is part of a Code Share flight; and
- coordinating the extraction of any additional data from the Carrier systems.

1.3. Linking Records

When two or more record types for the same flight are received, the DAS application will try to determine any possible links between the three types of data for each Traveler - flight manifest (generated by the

iBorders application processor from the APP transactions), Booking (PNR) data and Check-in (DCS) data. This linkage information is then transmitted along with the PNR, DCS and/or APP records showing any links that have been drawn.

1.4. Forwarding of messages

The ultimate purpose of gathering the data by this Module is to deliver it to the Risk Manager Module of the System. Derived information (such as unique traveler record identifier and linkage records) is also sent onwards.

2. Manage Carrier Processing Rules

This process is implemented using the Second Party Carrier Processing Rules module within the DAS application. It provides a browser-based user interface that can be used to manage (add, disable, enable or delete) the rules that govern what data is processed from Carriers.

When a processing rule is matched, the action to be taken by the System for each Carrier data type (APP, DCS and PNR) is set up to be:

- send to Manage Flights and Travelers Module for storage; or
- send to Manage Flights and Travelers Module for storage and send to Manage Risk Assessment Module for traveler assessment.
- Operations staff also have access to the following functionality:
- edit the domestic airports configuration file; and
- upload new Code Share configuration files (these list the Code Share arrangements that the First Party is interested in).

3. Store Data

All received traveler records from the Data Acquisition System Module of the System are processed before storage. The main process is to restructure the data into a form optimized for retrieval purposes. Storage is not destructive for API, APP, PNR and DCS data, however the linkage records are destructively stored. This means that a new linkage record overwrites an old linkage record. No history of changes to the linkage is maintained.

The following Traveler data will be stored by this Module:

Category	Data Content
Flight manifest data	All flight manifest (APP) elements. These include, but are not limited to:

	▪ Traveler name ▪ gender ▪ address ▪ document number ▪ nationality ▪ date/place of birth ▪ origin ▪ destination ▪ immigration airport
Booking data	All allowed Booking (PNR) data elements. These include, but are not limited to: ▪ Booking data (locator, creation date, travel agent) ▪ name list ▪ segment list ▪ contact details ▪ seats ▪ SSRs excluding medical conditions and meal requests which are filtered out for privacy reasons ▪ OSIs ▪ remarks ▪ frequent traveler details ▪ history ▪ form of payment ▪ ticket information
Check-In data	All allowed Check-In (DCS) data elements. These includes, but are not limited to: ▪ Traveler name ▪ flight information ▪ document information ▪ frequent flier ▪ seat information ▪ baggage information ▪ inbound travel ▪ flight ▪ on carriage travel ▪ ticket information ▪ Check-In information ▪ accompanying Infant information
Linkage data	▪ APP record reference ▪ DCS record reference ▪ PNR record reference ▪ confidence of APP -> DCS link (percentage) ▪ confidence of APP -> PNR link (percentage) ▪ confidence of DCS-> PNR link (percentage) ▪ APP status (present/expected/not expected/error) ▪ PNR status (present/expected/not expected/error) ▪ DCS status (present/expected/not expected/error)

Appendix 3 - Risk Management Processes

1. Qualify Hits

This process utilizes a browser-based user interface that allows First Party security analysts to search for, view and qualify Referrals. If a Referral contains ruled-in Hits, it is alerted to the Intervention Team.

2. Manage Notifications

Once a Referral has been alerted, the next step is to notify authorized users of the Alert in a way to ensure that acknowledgement is gained by at least one of the recipients in time to handle the Alert. An Alert is considered to be acknowledged when at least one Intervention Team member of the actioning airport (that is, departure airport for outbound flights or arrival airport for inbound) views the Alert.

The Manage Notifications process handles this step by sending out notifications to the Intervention Team (via email).

Notifications can be sent out when:

- a Referral is first alerted;
- a timer expires if no-one in the Intervention Team has opened the Referral;
- a Referral is escalated up the Intervention Team hierarchy.

If the alerted Referral is not acknowledged within the pre-determined notification period, then the original recipients are all re-notified using the same mechanisms as before. The number of times an Alert is re-notified is limited, after which the Alert will get escalated to the next level in the Intervention Team hierarchy.

Both the re-notification and Escalation workflows are stopped if the Alert has been acknowledged by at least one of the recipients of the notification or the Alert has been closed.

3. Manage Interventions

This process provides the Intervention Team with a browser-based user interface that allows them to search for and view alerted Referrals. Having found an Alert they can add notes to record the actions taken in the intervention and finally to close the Referral to indicate that it is complete.

Intervention Team users may only view alerted Referrals within the System. An alerted Referral has one of the following states:

- 'New' – the Referral contains ruled-in Hits, but has not been opened by an Intervention Team officer at this Escalation level;
- 'Opened' – the Referral contains ruled-in Hits, but has been opened by an Intervention Team officer at this Escalation level;
- 'Unexpected' – the Referral has been generated as a result of an APP denied movement record, and the Traveler is not expected to travel;
- 'Closed' – the Referral has been closed by a member of the Intervention Team.

The System will restrict users to only the areas of the functionality that they are allowed to see.

The following user categories form an Escalation hierarchy for the processing of Referrals:

- Border control officers should only be able to view the list of alerted Referrals to be actioned by their airport, qualified by a time range within which the journeys associated with these Referrals must arrive/depart ('active' referrals);
- Border control managers should be able to view all active and historic alerted Referrals associated with the airport in which they work.
- Users are also able to generate statistics:
- Interrogation of Traveler information - this returns the total number of Traveler items for which a Watch List search has been performed, for each Carrier for each route specified by the user;
- Evaluation of Traveler information - this returns the number of Matches returned by the Watch Lists which resulted in any Referrals;
- Referral generation - this returns the number of Referrals generated for Travelers of each nationality originating/terminating in each country on each Carrier on each route specified by the user;
- Referral handling - this returns the number of Referrals which were opened before Escalation, escalated and closed.

4. Manage Profiles

This process is implemented using the Second Party Profiler module within the Risk Management application.

The Second Party Profiler module provides a browser-based user interface that allows the First Party administrator to create and maintain Profiles within the System. Each Profile contains a set of characteristics about a Traveler and their travel arrangements and allows the Risk Manager Module of the System to find Travelers who conform to those characteristics.

The Profiler module includes a facility for a Profile administrator to be able to model the effects of changing various parameters for an existing flight in order to see how this changes the Passenger matching.

The administrator is also able to view statistics reports on the usage.

A Profile is composed of the following information:

- Name of Profile
- Description
- Series of conditions
- Threshold value
- Recommended action
- Status: disabled (default) and enabled.

The Profile allows the user to specify several conditions, with an associated weight for each one.

The Assess Risk by Traveler process of this Module will query the Profiler module with names of Travelers for checking against the Profiles and receive a positive response if the Traveler is a possible Match or a negative response if there is no Match.

When a risk assessment is performed for a Traveler on a flight, the System compares each condition against the Traveler data for the flight. For each matching condition, the associated weights are summed and the total is compared against the Profile threshold. If the total is greater than or equal to the threshold, then a Profile Hit is generated.

5. Manage Watch List

This process is implemented using the Second Party Watchlist module within the Risk Management application.

The process provides a browser-based user interface that allows an authorized user to maintain both the Watch List and Cleared Document List.

The Watch List comprises a list of people who are wanted by First Party.

The Cleared Document List enables First Party officials, who have intercepted a Traveler and found them to be clean, to enter the Traveler's document details on the System. This means that a Traveler has been cleared versus specific Watch List record(s) and will not be detained for the same reason the next time they fly.

The Assess Risk by Traveler Identity process will query this module with names of Travelers for checking against the Watch List. It will receive a positive response, if the Traveler is a possible Match to one of the people on the Watch List, or a negative response, if there is no Match or the Traveler is on the Cleared Document List.

The response back to the Assess Risk by Traveler Identity process may contain one or more possible Matches and includes information such as the Match level (expressed as a percentage score known as the confidence level) and details of the wanted person matched.

6. Assess Risk by Traveler Profile

This process compares all of the Travelers on a flight against a particular Profile. For each Traveler that matches the criteria in the Profile a Profile Hit is generated and attached to a Referral record for the Traveler. The process may be run automatically by the System (for new Travelers) or manually by a security analyst (for historic Traveler data as well as new Travelers).

7. Assess Risk by Traveler Identity

The process compares a Traveler against Watch Lists by making calls to the Manage Watch List process. For each Match against Watch List a Watch List Hit is generated and associated with a Referral record for the Traveler.

Depending on rules pre-defined by the First Party, the Hits may be of such importance that they are automatically qualified by the System and the Referral passed to the Intervention Team. Otherwise, the Hits will be given an unqualified status, pending action by a data analyst who will qualify the Hit in or out.

Schedule 3 – Implementation Schedule for Border Services

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1. Delivery Approach
2. Delivery Activities and Timeline
3. Acceptance
4. Roles and Responsibilities
5. Governance
6. Delivery Methodology and Tools
7. Appendix A - Responsibility Assignment Matrix (RACI)
8. Appendix B - Change Control Procedure

1. Delivery Approach

1.1 Second Party will deliver the Services described in Exhibit 1 Schedule 2 according to the approach described in this Exhibit 1 Schedule 3.

1.2 The Project will be delivered in the following phases:

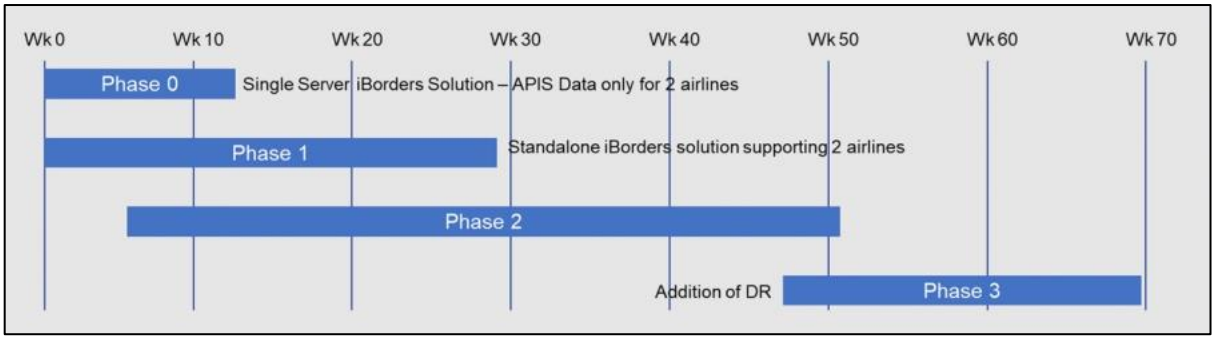
1.2.1 Initiation - that is the period between satisfaction of the Condition Precedent and Project Kick-Off and is assumed to be three elapsed weeks. Project Kick Off is week zero of the plan.

1.2.2 Implementation Phase 0 (Interim single server solution) – this will commence at kick-off and run for fourteen weeks.

1.2.3 Implementation Phase 1 - this will commence at Project Kick-Off and run for Twenty-Seven weeks.

1.2.4 Implementation Phase 2 – this will commence once the design phases for Phase 1 has completed and the First Party has greater familiarity of the base solution being delivered. Phase 2 has significant dependencies upon the developments by the First Party. It has been assumed that this phase will complete by week 53. Any changes to this date would be confirmed through the change management.

1.2.5 Implementation Phase 3 is planned to complete seventy weeks after Project Kick-Off.



1.3 Service and Support will commence on completion of Phase 0 and will run for duration of the contractual engagement. The full-service level agreement will commence on completion of the phase 3 DR component

1.4 The activities and deliverables for Initiation, Phase 0, Phase 1, Phase 2 and Phase 3 are set out in this Exhibit 1 Schedule 3.

2. Delivery Activities and Timeline

2.1 The activities that Second Party will undertake in delivery of the Services are listed in the tables below.

INITIATION				
Activity	**Start**	**Action(s)**	**Complete**	**Responsibility**
Conditions Precedent is satisfied or waived	Week -2	As per the definition of the Conditions Precedent in the Terms and Conditions of the contract	Week -2	Second Party and First Party
Second Party and First Party assign project managers	Week -2	Name and information of each manager	Week -1	Second Party and First Party
Project Management Agreement	Week--1	The project stakeholders will agree on the functions and responsibilities of the personnel, the communication, risk management during the implementation of the project, administration of changes, and the reference base of the macro project schedule	Week 0	Second Party and First Party

2.2 Phase 0 (Interim single server solution)

Phase 0 will last a period of 14 weeks at the end of which a basic iBorders system running on a single server will be cutover into operation. The solution will be housed in Second Party's core server room at the airport and will use security internet connectivity for connection to Second Party's government gateway to provide APIS data from 2 airlines.

PHASE 0				
Activity	**Start**	**Deliverable(s)**	**Complete**	**Responsibility**
Start of Phase 0 (kick-off meeting)	Week 1	Initial meeting to start the project, which will include Second Party and First Party personnel that are involved in the project to discuss the reach, plan, functions, and responsibilities, etc.	Week 1	Second Party and First Party
Detailed Design	Week 1	Detailed Design Document covering hardware specification and configuration and Software Configuration for initial Build. Validated requirements for initial iBorders Implementation	Week 3	Second Party and First Party
Design sign-off	Week 3	Signed off requirements for Phase 0 of the system	Week 3	First Party
Procurement of Hardware and Software	Week 1	Purchase of all HW and SW required for Phase 0	Week 7	Second Party
Procurement of network	Week 1	Order Internet Connectivity for Second Party Server Room at Airport	Week 7	Second Party
Airline Briefing	Week 3	Phase 0 Airlines Briefed by the Government (with Second Party support) APIS, passive APP and PNR	Week 3	First Party
Training Plan	Week 5	Training Plan Agreed for iBorders training Single Group of up to 5 to be trained in basic solution operation	Week 5	Second Party and First Party
Start of Carrier Certification	Week 7	APIS Certification for 2 airlines.	Week 11	Second Party and First Party
Installation of iBorders System	Week 7	Installation of the iBorders system on site in Kuwait	Week 9	Second Party
Training Delivery	Week 9	Training Delivered in accordance with the Service Schedule	10	Second Party and First Party
System and end-to-end testing of iBorders	Week 10	System and end-to-end testing	Week 12	Second Party and First Party
Final Acceptance Testing of the integrated solution	Week 12	Delivery of the integrated solution, training on the system usage, production validation test, and Certified Acceptance.	Week 13	Second Party and First Party
Go Live Phase 0	Week 13	Interim Single Server Solution providing access to APIS data for 2 airlines	week 14	Second Party

2.3 Phase 1 – Core System

Phase 1 will last a period of 30 weeks at the end of which a basic iBorders system will be cutover into operation. The basic system will have all software components installed however some will be disabled e.g. no negative boarding will be enabled and no black list data loaded.

PHASE 1				
Activity	**Start**	**Deliverable(s)**	**Complete**	**Responsibility**
Start of Phase 1 (kick-off meeting)	Week 1	Initial meeting to start the project, which will include Second Party and First Party personnel that are involved in the project to discuss the reach, plan, functions, and responsibilities, etc.	Week 1	Second Party and First Party
Detailed Design	Week 1	Detailed Design Document covering hardware specification and configuration and Software Configuration for initial Build. Validated requirements for initial iBorders Implementation	Week 3	Second Party and First Party
Design sign-off	Week 3	Signed off requirements for Phase 1 of the system	Week 3	First Party
Procurement of Hardware and Software	Week 2	Purchase of all HW and SW required for Phase 1 and 2	Week 11	Second Party
Procurement of network	Week 2	Order WAN links	Week 15	Second Party
Data Centre Ready	Week 2	The Data Centre needs to be ready for hosting the iBorders solution	Week 2	First Party
Airline Briefing	Week 4	Phase 1 Airlines Briefed by the Government (with Second Party support) APIS, passive APP and PNR	Week 4	First Party
Training Plan	Week 5	Training Plan Agreed for iBorders training Recipient Groups Identified along with training facilities	Week 5	Second Party and First Party
Start of Carrier Certification	Week 9	Start of the APP and PNR certification process of airlines, API information transmission acceptance test, production validation test, and Certified Acceptance of the First Party.	Week 22	Second Party and First Party
Installation of iBorders System	Week 19	Installation of the iBorders system on site in Kuwait	Week 22	Second Party

Training Delivery	Week 19	Training Delivered in accordance with the Service Schedule	Week 24	Second Party and First Party
System and end-to-end testing of iBorders	Week 22	System and end-to-end testing	Week 25	Second Party and First Party
Final Acceptance Testing of the integrated solution	Week 25	Delivery of the integrated solution, training on the system usage, production validation test, and Certified Acceptance.	Week 26	Second Party and First Party
Go Live Phase 1	Week26	System in Production and first two airline data available (1 week later)	week 27	Second Party

2.4 Phase 2 – System Extension

Phase 2 will commence after the Phase 1 design is complete and is planned to complete after 38 weeks. Phase 2 will cover the integration of the iBorders solution with external data sources through EMR as when as the implementation of Risk Tracker. Airline certification will also continue during this period. Note that most of these activities are subject to First Party readiness as defined in Schedule 5 – First Party Responsibilities.

PHASE 2				
Activity	**Start**	**Deliverable(s)**	**Complete**	**Responsibility**
Start of Phase 2	Week 7	Phase 2 kick-off meeting which will includes Second Party and First Party personnel that are involved in the phase 2 of the project to discuss the reach, plan, functions, and responsibilities, etc.	Week 9	Second Party and First Party
Detailed Design	Week 7	Detailed Design Document for phase 2	Week 13	Second Party and First Party
Issue Airline Mandate (Phase 2)	Week 14	Reconfirm Formal letter to the airlines from the government requiring them to provide APP, PNR and DCS data and make aware of per passenger charge	Week 16	First Party
Airline Briefing (Phase 2)	Week 15	Phase 2 Airlines Briefed by the Government (with Second Party support) APIS, passive APP and PNR	Week 17	First Party
Continuation of Airline Certification	Week 15	Certification of remaining airlines	Week 44	Second Party
Requirements Definition	Week 15	Clear set of requirements for each interface	Week 19	Second Party and First Party

High Level Solution Design	Week 19	Design Specification	Week 21	Second Party and First Party
Technical Definition and Planning	Week 21	Detailed Solution Design Detailed Implementation Plan	Week 23	Second Party and First Party
Implement Interfaces	Week 23	iBorders Interfaces provided as per technical specification	Week 45 or later	Second Party
Integration Testing	Week 45 or later*	Interfaces working with First Party systems (Dependency on First Party completing their development/testing).	Week 48 or later*	Second Party and First Party
Training Delivery	Week 45	Training for additional functionality within Phase 2	Week 48	Second Party and First Party
End to end full system testing	Week 48 or later*	iBorders interfaced to external systems Acceptance Test Complete and signed off for go live	Week 51 or later*	Second Party and First Party
Transition to Production	Week 51 or later*	Phase 2 components transitioned	Week 52 or later*	Second Party and First Party
Phase 3 Go Live	Week 52 or later*	Phase 2 components operational	Week 53 or later*	Second Party and First Party
Closure of project	Week 53 or later*	Not expected to be later than week 53, but can be earlier – see project close section below	Week 53 or later*	Second Party

2.5 Phase 3 – Disaster Recovery

Phase 3 is for the delivery of the Disaster Recovery Capability. Note that most of these activities are subject to First Party readiness as defined in Exhibit 1 Schedule 5 – First Party Responsibilities.

PHASE 3				
Activity	**Start**	**Deliverable(s)**	**Complete**	**Responsibility**
Start of Phase 3	Week 43	Phase 3 kick-off meeting which will includes Second Party and First Party personnel that are involved in the phase 3 of the project to discuss the reach, plan, functions, and responsibilities, etc.	Week 43	Second Party and First Party
Detailed Design	Week 43	Detailed Design Document covering hardware specification and configuration and Software Configuration for DR	Week 46	Second Party and First Party
Procurement of Hardware, Software	Week 46	Confirmation of any changes to hardware and software required for DR	Week 46	Second Party

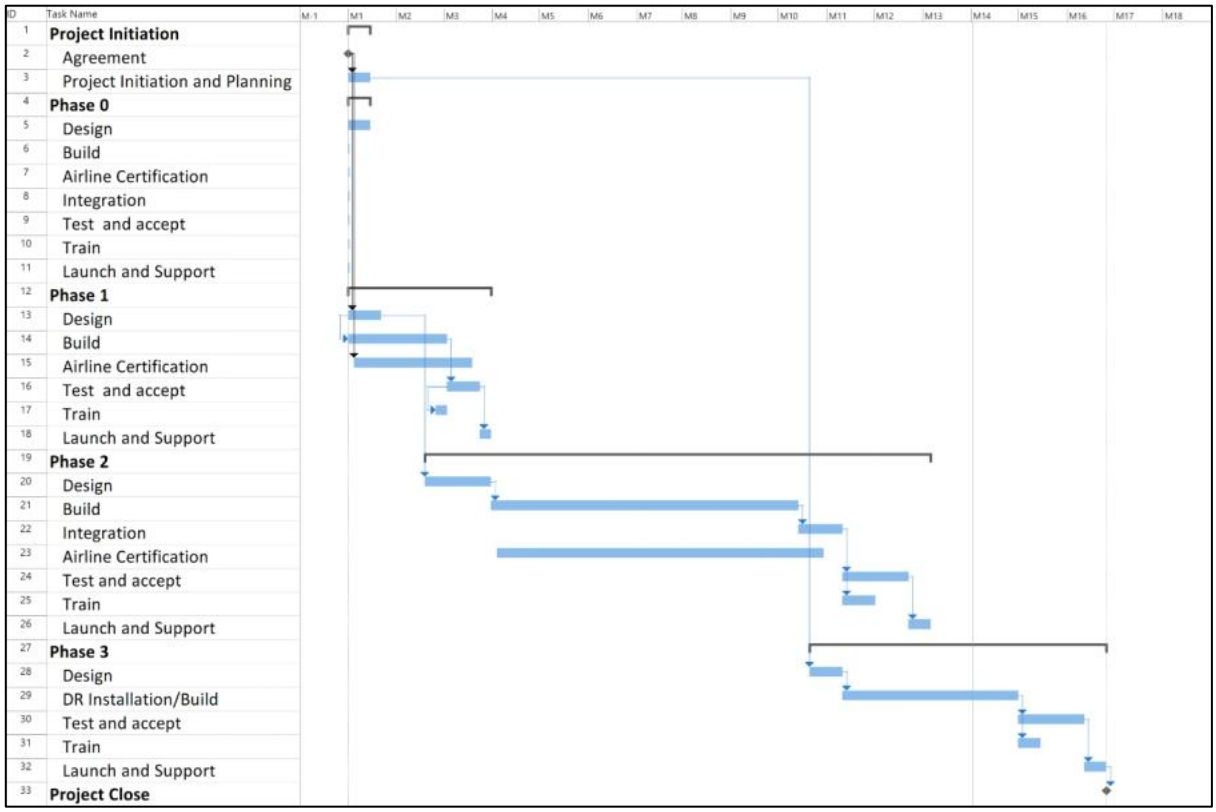
Data Centre Ready	Week 46	The DR Data Centre needs to be ready for validation of the hardware orders including First Party network requirements	Week 47	First Party
Installation of iBorders System	Week 46	Installation of the iBorders DR site in Kuwait	Week 62	Second Party
System and end-to-end testing of iBorders	Week 62	System and end-to-end testing, including failover testing	Week 66	Second Party and First Party
Training Delivery	Week 62	Training covering support for DR aspects of deployed solution as part of service transition	Week 64	Second Party and First Party
Final Acceptance Testing of DR environment include DR failover testing	Week 68	Delivery of the DR capability	Week 69	Second Party and First Party
Go Live Phase 3	Week 69	System including DR in Production full set of airlines certified for operation	Week 70	Second Party
Closure of project	Week 70 or later*	Project closed down with full handover to operations complete.	Week 70 or later*	Second Party

* Phase 3 includes the addition of interactive API and interfaces to external systems to be confirmed by the First Party. The high dependency upon the First Party therefore means that these dates are approximate and will be refined during the design and specification phase of this project. However, it is assumed that this phase will complete by week 53. Any changes to this assumed phase end date will be subject to formal change control with mutual consent from both Second Party and the First Party

* Closure project assume that all phases have signed off. Any changes to this timeline, in particular given the high level of First Party dependency in phase 2 of this project means that any changes to this closure date will be subject to formal change control and mutual agreement between Second Party and the First Party.

2.6 From completion of Phase 3, Second Party will provide the ongoing Services as defined in Schedule 4. Phase 1 will result in an operational system but without the resilience that will be delivered through the DR solution.

2.7 The high-level schedule for the above activities is summarized in the Gantt chart below



3. Carrier Certification

3.1 APP Data

3.1.1 Phase 1: Mandate and Planning

3.1.1.1. Upon receipt of the complete Service Indication Form, Second Party will engage with the carrier's contacts to agree on the method to be used for provision of the required data. Different methods may be used for different routes.

3.1.1.2. Carriers which submit APP transactions to other countries and do not require any further changes to their systems may, at Second Party's option, be declared ready for certification without the need to undergo Phase 2.

3.1.1.3. First Party defines a multi-stage escalation process that can be used to ensure carrier conformance to the requirements to provide the required data.

3.1.2 Phase 2: Implementation

3.1.2.1. The carrier IT department or system services vendor implements any changes required for the carrier systems to comply with the agreed submission methods. If the carrier is a user of the Second Party DCS (Departure Control System) system, Second Party will perform these changes on the Second Party DCS system

3.1.2.2. Second Party and carrier will work together to establish and test any network configuration required to communicate the carrier's systems with the iBorders Government Gateway (both Test and Production) if needed

3.1.2.3. Once communication links have been established, the carrier may send test transactions, as defined in the certification plan to the iBorders Test Government Gateway

3.1.3 Phase 3: Testing and Certification

3.1.3.1. Upon notification from the carrier that all required implementation work has been completed (readiness for certification), Second Party will allocate a time for certification testing.

3.1.3.2. Carrier runs certification test cases, while Second Party and First Party monitor results and movement records.

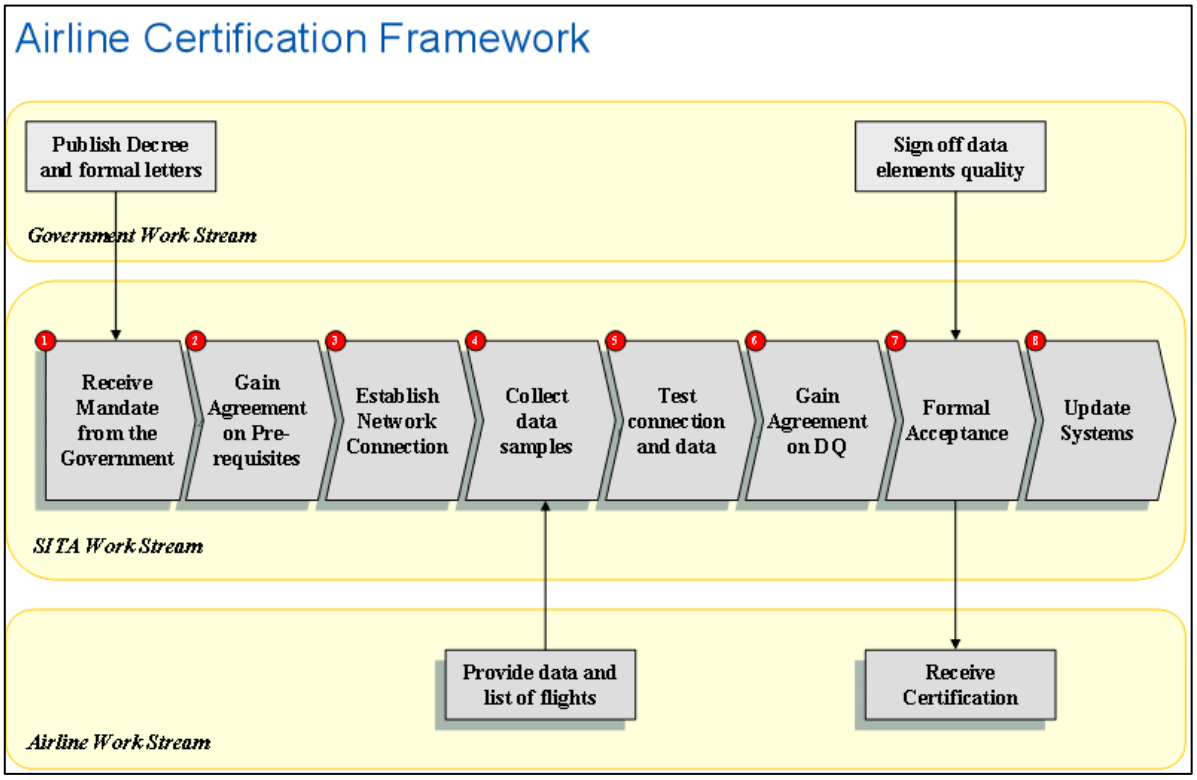
3.1.3.3. Any errors found will be corrected by the carrier and re-tested until all mandatory test cases are successful.

3.1.3.4. If all test cases are successful, carrier signs-off that the system is working correctly from carrier perspective, and First Party signs off that the system is working correctly from government perspective.

3.1.3.5. First Party issues a formal letter to the carrier confirming APP certification is complete.

3.1.3.6. First Party will schedule a date and time at which Second Party will activate the carrier for submission of APP transactions on the Production system.

3.2 APIS, PNR & DCS Data



3.2.1 Stage 1: Mandate and Planning

3.2.1.1. Second Party receives the completed Service Indication Form from carrier as a result of Government mandate

3.2.2 Stage 2: Gain Agreement on Pre-Requisite

3.2.2.1. Second Party contacts key carrier references (Ground Procedure Manager, Security Manager, IT Manager, etc.)

3.2.2.2. Second Party agrees with the carriers on the method of data transfer, data format and the connection type

3.2.3 Stage 3: Establish Network Connection

3.2.3.1. Agree on the transmission mean and depending on this:

3.2.3.2. provide the carrier with the VPN request form to be completed

3.2.3.3. if the carrier already has access to the Second Party's IP network, then, the carrier will submit a service change/update request to Second Party

3.2.3.4. agree on other communication protocols

3.2.3.5. Provide the carrier with the parameters of Second Party's MQ and/or Type-B message receiver server

3.2.4 Stage 4: Collect Data Samples

3.2.4.1. Second Party collects from each carrier a first test message

3.2.4.2. Second Party creates a list of all flights meeting the requirements

3.2.4.3. Second Party collects a sample message for each carrier/Departure Control System (DCS) / Reservation System/

3.2.5 Stage 5: Test Connection and Data

3.2.5.1. Test connection: Second Party tests the connection by using a sample message sent by the carrier.

3.2.5.2. Test data: Second Party reads the message and evaluates the quality of all required fields and injects message in iBorders on Test Environment

3.2.6 Stage 6: Gain Agreement on Data Quality

3.2.6.1. Second Party organizes a meeting between the First Party, the carrier and Second Party to discuss and agree the data elements availability and quality

3.2.6.2. In case not all data elements are available at the go-live date, agree on a baseline for additional data elements to be provided.

3.2.7 Stage 7: Formal Acceptance

3.2.7.1. Second Party requests formal acceptance from the First Party on the carrier's data compliance with the requirements.

3.2.8 Stage 8: Update the iBorders

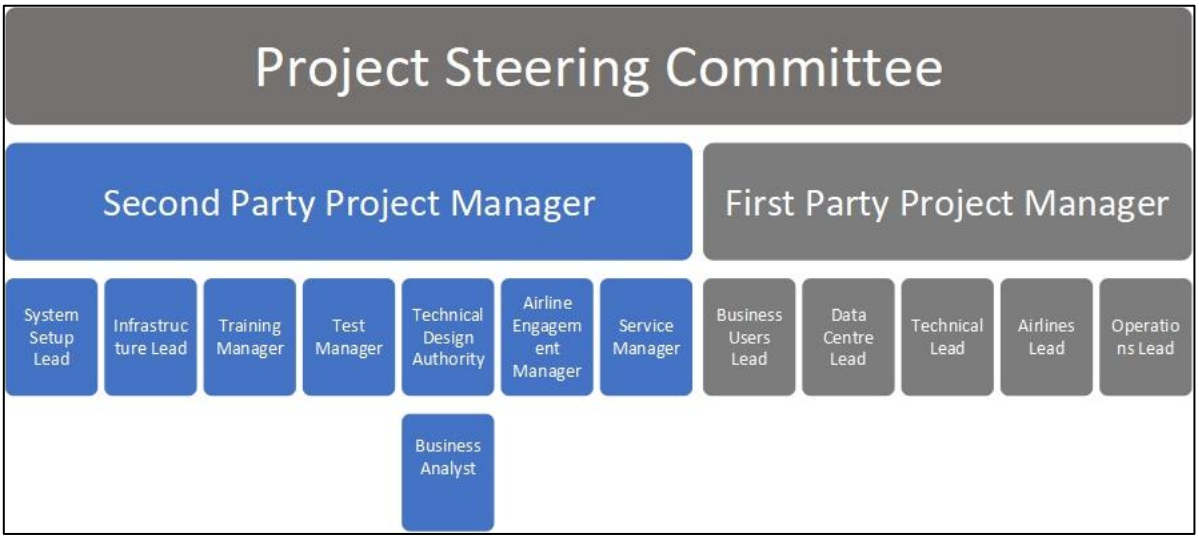
3.2.8.1. First Party / Second Party add all certified flights in the allowed flight list for iBorders.

4. Acceptance

4.1 The acceptance criteria for the services to be delivered within this schedule are defined in Exhibit 1 Schedule 2 to this Agreement.

5. Roles and Responsibilities

5.1 The structure of the Second Party team is shown in the following organization chart:



5.2 The roles identified within the above structure will have clear responsibilities across the project lifecycle as identified in the table below:

		Airport Management system									Customer					
Phase	Activity	Project Manager	System Setup Manager	Infrastructure Lead	Technical Design Authority	Airline Engagement Manager	Service Manager	Training Manager	Business Analyst	Test Manager	Project Manager	Business Users Lead	Technical Lead	Data Centre Lead	Airlines Lead	Operations Lead
Initiation	Project Startup															
Project	Kick off															
	System Definition															
	Project Plan															
	Project Schedule															
	Test And Acceptance															
	Training Plan															
	Transition Plan															
Execution	Solution Configuration															
	Infrastructure Setup															
	Airline Engagement															
	System Deployment															
	Training															
	Acceptance															
	Transition															
Closure	Handover															
	Closedown															
Control	Weekly Updates															
	Monthly Updates															

5.3 Project Steering Committee

Consists of senior members from First Party side as well as the following members from Second Party:

- Second Party Project Delivery Director
- Second Party Account Manager
- Second Party Business Development Director

5.4 Project Manager

Assigned Project manager from Second Party and First Party who will be responsible for overall project management. The Project Manager is expected to be the main point of contact for each party, and each project manager is expected to coordinate and work with their teams.

5.5 Other Team Members

Second Party	First Party	Duties
Second Party Technical Design Authority	Technical Manager	Ownership of technical solution, both from individual organization as well as the integrated solution
Infrastructure Manager/Engineer	Data Centre Manager	Hardware delivery and integration including networks
Business Analyst	Business User Representative	Confirmation of solution configuration and support of change plan to ensure successful integration into First Party operation
Second Party Airline Engagement Manager	Airline Manager	Liaison with airlines to co-ordinate provision and certification of data feeds to iborders solution
Network Specialist	Network Manager	Delivery and configuration of network assets including the setup of queues
Second Party Service Manager	Operations Manager	Service Definition, receipt of services into operation and service delivery
Business Users Manager	Training Manager	Upskilling of First Party teams in the use and support of the iborders solution

5.6 The First Party shall be responsible for the following:

5.6.1 The provisions of a First Party Project Manager whose responsibilities will be the following:

5.6.1.1. Be the main point of contact for Second Party Project Manager to discuss day to day issues and actions

5.6.1.2. Manage the First Party project team to assure availability of the appropriate resource at the correct time as required by Second Party

5.6.1.3. Provide advice and guidance to the Second Party Project Manager on the involvement of all stakeholder groups

5.6.1.4. Ensure that First Party dependencies are met in accordance with Exhibit 1 Schedule 5.

5.6.1.5. Arrange and facilitate Change Management Process through governance

5.6.1.6. Ensure that Second Party Project Team have access to systems, tools and facilities as required to execute the project

5.6.1.7. Schedule regular, and any ad-hoc, meetings in line with agreed governance process.

5.6.1.8. Liaise with appropriate personnel to ensure necessary business practices are modified as necessary

5.6.1.9. Arrange Training facilities and attendees as required

5.6.1.10. Provide a consolidated set of First Party review comments where document comments are required.

5.6.2 First Party Technical Lead

5.6.2.1. Ensure availability of Data Center to host Second Party System

5.6.2.2. Manage and report on the First Party infrastructure and application acceptance activities

5.6.2.3. Ensure First Party (and other applicable First Party agencies) security requirements are communicated to the Second Party Project Manager

5.6.2.4. Ensure First Party (and other applicable First Party agencies) IT policies and standards are communicated to the Second Party Project Manager

5.6.3 First Party Business User Lead

5.6.3.1. Ensure authorized Users and technical requirements are clear

5.6.3.2. Ensure that authorized Users are aware of any planned process changes

5.6.4 First Party Airline Engagement Lead

5.6.4.1. Work with the required parties to issues the mandate letter to the airlines

5.6.4.2. Organizes and manages airline briefing sessions

5.7 A RACI Matrix is included as Appendix A to this schedule for guidance and information on the respective roles of the combined project team.

6. Governance

6.1 Fortnightly Project progress meeting (either in person or teleconference call) shall be arranged by Second Party with key representatives of Second Party and the First Party in attendance and cover:

6.1.1 Update and receive a formal Monthly Project Report prepared by the Second Party Project Manager

6.1.2 Report on stakeholder participation and communication, benefits realization and change management activities for Kuwait iBorders implementation

6.1.3 Appropriate communication about the Project and its impact to other parts of the First Party organization and external stakeholder groups

6.1.4 Brief other senior stakeholders on the status of the Project

6.1.5 Consider recommendations and authorize future actions on the project

6.1.6 Manage key risks and issues highlighted in the Risk Register referred to in Section 6.4

6.1.7 Review project progress at a high level (schedule, financial, risks, issues)

6.1.8 Identify and support any remedial action as required (e.g. resourcing, external stakeholder management)

6.1.9 Review and provide decisions on change requests

6.1.10 Attendees at this meeting would typically include:

- Second Party Project Manager
- Second Party First Party Service Manager
- First Party Project Manager
- First Party Project Sponsor
- Others as required from time to time.

6.2 The Monthly Project Report will include the following topics:

6.2.1 Status of the activities compared to plan

6.2.2 Open risks and any mitigation and contingency plans

6.2.3 Open issues

6.2.4 Planned achievements of Milestones

6.2.5 Status of Change Notes

6.2.6 The Second Party Project Manager will document the meeting and circulate minutes and actions.

6.3 It is recommended that there will be a Quarterly Project Steering Group with key senior representatives of the Supplier and the First Party in attendance that shall have the following key responsibilities:

6.3.1 Ensure continued strategic alignment of the iBorders project with the business objectives

6.3.2 Resolve any issues escalated by the Monthly Project Progress Meeting

6.3.3 Ensure Stakeholder engagement is

6.3.4 Ensure internal First Party communications to achieve support of users and related stakeholders.

6.3.5 Attendees at this meeting would typically include:

- Second Party Project Manager
- Second Party Project Sponsor
- Second Party Account Manager
- Second Party First Party Service Manager
- First Party Project Manager
- First Party Project Sponsor
- Key First Party Stakeholders.

6.4 During the Service there will be a monthly service report produced by the Second Party CSM as described in Schedule 4.

7. Delivery Methodology and Tools

7.1 Second Party's Project Management Methodology is based on the Project Management Institute's (PMI) Project Management Book of Knowledge PMBOK Guide. The First Party, and Second Party will establish a project delivery focused PMO that acts as the central body for coordinating and communicating the iBorders project delivery activities with teams and stakeholders.

7.2 The Second Party Project Manager will be responsible for managing an Issue Resolution Process where an issue can be defined as a point or matter in question or in dispute.

7.2.1 A project issue log will include a record of all issues raised throughout the project including details such as status, priority and activities in progress to close the issue. The issue log will be maintained and managed by the Second Party Project Manager.

7.2.2 The Project Issue Log will be completed during the initial Risk Workshop and subsequently reviewed and maintained during the weekly and monthly project meetings.

7.2.3 Issues will be allocated an owner and the issue log will be updated and distributed to project team members and appropriate stakeholders on a fortnightly basis. High priority issues will be escalated in a timely manner appropriately, according to the escalation path shown in the following section.

7.3 In the event the Project Team cannot resolve an issue then the following escalation process will be invoked.

Step	Task	Responsible	When
1	Issue identification by any project work stream	Stakeholder/team member	Ad hoc
2	Email issue to the Project Managers for triage and tracking.	Person identifying issue	As soon as possible
3	Examine newly identified issue and determine if immediate escalation is necessary (see step 5) or if the issue can go through standard resolution process (see step 4).	Project Managers	Daily
	All issues will be discussed at project meetings and triaged, tracked and resolved. Decision Project Issue Executive Committee Issue If issue is time sensitive and has immediate impact on project schedule, cost, and direction, issue escalation will be initiated (see step 5).	Project Status meeting attendees Project team Project Steering Committee Project Managers	Weekly Meeting Weekly Meeting Monthly Meeting As Needed

4	Email issue description, summary and reason for escalation to: Project Management team, and APP Steering Committee Chair. Schedule issue escalation conference call with recipients of escalated issue email.	Project Manager Project Manager	Within 24 hours of issue being escalated Within 24 hours of issue being escalated
5	Schedule issue escalation conference call with recipients of escalated issue email.	Project Manager	Within 48 hours of issue being escalated

7.4 Second Party will manage risks within a Risk Management Methodology that will proactively address and manage risks.

7.4.1 The Risk Management methodology is based on the Project Management Institute (PMI®) Project Management Body of Knowledge (PMBOK®). It is built upon six processes to manage risks as shown in the diagram below

7.4.2 The initial Risk Management workshop held in conjunction with the Project Kick-off and with the aim of confirming the risks on the central register and qualitatively assessing them. Risk responses will also be determined

7.4.3 The Project Risk Register will be subsequently reviewed and maintained during the weekly and monthly project meetings.

7.5 In the event that a change of scope is identified then the change shall be processed according to Appendix B – Change Control Procedure

8. Appendix A - Responsibility Assignment Matrix (RACI)

The following RACI matrix is provided to identify the responsibility for and expected contributions to the activities and deliverables to be produced during this project.

In the diagram below each row represents a key task in the project, and each column represents a project participant. The cells have R, RA, A, C, I, or are left blank, to symbolize:

R = Responsible – responsible to get the job done: 'the doer'
A = Accountable – ensures that the job is performed and reports on it: 'the manager'
C = Consulted – has critical information or expertise that is necessary to complete the work: 'the expert'
I = Informed – must be notified of progress and results but need not be consulted: 'needs to know'.

			Airport Management system									Customer					
Phase		Task Name	Project Manager	System Setup Manager	Infrastructure Lead	Technical Design Authority	Airline Engagement Manager	Service Manager	Training Manager	Business Analyst	Test Manager	Project Manager	Business Users Lead	Technical Lead	Data Centre Lead	Airlines Lead	Operations Lead
Initiation		Critical Success Factor Review	A,R		A,R							R					
		Resource assignment			A,R							R					
		Confirm project governance			A,R							R					
Planning	Startup	Project Kick-off meeting			A,R												
		System Optimisation Review	C	R	R	A,R				R		C	R	R	R		
		Data Centre Readiness Confirmation			R	R								R	A,R		
		Confirmation of BOM	C		A,R	R						C		R	R		
	Finalise Initial Project Management Plan	Project Plan	A,R	C	C	C	C	C	C	C	C	R	C	C	C	C	C
		Project Schedule	A,R	C	C	C	C	C	C	C	C	R	C	C	C	C	C
		Test and Acceptance Plan (Standard Plan)	R		C	C	C			C	A,R	R	R	C			C
		Training Plan (Standard Plan)	R		C	C	C		A,R	C		R	R				
		Transition Plan (Standard Plan)	R		C	C	C	A,R		C		R					R
Execution	Solution Configuration	System Configuration and VM build		A,R	C	C							C	C	R		
	Infrastructure Setup	Hardware Ordered	C		A,R												
		Hardware Delivered	C		A,R	C								C	R		
		Hardware Setup	C		A,R	C								C	R		
	Airline Engagement	Airline Mandate					C									A,R	
		Airline Briefing	I				A,R					I				R	
		Airline Certification					A,R			C	R		C			R	
	System Development	System Setup and Config		A,R	C	C							C	C	R		
		External Integration	A,R	R		R						R	C	R			
		SITA Testing									A,R						
	Training	Training	C						A,R	C		C	R	C			
	Acceptance	Ready for Customer Testing	A,R			C				C	R	R	R	C			
		UAT	A,R			C				C	R	R	R	C			
	Transition	Go Live	A,R					R		C	R	R	C		R		R
		Complete Transition	A,R					R				R			R		R
Closure		Complete Handover to operations	R		C	C		A,R		C	C	R	C				R
		Review project and confirm signoff on all deliverables	A,R	C	C	C	C	R	C	C	R	R	C	C	R	C	R
		Project Closedown	A,R	C	C	C	C	C	C	C	C	R	C	C	C	C	C
Control		**Monthly Steering**	A,R	C	C	C	C	C	C	C	C	R	C	C	C	C	C
		Weekly Report	A,R	C	C	C	C	C	C	C	C	R	C	C	C	C	C
		Project Kickoff	A,R	C	C	C	C	C	C	C	C	R	C	C	C	C	C
		Delivery Kickoff	A,R	R	R	C	C	C	C	C		R	C	R	R	C	C
		Acceptance Sign-off	R	C	C	C	C	R		C	R	A,R	C	C	R	C	R
		Transition Review	A,R	C	C	C	C	R		C	R	R	C	C	R	C	R
		Project Closedown	A,R		A,R	C	C	R				R		C	R	C	R

9. Appendix B - Change Control Procedure

9.1 The purpose of a Change Request is to document, track, and control any changes to the contract or adjustments to the agreed scope of work for the project implementation. A change may or may not impact the cost or schedule of the project. The Change Request process provides a documented trail of changes, and provides information for the assessment of time, resource availability, and cost impact of the change (if any). Change Requests may also be used to document the add or removal of functionality or an increase or reduction in cost.

9.2 First Party personnel with the appropriate authority or their nominated delegate may at any time request, and Second Party may at any time recommend, changes or additions to the Services.

9.3 All changes for Second Party provided services will adhere strictly to Second Party's standard Change Control process for each of the services

9.4 A change request should be submitted to Second Party in writing, with the following details:

9.4.1 name and contact details of person requesting the change;

9.4.2 description of change;

9.4.3 origin of and reason for change;

9.4.4 reference documentation;

9.4.5 assumptions;

9.4.6 details of change;

9.4.7 impact of change (including but not limited to impact on milestones and timescales);

9.4.8 impact on terms and conditions; and

9.4.9 supporting details relevant to the specific change action using the format above.

9.5 Neither party shall be obliged to agree to any request or recommended change but neither party shall unreasonably withhold its agreement to such request, in accordance with the System Optimization Study.

9.6 Second Party shall advise First Party of any impact of any requested or recommended change on the price and timescales.

9.7 Out of scope changes will be charged at the prevailing Second Party Time and Materials rate as mutually agreed.

9.8 Until such time as any change is formally agreed, Second Party shall continue to perform and to be paid for the Service as if such change had not been requested.

9.9 The parties shall respond in writing to, or shall meet to discuss, any requested or recommended change as soon as practicable, and in any event within 7 days following receipt of the request or recommendations.

Any agreement to a requested or recommended change shall become valid as an amendment to the Agreement only when recorded in writing and signed by authorized representatives of both parties.

CR Number	CR		
Requestor Name		Date of CR request	
Requestor Company		Urgency 1=High / 2=Medium / 3=Low	
Requestor Email		Required Timeframe	
Requestor Contact Number			

Reason for Change Request* *(This section should contain the business reason for the CR and business objective e.g. Improving First Party Service, increasing revenue, cost saving.)*

Change Request Description* *(This section should contain detailed requirements, example workflows, example screen layouts (if possible), and other relevant information)*

Any further information* *(This section should contain additional relevant information such as initial impact analysis, dependencies, and assumptions)*

Second Party PM	
Second Party CSM	
Second Party CR Responsible	
Date Received	
Comments:	

جدول رقم 4 - جدول معدل مستوى خدمات الحدود

1. التعريفات

تكتسب الكلمات التالية المعاني المضمنة في هذا الجدول:

المعالجة المسبقة للمسافرين تعني الإعلان عن بيانات مستند الرحلة والراكب في الوقت الحقيقي.

شركة النقل تعني منظمة تنقل الركاب والبضائع بالطائرة.

بوابة شركة النقل تعني بوابة الكترونية مقدمة من الطرف الثاني كجزء من خدمة البوابة الحكومية الالكترونية للسماح لشركات النقل بتقديم البيانات المسبقة للركاب بشكل يدوي.

التغيير يعني إضافة أو تعديل أو إزالة أي خدمة أو مكون خدمة معتمد أو مخطط له أو مدعوم يؤثر على الخدمات.

غرفة العمليات تعني المركز الذي يستخدمه الطرف الاول للتفاعل مع الخدمات المتوفرة من قبل نظام الحدود.

الطرف المستفيد يعني الكيان القانوني الذي يتلقى الخدمة الموضحة في هذا الجدول (وزارة الداخلية الكويتية).

فترة التأجيل تعني الوقت المتراكم الذي لا يستطيع الطرف الثاني خلاله المضي قدمًا في حل أي حادث بسبب أحداث خارجة عن نطاق مسؤوليتها (بما في ذلك، على سبيل المثال لا الحصر، عدم توفر معلومات الاتصال بالطرف الاول المحلي، أو وقوع حادث خارج نطاق الخدمة ذات الصلة، أو أي حدث قوة قاهرة).

الفترة المتوقعة لتوفر الخدمة تعني الوقت المتوقع لتوفر الخدمات خلال فترة القياس، بعد خصم مدة فترات الصيانة المتفق عليها مسبقا.

الحادثة يعني فشلاً مزعوماً في تقديم جزء من الخدمات ويكون له تأثير مادي.

فترة القياس تعني شهراً تقويمياً واحداً.

سجل اسم الراكب يُعرف أيضًا باسم بيانات الحجز.

المشكلة تعني السبب أو السبب المحتمل لحادثة واحدة أو أكثر.

مستويات الأولوية تعني أولوية الحادثة التي تُصنف في أحد المستويات. ويتم إعطاء الأولوية للحوادث وفقًا للتعريفات التالية:

الأولوية	التعريف
الأولوية 1	تأثير خطير على العمل: فشل تام للنظام وانقطاع التطبيقات المهمة للأعمال التي تؤثر على جميع المستخدمين أو البوابات إلى الشبكات الشريكة. ليس هناك أي بديل أو حل.
الأولوية 2	تأثير كبير على العمل: انقطاع أو تدنّي مستوى الخدمة له تأثير على عمليات الطرف الاول وليس هناك خدمة بديلة.
الأولوية 3	تأثير على كفاءة العمل: ضعف في قدرة المستخدمين على القيام بعملهم. فشل نظام أو مكون ولكن مع توفر بديل في موقع الطرف الاول. الحادثة تؤثر على مستخدم واحد أو موقع واحد للطرف الاول. البديل أو الحل متاح.

الأولوية 4	تأثير أدنى على مستوى العمل: حادثة بسيط في البرامج أو الأجهزة أو المستندات لها تأثير ضئيل أو معدوم على المستخدم. تؤثر الحادثة على مستخدم واحد. حادثة بسيطة في الأجهزة أو البرامج في انتظار تصليح دائم مع توفر البديل أو الحل. تؤثر الحادثة على مكون أو إجراء أو تطبيق مدعوم ولكن غير أساسي.
الأولوية 5	ليس هناك أي تأثير على الأعمال: لا تؤثر الحوادث على الخدمة. التأثير على الطرف الاول غير موجود. (أمثلة: التشكيل أو تغيير الجدول مطلوب. طلبات المراقبة أو الاستخدام، إعداد الفواتير أو استفسار العملاء، مشكلة مزمنة تتطلب المراقبة).

مدة استعادة الخدمة تعني الوقت الذي يستغرقه مكتب خدمة الطرف الثاني (Second Party Service Desk) لحل حادثة بعد الإخطار بحدوثها.

مدة فترات الصيانة تعني فترة متفق عليها مع الطرف الاول لا تكون خلالها الخدمات متوفرة للأنشطة الضرورية مثل:

- تحميل البرامج، بما في ذلك تصحيحات التطبيقات وإعادة تشغيلها؛
- تحميلات الاتصالات؛
- التحديثات؛
- إعادة تنظيم قاعدة البيانات؛
- الصيانة الوقائية؛

توفر الخدمة يعني نسبة الفترة المتوقعة لتوفر الخدمة، المعبّر عنها كنسبة مئوية، وهي تمثل الوقت الذي تتوفر فيه الخدمات خلال فترة القياس. تظهر عينة من عملية الحساب في الفقرة 4.1 من هذا الجدول.

مدة تغطية الخدمات تعني الأوقات التي تنطبق فيها مستويات الخدمة على الخدمات. في حال عدم وجود ما يناقض ذلك، تكون فترات تغطية الخدمات أربع وعشرين ساعة، لسبعة أيام في الأسبوع.

2. وصف دعم الخدمات

2.1 سيقدم الطرف الاول الدعم من المستوى الأول والثاني والثالث لنظام iBorders طيلة المدة وفقاً لما هو مفصل أدناه:

2.2 المستوى 1: مكتب خدمة الطرف الثاني

سيوفر الطرف الثاني مكتباً محلياً للخدمة من المستوى 1، سيتواجد في البلد وسيكون بمثابة نقطة الاتصال الوحيدة للطرف الثاني لاجراء طلبات الدعم. ستكون طلبات الدعم هذه مرتبطة بمشاكل متعلقة بنقل البيانات أو التطبيقات أو الشبكات أو الأجهزة. سيتواصل فريق المستوى 1 باللغتين العربية والإنكليزية.

سيعمل مكتب خدمة الطرف الثاني لمدة 24 ساعة و7 أيام في الأسبوع على مدار العام.

2.3 الإبلاغ عن الحوادث

2.3.1 يجب على مستخدمي الطرف الاول الذين يواجهون المشاكل الاتصال بمكتب خدمة الطرف الثاني من خلال إحدى الطرق التالية:

2.3.1.1 الهاتف؛
2.3.1.2 البريد الإلكتروني؛
2.3.1.3 شخصياً (يقع موقع مكتب خدمة الطرف الثاني في موقع عمليات الطرف الاول)؛

2.3.2 سيتم الإبلاغ عن الحوادث نتيجة لواحد أو أكثر من الآتي:

2.3.2.1 إتصال شركات النقل بمكتب خدمة الطرف الثاني في ما يتعلق بمشاكل في بيانات API
2.3.2.2 نقطة اتصال بديلة للطرف الأول؛
2.3.2.3 مراقبة الخدمة الاستباقية؛
2.3.2.4 تغييرات طارئة في جدول رحلات شركة النقل؛
2.3.2.5 إدارة الحوادث وإدارة طلبات الخدمة؛
2.3.2.6 إدارة التصعيد.

2.3.3 يوفر الطرف الثاني خدمة إدارة الحوادث للتعامل مع الأحداث غير الطبيعية كما يلي:

2.3.3.1 من قبل الطرف الاول الذي يبلغ مكتب خدمة الطرف الثاني بالحادثة؛ أو
2.3.3.2 من قبل مكتب خدمة الطرف الثاني أثناء معالجة التنبيهات الناتجة عن نظام المراقبة الذي يراقب مكونات النظام.

2.3.4 سيقوم الطرف الثاني بتنفيذ الإجراءات التالية لمعالجة لحوادث:

2.3.4.1 التسجيل والتصنيف.
2.3.4.2 التتبع حتى الحل؛
2.3.4.3 تقديم تحديثات الحالة للطرف الاول؛
2.3.4.4 استخدام الموارد المناسبة للحل؛
2.3.4.5 التصعيد إلى مجموعات الحل ومستويات الدعم المناسبة (في الموقع أو عن بعد)؛
2.3.4.6 تحديد الأخطاء المعروفة والحوادث المتكررة، وتوفير حل بديل عند الاقتضاء؛
2.3.4.7 متابعة حالة الإجراءات التي اتخذتها مجموعات الدعم خارج الطرف الثاني ؛
2.3.4.8 التحقق من الإغلاق مع الطرف الاول؛

2.3.4.9 الرد على استفسارات المستخدم؛
2.3.4.10 بدء التواصل مع الطرف الاول أثناء المواقف الحرجة؛
2.3.4.11 الشروع في إجراءات التصعيد للحالات الحرجة ؛ و
2.3.4.12 إغلاق سجل الحادثة وتوثيق حل الحادثة.

2.4 المستوى 2- إدارة التحقيق في الحوادث والمشاكل

2.4.1 سيوفر الطرف الثاني فريق عمليات محلي من المستوى 2 سيتواجد بالقرب من مرفق الطرف الاول أو ضمنه مع إمكانية الوصول المباشر إلى الخدمة المشمولة.

2.4.2 سيوفر فريق العمليات المحلي هذا الدعم من المستوى 2 للتحقيق وحل فوري لجميع الحوادث التجاوبية والاستباقية.

2.4.3 يتم استخدام الوصول عن بعد إلى خوادم التطبيقات لتوفير الدعم عن بعد. ويتم تنفيذ ذلك باستخدام طريقة وصول آمنة للشبكة الخاصة الافتراضية، تتم إدارتها (بناءً على الطلب) من قبل فريق العمليات من المستوى 2

2.4.4 في حال ضرورة عمل تغييرات، سيتم تفعيل دور دعم مستوى 3 (أما دعم البنية التحتية او البرامجيات).سيكون هناك حاجة إلى الوصول الفعلي للفريق المحلي الى موقع الخدمة لإدارة النسخ الاحتياطية وتعطل الأجهزة ومشاكل الشبكة المحلية ومتطلبات الصيانة العامة.

2.4.5 سيتاح لفريق العمليات من المستوى 2 الوصول إلى أداة إدارة الحوادث والبريد الإلكتروني وأدوات المراقبة الخاصة بالطرف الثاني لدعم الخدمات.

2.4.6 يتولى فريق العمليات مسؤولية ما يلي:

2.4.6.1. **دعم البنية التحتية:**

2.4.6.1.1. دعم نظام العمليات
2.4.6.1.2. دعم الأجهزة
2.4.6.1.3. التصحيح
2.4.6.1.4. إدارة جدار الحماية
2.4.6.1.5. أنظمة المراقبة
2.4.6.1.6. إدارة القدرات المرتبطة بالنظام
2.4.6.1.7. إدارة النسخ الاحتياطية
2.4.6.1.8. إدارة الشبكة
2.4.6.1.9. إدارة التحكم في الوصول
2.4.6.1.10. إدارة التشكيل
2.4.6.1.11. إدارة الطرف الثالث المورّد

2.4.6.2. **دعم التطبيقات:**

2.4.6.2.1. إدارة الحوادث
2.4.6.2.2. تحديد المشكلة وإدارتها
2.4.6.2.3. إدارة الإصدار
2.4.6.2.4. إدارة التغيير

2.4.6.3. **دعم غرفة العمليات**

2.4.6.3.1. دعم الأجهزة
2.4.6.3.2. إدارة الشبكة

2.5 المستوى 3- الحوادث الكبرى وإدارة حل المشاكل

2.5.1 سيتم تقديم الدعم من المستوى 3 عن بُعد من قبل غرفة العمليات في الطرف الثاني عندما تدعو الحاجة إلى المزيد من الدعم التقني لحل مشكلة ما.

2.5.2 سيتناول الدعم من المستوى 3 من الطرف الثاني الأنشطة التالية:

2.5.2.1. دعم الحوادث، حيث يكون الحل غير ممكن من قبل فرق العمليات من المستوى 2؛
2.5.2.2. إدارة المشاكل، حيث تم تحديد مشكلة من قبل فرق العمليات من المستوى 2؛
2.5.2.3. 2إدارة الإصدار، حيث يتطلب إصدار برنامج جديد التثبيت في مركز بيانات الطرف الاول؛
2.5.2.4. إصلاحات الأخطاء، حيث يتطلب تصحيح البرامج التثبيت في مركز بيانات الطرف الاول.

2.5.3 يشمل المستوى الثالث من الدعم فئات الخدمات التالية:

2.5.3.1. مجموعات دعم البنية التحتية المسؤولة عن حل جميع المشاكل المتعلقة بالوصول إلى الخدمات وتوافر الخدمات.
2.5.3.2. مجموعات التطبيقات المسؤولة عن حل جميع المشاكل المتعلقة بمشاكل التطبيقات.
2.5.3.3. الأطراف الثالثة المسؤولة عن توفير خدمات الدعم المتعاقد عليها للبنية التحتية أو التطبيقات الأصلية الخاصة بها.

3. إدارة خدمة الطرف الاول

3.1 سيوفر الطرف الثاني مديراً لخدمة الطرف الاول. وسيكون هذا المدير هو الواجهة الرئيسية لفريق عمليات الطرف الثاني وسيقوم بالتصعيد على المستوى 1 و2 و3.

3.2 يتمثل الدور الرئيسي لمدير الخدمة في ضمان تقديم جودة ثابتة ومنسقة من الخدمات للطرف الأول.

3.3 سيكون مدير خدمة الطرف الاول مسؤولاً عن عمليات وإجراءات إدارة مستويات الخدمة والحوادث والمشاكل والتغييرات.

4. مستويات الخدمة

4.1 توفر الخدمة

4.1.1 سيتم احتساب توفر الخدمة بناءً على توفر عناصر النظام التالية:

4.1.1.1. تطبيقات النظام (في الحالات التي لا يوجد فيها توقف في البنية التحتية التقنية للنظام)؛ و

4.1.1.2. نظام بوابة الحكومة المشتركة.

4.1.2 يتم قياس توفر الخدمة ضمن فترة قياس خلال فترة تغطية الخدمة المطبقة مقابل الفترة المتوقعة لتوفر الخدمة (مثلاً باستثناء المدة المقررة للتوقف عن العمل)

نسبة احتساب التوفر (بالمئة %) = $\frac{(T - S - U) * 100}{(T - S)}$

حيث تعني:

T= فترة القياس (مثلاً شهر واحد = 43200 دقيقة استناداً إلى شهر من 30 يوماً)
S= المدة المقررة للتوقف عن العمل (دقائق)
U= المدة غير المخطط لها للتوقف عن العمل (دقائق)

4.1.3 سيسعى الطرف الثاني لتحقيق الأهداف التالية لمستوى الخدمة:

المرجع	توفر عنصر النظام	أهداف مستوى الخدمة	رصيد الخدمة
SA01	نظام iBorders	99.5%	وحدة رصيد خدمة واحدة لكل 1% تحت هدف مستوى الخدمة
SA02	بوابة الحكومة لنظام iBorders	99.5%	وحدة رصيد خدمة واحدة لكل 1% تحت هدف مستوى الخدمة
SA03	بوابة شركة النقل لنظام iBorders	95%	وحدة رصيد خدمة واحدة لكل 1% تحت هدف مستوى الخدمة

4.1.4 مستوى توفر الخدمة غير قابل للتطبيق:

4.1.4.1. في حال فترات الصيانة المقررة؛

4.1.4.2. في حال الصيانة الطارئة التي يتم إخطار الطرف الاول بها في أقرب وقت ممكن عملياً؛ أو

4.1.4.3. في حال عدم اكتمال البيانات أو عدم توفرها؛ أو

4.1.4.4. في حال عدم وجود سجل حوادث صادر عن مكتب خدمة الطرف الثاني.

4.2 أداء الخدمة

4.2.1 يقاس أداء الخدمة بواسطة المؤشرات التالية:

4.2.1.1. استجابة نظام APP - النسبة المئوية للاستجابات المتلقاة من النظام خلال وقت معين من قيام نظام DCS التابع للشركات النقل بإرسال طلبات APP للمسافرين لراكب واحد إلى النظام.

4.2.2 سيسعى الطرف الثاني لتحقيق الهدف/الأهداف التالية لمستوى الخدمة:

أهداف مستوى الخدمة	مؤشر أداء الخدمة	المرجع
95% في 3 ثوان. 98% في 5 ثوان.	استجابة APP	SP02

4.2.3 مستوى أداء الخدمة غير قابل للتطبيق:

4.2.3.1. في حال فترات الصيانة المقررة؛

4.2.3.2. في حال الصيانة الطارئة التي يتم إخطار الطرف الاول بها في أقرب وقت ممكن عملياً؛ أو

4.2.3.3. في حال عدم وجود سجل حوادث صادر عن مكتب خدمة الطرف الثاني.

4.3 الوقت المتوسط للاستعادة

4.3.1 سيسعى الطرف الثاني لتحقيق الأهداف التالية لمستوى الخدمة:

مستوى الأولوية	فترة تغطية الخدمة	الاستجابة الأولية*	الوقت المتوسط للاستعادة**	رصيد الخدمة
1	24x7	15 دقيقة	ساعتان	لا شيء
2	24x7	15 دقيقة	4 ساعات	لا شيء
3	24x7	30 دقيقة	24 ساعة	لا شيء
4	24x7	ساعة واحدة	72 ساعة (3 أيام عمل)	لا شيء
5	غير مطبق	غير مطبق	غير مطبق	غير مطبق

ملاحظات:

(*)الاستجابة الأولية تعني المساعدة الهاتفية/بواسطة الدردشة من الطرف الثاني للتقدم في حل حادثة أو الإقرار بمشكلة مرسلة عبر البريد الإلكتروني أو مسجلة من قبل الطرف الاول من خلال بوابة الطرف الاول الخاصة بالطرف الثاني.

(**) الوقت المتوسط للاستعادة بالإضافة إلى وقت الاستجابة الأولية.

4.3.2 يُعرّف حل الحادثة على النحو التالي:

مستوى الخطورة	حل المشكلة
1	مسار عمل يوصي به الطرف الثاني لضمان استعادة الوظيفة الرئيسية للنظام، الأمر الذي قد يتطلب حلاً بديلاً مؤقتًا أو إعادة تشكيل.
2	مسار عمل يوصي به الطرف الثاني لضمان التقليل من انقطاع الخدمات، الأمر الذي قد يتطلب حلاً بديلاً مؤقتًا أو إعادة تشكيل.
3	تأكيد إمكانية تدارك المشكلة من قبل المستخدم أو عن طريق حل بديل مقدم من الطرف الثاني.
4	تأكيد تقديم معلومات كافية لحل المشكلة إلى المستخدم المتأثر.
5	غير مطبق(حوادث الأولوية 5 لا تتطلب استكشاف أخطاء مشاكل النظام)

4.3.3 مستوى دعم الخدمة غير قابل للتطبيق:

4.3.3.1. في حال فترات الصيانة المقررة؛

4.3.3.2. في حال الصيانة الطارئة التي يتم إخطار الطرف الاول بها في أقرب وقت ممكن عملياً؛

4.3.3.3. في حال عدم اكتمال البيانات أو عدم توفرها؛

4.3.3.4. في حال عدم وجود سجل حوادث صادر عن مكتب خدمة الطرف الثاني؛

4.3.3.5. خلال فترة التأجيل؛

4.3.3.6. خارج فترة تغطية الخدمة؛

4.3.3.7. في حال كان السبب الجذري هو تناوبي؛

4.3.3.8. 4.3.3.8 في حال كانت المعدات والخدمات وتطبيقات الطرف الثالث المستضافة والمدعومة خارجة عن نطاق سيطرة الطرف الثاني؛

4.3.3.9. في حال كان التوقف عن العمل بسبب المعدات والخدمات وتطبيقات الطرف الثالث والاتصالات والبرامج خارجاً عن نطاق سيطرة الطرف الثاني.

5. تقرير مستويات الخدمة

5.1 في غضون خمسة عشر (15) يومًا من نهاية كل فترة قياس، يقدم الطرف الثاني تقريراً إلى الطرف الاول (**تقرير مستويات الخدمة**) يتضمن إحصائيات عن أداء الطرف الثاني مقارنة بمستويات الخدمة خلال فترة القياس.

5.2 يتفق الأطراف على أن جميع المعلومات الواردة في تقارير مستوى الخدمة هي معلومات سرية.

6. رصيد الخدمة

6.1 وحدة رصيد خدمة واحدة= 1% من الرسوم التشغيلية المستحقة للطرف الثاني خلال فترة القياس ذات الصلة.

6.2 يشار إلى رصيد الخدمة المستحق للطرف الأول بسبب توقف الخدمة خلال فترة قياس في الفقرة 4.1.2 من هذا الجدول.

6.2.1 يجب ألا يتجاوز المبلغ الإجمالي لرصيد الخدمة التي سيعيدها الطرف الثاني إلى الطرف الاول في ما يتعلق بجميع حالات توقف الخدمة خلال فترة القياس 10٪ من رسوم الطرف الثاني خلال فترة القياس تلك.

Schedule 4 – Service Levels Schedule for Border Services

ANNEX 2
DETAILED SCOPE OF WORKS

1. Definitions

The following words have these meanings in this Schedule:

APP means Advance Passenger Processing. Flight and passenger's document data declaration in real-time

Carrier means an organization transporting passengers and cargo by aircraft

Carrier Portal means a web portal provided by Second Party as part of the Second Party Government Gateway service to allow Carriers to manually submit APP data.

Change means the addition, modification or removal of any authorized, planned, or supported service or service component that impacts the Services.

Command Center means the center Beneficiary employs to monitor the activities provided by the iBorders System.

Beneficiary means the legal entity receiving the service described in this schedule (Kuwaiti Ministry of Interior).

Defer Time means the time where Second Party is unable to progress the resolution of an Incident due to events outside the control of Second Party (including, without limitation, local First Party contact being unavailable, Incident residing outside the scope of the relevant Service, any Force Majeure Event).

Expected Service Availability means the time the Services are expected to be available during the Measurement Period, after deducting Scheduled Downtime.

Incident means an alleged material failure of any part of the Services.

Measurement Period means one calendar month.

OEM means original equipment manufacturer.

PNR Passenger Name Record or PNR. Also known as booking data.

Problem means cause, or potential cause, of one or more Incidents.

Priority Levels mean the priority of an Incident and falling into one of several levels. Incidents will be assigned a priority according to the following definitions:

Priority	Definition
P1	**Critical Business Impact:** Total system failure and interruption of business-critical applications affecting all customers or gateways to partner networks. An alternative or bypass is unavailable.
P2	**Serious Business Impact:** Loss of, or deterioration of service that has a material impact on First Party operations and there is no alternative service available.
P3	**Impact on Business Efficiency:** User's ability to do their job is impaired. Failure of a system or component, but alternatives are available at First Party location. Incident impacts a single user or a single First Party location. Work-around is available.
P4	**Inconvenience to the business:** A minor software, hardware, or documentation Incident with little, or no impact on the user. The Incident is specific to one user. Minor hardware, or software incident awaiting a permanent fix and with work-around available. The Incident impacts a supported but non-critical component, procedure or First Party application
P5	**No Business Impact:** Incidents not affecting the Service. Impact on customers is non-existent. (Examples: configuration, or table change required, monitoring or utilization request, billing or customers enquiry, chronic issue requiring monitoring)

Restoration Time means the time it takes for Second Party Service Desk to resolve an Incident after notification of the Incident.

Scheduled Downtime means the time that has been agreed with the First Party during which the Services will not be available for necessary activities such as:

- software updates, including application patches and restarts;
- data uploads;
- upgrades;
- database reorganization;
- preventative maintenance;

Service Availability means the proportion of Expected Service Availability, expressed as a percentage, which represents the time for which the Services are available during the Measurement Period. A sample calculation appears in clause 4.1 of this Schedule.

Service Cover Period means the times when service levels apply to the Services. In the absence of a contrary indication, Service Cover Periods are twenty-four hours a day, seven days a week.

Second Party Service Desk means the Second Party service desk providing first level support for the Services.

2. Service Support Description

2.1 Second Party will provide first, second and third-level support for the Services for the Term. This is described in detail below:

2.2 LEVEL 1: Second Party Service Desk

Second Party will provide a Second Party Service Desk in-country that will act as the single point of contact for First Party to raise support calls. Such support calls will relate to issues with data transmission, applications, networking, or hardware. The Second Party Service Desk will communicate in English and Arabic.

The Second Party Service Desk will be staffed on a 24x7*365 basis.

2.3 Incident Reporting

2.3.1 First Party users faced with Service issues must contact the Second Party Service Desk through one of the following methods:

2.3.1.1. Telephone;

2.3.1.2. Email;

2.3.1.3. In-Person (Second Party Service Desk co-located with First Party operations);

2.3.2 Incidents will be raised, as a consequence of one, or more of the following:

2.3.2.1. Second Party Service Desk contacted by Carriers for iAPI data issues;

2.3.2.2. Alternative contact point for First Party;

2.3.2.3. Pro-active service monitoring;

2.3.2.4. Emergency Carrier flight schedule changes;

2.3.2.5. Incident Management and Service request management;

2.3.2.6. Escalation management.

2.3.3 Second Party will provide an incident management service for handling abnormal events as follows:

2.3.3.1. by First Party reporting the Incident to the Second Party Service Desk; or

2.3.3.2. by the Second Party Service Desk while actioning alerts triggered by the system monitoring the system components.

2.3.4 Second Party will perform the following actions for Incidents:

2.3.4.1. log and categorize;

2.3.4.2. track through to resolution;

2.3.4.3. provide status updates to First Party;

2.3.4.4. engage appropriate resolution resources;

2.3.4.5. escalate to appropriate resolver groups and levels of support (on-site or remotely);

2.3.4.6. identify known errors and repetitive Incidents, providing a work-around where applicable;

2.3.4.7. follow-up for status on actions taken by support groups outside of Second Party;

2.3.4.8. verify closure with First Party;

2.3.4.9. respond to First Party User queries;

2.3.4.10. initiate First Party communications during critical situations;

2.3.4.11. initiate escalation procedures for critical situations; and

2.3.4.12. close the Incident record and document the Incident resolution.

2.4 LEVEL 2 -Incident and Problem Investigation Management

2.4.1 Second Party will provide a local Level 2 Operations Team who will reside near or within First Party premises and will have direct access to the hosted service.

2.4.2 This in-country Operations Team will provide second-level investigation and Incident correlation and resolution for all reactive and proactive incidents.

2.4.3 Remote access to the application servers is used to provide remote support. This is implemented using a secure VPN access method, managed (on request) by the Level 2 Operations Team.

2.4.4 Physical access will be required to manage activities such as backups, hardware failures, LAN issues, and general maintenance requirements.

2.4.5 The Level 2 Operations Team will have access to the Second Party incident management tool, email and monitoring tools to support the Services.

2.4.6 The Operations Team is responsible for the following:

2.4.6.1. Infrastructure Support:

2.4.6.1.1. Operation system Support;

2.4.6.1.2. Hardware support;

2.4.6.1.3. Patching;

2.4.6.1.4. Firewall management;

2.4.6.1.5. Monitoring systems;

2.4.6.1.6. System-related capacity management;

2.4.6.1.7. Backup management;

2.4.6.1.8. Network management;

2.4.6.1.9. Access control management;

2.4.6.1.10. Configuration management;

2.4.6.1.11. 3rd Party Supplier management.

2.4.6.2. Application Support:

2.4.6.2.1. Incident management

2.4.6.2.2. Problem identification and management

2.4.6.2.3. Release management

2.4.6.2.4. Change management

2.5 LEVEL 3 - Major Incidents and Problem Resolution Management

2.5.1 Level 3 Support will be provided remotely by Second Party Command Centre when more elevated technical support to fix a Problem is required.

2.5.2 Second Party Level 3 Support will deal with the following activities:

2.5.2.1. Incident support, where resolution by Level 2 Operations Teams is not possible;

2.5.2.2. Problem management, where a Problem has been identified by Level 2 Operations Teams;

2.5.2.3. Release management, where a new software release requires installation in the First Party data center;

2.5.2.4. Bug Fixes, where a software patch requires installation in the First Party data center.

2.5.3 Level 3 support comprises the three following service categories:

2.5.3.1. Infrastructure supporting groups which are responsible for resolving issues related to service access and service availability.

2.5.3.2. Application groups which are responsible for resolving issues related to application problems.

2.5.3.3. Third parties which are responsible for providing contracted support services for their original infrastructure or applications.

3. Client Service Management

3.1 Second Party will provide a Client Services Manager capability. The Client Service Manager will be the main interface into Second Party's operations team and act as Level 1, 2 and 3's escalation point.

3.2 The main role of the Client Service Manager is to ensure a stable and consistent quality of service is delivered to the First Party.

3.3 The Client Service Manager will be responsible for Service Levels, Incident, Problem and Change Management processes, and procedures.

4. Service Levels

4.1 Service Availability

4.1.1 Service Availability will be calculated based on the availability of the following System elements:

4.1.1.1. System applications (in cases where there are no outages in the technical infrastructure of the System); and

4.1.1.2. Shared Government Gateway Platform.

4.1.2 Service Availability during a Measurement Period is measured during the applicable Service Cover Period against the Expected Service Availability (i.e. excluding Scheduled Downtime).

$$\text{Calculation Availability} = \frac{(T - S - U)}{(T - S)} * 100 \quad (\%)$$

Where:

T = Measurement period (e.g. 1 month = 43200 minutes based on 30-day month)

S = Expected scheduled downtime (minutes)

U = Unplanned downtime (minutes)

4.1.3 Second Party will endeavor to meet the following Service Level target(s):

Ref.	System Element Availability	Service Level Targets	Service Credit
SA01	iBorders System	99.5%	1 SCU for every 1% below the Service Level target
SA02	iBorders Government Gateway	99.5%	1 SCU for every 1% below the Service Level target
SA03	iBorders Government Gateway Carrier Portal	95%	1 SCU for every 1% below the Service Level target

4.1.4 The Service Availability Service Level is not applicable:

4.1.4.1. in case of Scheduled Downtime;

4.1.4.2. in case of emergency maintenance notified to First Party as soon as reasonably practicable;

4.1.4.3. in case of incomplete or absent data; or

4.1.4.4. in the absence of an Incident record issued by the Second Party Service Desk.

4.2 Service Performance

4.2.1 Service performance is measured by the following indicator(s):

4.2.1.1. APP Responsiveness - the percentage of responses received from the System within a certain time of Carriers' DCSs sending APP requests for a single passenger to the System.

4.2.2 Second Party will endeavor to meet the following Service Level target(s):

Ref.	Service Performance Indicator	Service Level Targets
SP02	APP Responsiveness	95% in 3 sec. 98% in 5 sec.

4.2.3 The Service Performance Service Level is not applicable:

4.2.3.1. in case of Scheduled Downtime;

4.2.3.2. in case of emergency maintenance notified to First Party as soon as reasonably practicable; or

4.2.3.3. in the absence of an Incident record issued by the Second Party Service Desk.

4.3 Mean Time to Restore

4.3.1 Second Party will endeavor to meet the following Service Level target(s):

Severity Level	Service Cover Period	Initial Response*	Mean Time to Restore**	Service Credit
1	24x7	15 Min	2 Hours	None
2	24x7	15 Min	4 Hours	None
3	24x7	30 Min	24 Hours	None
4	24x7	1 Hour	72 Hours (3 business days)	None
5	N/A	N/A	N/A	N/A

NOTES:

(*) Initial Response means telephone/chat assistance from Second Party to progress resolution of an Incident, acknowledgement of issue sent by email or logged by the First Party through Second Party First Party portal facilities.

(**) Mean Time to Restore is in addition to the initial response time.

4.3.2 Incident Resolution is defined as follows:

Priority Level	Incident Resolution
1	a course of action recommended by Second Party to ensure the major functionality of the System is restored, which may require a temporary workaround or reconfiguration.
2	a course of action recommended by Second Party to ensure that the disruption to services is minimized, which may require a temporary workaround or reconfiguration.
3	confirmation that the problem can be circumvented by the affected user or by a work-around provided by Second Party.
4	confirmation that sufficient information to fix the issue have been provided to the affected user.
5	n/a (P5 Incidents do not require system's issues troubleshooting)

4.3.3 The Service Support Service Level is not applicable:

4.3.3.1. In case of Scheduled Downtime;

4.3.3.2. In case of emergency maintenance notified to First Party as soon as reasonably practicable;

4.3.3.3. In case of incomplete or missing data;

4.3.3.4. In the absence of an Incident record issued by the Second Party Service Desk;

4.3.3.5. During Defer Time; or

4.3.3.6. Outside the Service Cover Period;

4.3.3.7. If the root cause is a recurring issue;

4.3.3.8. Equipment, services and third-party applications hosted and supported outside of Second Party's control;

4.3.3.9. Downtime caused by equipment, services and third-party applications, connections and software outside of Second Party's control.

5. Service Levels Report

5.1 Within fifteen (15) days after the end of each Measurement Period, Second Party shall provide a report to First Party (Service Levels Report) that will include statistics on Second Party's performance against the Service Levels during the Measurement Period.

5.2 The parties agree that all information contained in the Service Level Reports is Confidential Information.

6. Service Credits

6.1 1 SCU = 1% of the Operational Charges due to Second Party during the relevant Measurement Period.

6.2 The Service Credits owing to First Party for service failures during a Measurement Period are indicated in clause 4.1.2 of this Schedule.

6.2.1 The total amount of Service Credits to be credited by Second Party to First Party in relation to all Service Failures during a Measurement Period shall not exceed 10% of the Second Party Charges during that Measurement Period.

الجدول 5 - جدول متطلبات الطرف الاول لخدمات الحدود

1. مسؤوليات الطرف الأول

1.1. يجب على الطرف الاول إرسال إخطار شركة النقل (الملحق 1، الجدول 7 بما في ذلك الملحق 1: نموذج إثبات الخدمة 1 تعميم على شركات النقل والملحق 2: نموذج إثبات الخدمة 2 - تفويض هيئة الطيران المدني لجميع شركات النقل) إلى شركات النقل بمدة لا تتجاوز اسبوعين تقويميين من تاريخ توقيع العقد.

1.2. يجب على الطرف الاول تزويد الطرف الثاني بجميع استمارات بيان الخدمة المكتملة (المشار إليها في إخطار شركة النقل) المستلمة من قبل شركات النقل.

1.3. يتحمل الطرف الاول مسؤولية التواصل مع شركات النقل في ما يتعلق بالخدمات وتوعية شركات النقل بالخدمات.

1.4. يجب على الطرف الاول التأكد من أن شركات النقل:

1.4.1.تمتثل لتنظيم المشروع في الوقت المناسب؛ و

1.4.2.توفر بيانات ذات نوعية جيدة، و

1.4.3.تمتثل لالتزامات الدفع تجاه الطرف الثاني.

1.5. يقدم الطرف الاول للطرف الثاني كل المساعدة التي تطلبها الطرف الثاني بشكل معقول في إدارة العلاقات مع شركات النقل، بما في ذلك على سبيل المثال لا الحصر، امتثال شركة النقل وتعاونها مع الطرف الاول والطرف الثاني.

1.6. يجب على الطرف الاول إطلاع الطرف الثاني شهريا (خلال أسبوع واحد من نهاية الشهر المعني) على الإحصاءات الرسمية المتعلقة بأعداد المسافرين (والتي يتعين على شركات النقل دفع الرسوم المتعلقة بها).

1.7. يجب على الطرف الاول ضمان مشاركة وتعاون أصحاب المصلحة الحكوميين الآخرين لتحقيق التسليم في الوقت المناسب على النحو المطلوب في المشروع. ويجب أن يشمل ذلك ما يلي: تمكن النظام من إجراء بحث في قاعدة بيانات جوازات السفر وقاعدة بيانات التأشيرات وقائمة المراقبة الموحدة، وتمرير المعلومات عن المسافرين (الحركة المتوقعة وحالة الخطر)

إلى نظام الخط الأساسي، وتلقي المعلومات من نظام الخط الأساسي (عن سجلات الحركة الفعلية للأشخاص الذين يعبرون الحدود الجوية) – يجب تحديد هذه الوسائل والاتفاق عليها أثناء بدء المشروع.

1.8. يجب على الطرف الاول تطوير وتوفير **Web Services** للأنظمة الخارجية، يتم تصميمها ونشرها وفقًا للمواصفات القياسية للواجهات البينية التي يحددها الطرف الثاني لتكامل الأنظمة الخارجية مع **iBorders** (سيتم توفير مواصفات الواجهات البينية للطرف الأول أثناء بدء المشروع)

1.9. سيوفر الطرف الاول الموارد المناسبة لدعم الطرف الثاني طوال دورة حياة المشروع - لحل قضايا التصميم الأمني؛ وإجراء اختبارات القبول؛ وتوقيع الوثائق؛ واتخاذ قرارات بشأن خيارات هندسة النظام المقترحة والموصى بها من قبل الطرف الثاني؛ ودعم تثبيت الأجهزة والبرمجيات والاتصالات؛ وتأمين تعاون مستخدمي الخدمة المعتمدين.

1.10. سيقوم الطرف الاول بتعيين ممثلين إثنين للإدارة العليا، ممثل من قسم الإدارة و ممثل من قسم تكنولوجيا المعلومات، ليشاركا في مجلس مشترك لإدارة المشروع.

1.11. يؤمن الطرف الاول حضور أعضاء الإدارات الحكومية الكويتية الأخرى في المجلس المشترك لإدارة المشروع بما في ذلك وزارة الداخلية وممثلو المخابرات والجمارك.

1.12. سيقوم الطرف الاول بمراجعة وتوقيع جميع الوثائق وفقًا لخطة المشروع و تعديلها حسب الضرورة وذلك بالموافقة المتبادلة أثناء انطلاق المشروع.

1.13. يجب على الطرف الاول توفير المساحة (الموقع و البنية التحتية و ما إلى ذلك) والخدمات (تأمين الإمدادات من الكهرباء و **UPS**ومولد احتياطي وخلافه، وتكييف الهواء وما إلى ذلك) لمعدات **iBorders** في مركز بيانات الإنتاج الرئيسي

ومركز بيانات التعافي من الكوارث الخاص به وتأمين وغرف العمليات في مدينة الكويت، ويجب السماح بالوصول إلى تلك المعدات كما هو مطلوب من الطرف الثاني لتشغيل نظام **iBorders** السليم وصيانته.

1.14. يجب على الطرف الاول توفير المساحات المكتبية والمكاتب والخدمات لموظفي الدعم من المستوى الأول والمستوى الثاني في الطرف الثاني (حتى 10 مقاعد)، في موقع مركز بيانات الإنتاج الرئيسي.

1.15. سيسمح الطرف الاول لموظفي الطرف الثاني بالتواجد الشخصي في مراكز الخدمة لتثبيت النظام وصيانته كما هو مطلوب.

1.16. التنفيذ الرئيسي:

1.16.1. سيوفر الطرف الاول اتصال **LAN** بين مراكز البيانات والمستخدمين وأنظمة حكومة الكويت (قائمة مراقبة مدمجة وقاعدة بيانات جوازات السفر وقاعدة بيانات التأشيرات ونظام الخط الأساسي) بـ 10 ميغابت في الثانية على الأقل

1.16.2. سيوفر الطرف الاول الاتصال بشكبة الإنترنت في مراكز البيانات وسيوفر اتصالًا سريعًا معتمداً من نقطة إلى نقطة بنطاق ترددي عالٍ (بحد أدنى 10 ميغابت في الثانية) بين مراكز البيانات.

1.16.3. سيوفر الطرف الاول للطرف الثاني اتصالًا معتمداً بالشبكة الواسعة بمراكز البيانات.

1.16.4. يسمح الطرف الاول باتصال إنترانت لتمكين المستخدمين من خارج الموقع من الوصول إلى **iBorders**.

1.16.5. يوفر الطرف الاول للطرف الثاني إمكانية الوصول إلى خادم البريد الإلكتروني وقراءة رسائل البريد الإلكتروني التي يولّدها النظام.

1.16.6. يجب على الطرف الاول تقديم كمية واقعية من بيانات الاختبار/العينة لأهداف قائمة المراقبة.

1.16.7. يجب على الطرف الاول توفير مدرب (مدربين) يكون مسؤولاً عن تدريب مستخدمي النظام.

1.16.8. يجب على الطرف الاول توفير مسؤول (مسؤولي النظام) - المسؤول عن الحفاظ على تنسيق النظام بما في ذلك إدارة المستخدمين وقواعد التصفية وتنسيق معلمات النظام القابلة للضبط.

1.16.9. يجب على الطرف الاول تهيئة النظام باستخدام مستخدمين حقيقيين والبيانات الفعلية لقائمة المراقبة.

1.16.10. يمنح الطرف الاول الإذن للطرف الثاني للحصول على إمكانية الوصول عن بعد إلى بيئة**iBorders** .

1.17. يتحمل الطرف الاول جميع تكاليفه بما في ذلك (على سبيل المثال لا الحصر): العمالة ؛ اتصالات إنترانت؛ الاتصالات بين المواقع (بين موقع الإنتاج وموقع التعافي من الكوارث)؛ التكاليف المتعلقة بمراكز البيانات؛ التغييرات في الأنظمة الحكومية لتمكين تبادل البيانات مع **iBorders** واستغلال هذه البيانات؛ تراخيص الأجهزة الإضافية وبرمجيات الجهات الخارجية، إذا لزم الأمر، لمعالجة الحمل الإضافي الناجم عن **iBorders**.

1.18. سيوفر الطرف الاول مرفقًا مناسبًا لتدريب ما يصل إلى 15 مرشحًا في مكتب تابع للطرف الأول أو مرفق تدريب الطرف الاول، مزود بجهاز عرض وشاشة وأجهزة كمبيوتر مكتبية مع إمكانية وصول الشبكة إلى بيئة **iBorders** . سيظل المرفق متاحًا حتى يتم الانتهاء من جميع الدورات التدريبية المقررة.

Schedule 5 – First Party Dependencies Schedule for Border Services

1. First Party Responsibilities

1.1. First Party shall send the Carrier Notification (Exhibit 1 Schedule 7 including ATTACHMENT 1: SERVICE INDICATION FORM 1 Circular to Carriers & ATTACHMENT 2: SERVICE INDICATION FORM 2 -Civil Aviation Authority Mandate to all the Carriers) to Carriers by <DATE>.

1.2. First Party shall provide to Second Party all completed Service Indication Forms (referred to in the Carrier Notification) received from Carriers.

1.3. First Party shall have responsibility for all communications with Carriers in relation to the Services and for raising awareness by Carriers of the Services.

1.4. First Party shall ensure that Carriers:

1.4.1 comply with the Project Regulation in a timely manner; and

1.4.2 provide good quality Carrier Data, and

1.4.3 comply with payment obligations to Second Party

1.5. First Party shall give Second Party all such assistance as is reasonably requested by Second Party in managing relationships with Carriers, including but not limited to Carrier compliance and cooperation with the First Party and Second Party.

1.6. First Party shall communicate on a monthly basis (within one week from the end of the month in question) to Second Party, the official statistics relating to Traveller numbers (against which the Charges are to be paid by Carriers).

1.7. First Party shall ensure the participation and co-operation of other government stakeholders to achieve timely delivery as required by the project. This shall include: means whereby the System can perform look-up on the database of passports & database of visas & consolidated watch list, pass information on Travellers (expected movement and risk status) to the primary line system, and receive information from the primary line (on actual movement records for people crossing the air border) – such means to be defined and agreed during the Project Kick-Off.

1.8. First Party shall develop and provide web services interfaces to external systems, designed and deployed in accordance with the Second Party Standard Interface Specifications for external service integration to iBorders (Interface specifications will be supplied to the First Party during the Project Kick-Off)

1.9. First Party will supply appropriate resources to support Second Party throughout the project life cycle – to resolve security issues; to perform Acceptance Tests; to sign off documentation; to make decisions on system architecture options proposed and recommended by Second Party; to support the installation of hardware, software and communications; to secure the co-operation of the Approved Service Users.

1.10. First Party will assign 2 senior management representatives, 1 from the administration and 1 from the IT function, who will participate in a Joint Project Review Board (JPRB).

1.11. First Party will procure the attendance at JPRB's of the members of other Kuwait Government departments including Ministry of Interior and representatives of Intelligence and Customs.

1.12. First Party will review and sign off all documentation in accordance with the Project Plan refined as necessary by mutual agreement during the Project Kick-Off.

1.13. First Party shall provide space and services (secure electricity supply with UPS and generator back-up and other, air conditioning etc.) for iBorders equipment in its main production data Centre and disaster recovery data Centre in Kuwait City and connect it to the closest fiber and shall permit access to that equipment as required by Second Party for the proper operation and maintenance of iBorders.

1.14. First Party shall provide office space, desks and services for the Second Party Level 1 and Level 2 support staff (up to 10 seats), at the location of the main production data Centre.

1.15. First Party will permit Second Party physical access to install and maintain the System as required.

1.16. Main Delivery

1.16.1 First Party will provide LAN connectivity between the data centers and the user population, and Kuwait Government systems (consolidated watch list, database of passports, database of visas, primary line system) minimum 10Mbps bandwidth

1.16.2 First Party will provide resilient Internet connectivity to the data centers and will provide a high-bandwidth (minimum 10 Mbps) point-to-point resilient, hot standby connection between the data centers.

1.16.3 First Party will provide resilient Second Party WAN connectivity to the data centers.

1.16.4 First Party permits Intranet connectivity enabling off-site users to access iBorders.

1.16.5 First Party permits access to Second Party provided email server in order to allow First Party users to receive system generated email messages.

1.16.6 First Party shall provide realistic quantity of test / sample data for Watch List targets.

1.16.7 First Party shall provide trainer(s) who will be responsible for training the end-users.

1.16.8 First Party shall provide System administrator(s) – responsible for maintaining the configuration of system including user management, filtering rules, configuration of tuneable system parameters.

1.16.9 First Party shall configure the System with real users, and live Watch List data.

1.16.10 First Party shall grant permission to Second Party to obtain remote access to the iBorders environment.

1.17. First Party shall bear all its own costs including (without limitation): labor; Intranet communications; inter-site communications (between production site and DR site); costs related to the data centers; changes to the government systems to enable data exchange with iBorders and exploitation of such data; extra hardware and third-party software licenses, if needed, to process the extra load caused by iBorders.

1.18. First Party will provide a facility suitable for training up to 15 candidates in a First Party office or First Party training facility, with projector, screen and desktop systems configured with network access to the iBorders environment. The facility will remain available until such time as all scheduled training courses have been completed

Schedule 6 - Pricing Schedule for Border Services

1. In accordance with the Project Regulation, Second Party shall, with effect from the end of third month as of the Effective Date, Second Party shall invoice all Carriers for all Eligible Travelers (except Embargoed Carrier(s)), on monthly basis, the sum of (1) Kuwaiti Dinars Only Or Its Equivalent in US Dollars (in addition to applicable Taxes thereon) per each Eligible Traveler ("Traveler Charges") to be paid by Carriers (except Embargoed Carrier(s) within 30 days as of Second Party invoice through the IATA Clearing House where applicable

2. Subject to paragraph 3 below, in consideration for the provision of the Services contemplated in Exhibit 1 of this Agreement, Second Party shall retain the Traveller Charges.

الجدول رقم 6 - جدول الأسعار لخدمات الحدود

1. عملاً بنظام المشروع، وعند انتهاء الشهر الثالث من تاريخ بدء الاتفاقية، سيقوم الطرف الثاني بمطالبة جميع الشركات الناقلة (باستثناء الشركات الناقلة المحظورة) عن جميع المسافرين المؤهلين بشكل شهري رسم عن كل مسافر مؤهل يبلغ ((1) دينار كويتي فقط لاغير) أو مايعادله بالدولار الأميركي بالإضافة الى الضرائب المتوجبة) ("رسوم المسافر") يُدفع من قبل الشركات الناقلة خلال مدة ثلاثين (30) يوماً من تاريخ الفاتورة عبر غرفة المقاصة التابعة للاتحاد الدولي للنقل الجوي، حين يمكن ذلك.

2. مع مراعاة الفقرة 3 أدناه، ومقابل تقديم الطرف الثاني للخدمات المنصوص عنها في المعرض رقم 1 من هذه الاتفاقية، يحتفظ الأخير برسوم المسافر.

3. The "qualified traveler" is the traveler who arrives or leaves Kuwait (including the transit traveler and the traveler who boosts the ticket, pays the price, and conducts the entry procedures but does not get on board. It also includes the traveler who makes the plane without prior booking. It is exempted from the travelers who do not apply the fees in accordance with what is applied at international airports and regulations Laws issued by international organizations accredited to the Kuwaiti Ministry of Interior and excluded international groups, for example, not limited to (crew in service, and all passengers on board banned carriers) .

3. "المسافر المؤهل" هو المسافر الذي يصل أو يغادر الكويت (بما في ذلك المسافر عن طريق الترانزيت والمسافر الذي يقوم بحجز تذكرة السفر، ويدفع ثمنها، ويقوم بإجراءات الدخول إلا انه لا يصعد على متن الطائرة، كما يشمل المسافر المؤهل المسافر الذي يصعد الطائرة دون حجز مسبق، ويُستثنى منها المسافرين الذين لاينطبق عليهم تحصيل الرسوم بما يتوافق مع ماهو مطبق في المطارات العالمية الدولية والأنظمة و القوانين الصادرة من المنظمات الدولية والمعتمدة لدى وزارة الداخلية الكويتية والفئات المستثناة الدولية على سبيل المثال وليس الحصر (طاقم الطائرة في الخدمة، وجميع المسافرين على متن الشركات الناقلة المحظورة) .

4. First Party shall provide Second Party on a monthly basis the accurate number of Eligible Travellers per Carrier (except for Embargoed Carriers) for the preceding month in order to permit Second Party to claim Carriers as per paragraph 1 above. In the event that First Party fails to provide such list for whatever reason, Second Party shall invoice each Carrier (except for Embargoed Carriers) based on the most recent available monthly number of Passengers for each Carrier from the previous months; payments to be made pursuant to this paragraph 5 shall be made by Carriers to Second Party within 30 days after the date of Second Party's invoice.

4. يتوجب على الطرف الأول ان يُزوّد الطرف الثاني بشكل شهري بعدد المسافرين المؤهلين على متن كل شركة من الشركات الناقلة (باستثناء الشركات الناقلة المحظورة) في الشهر الذي يسبق، وذلك لتمكين الطرف الثاني من مطالبة الشركات الناقلة بالرسوم وفقاً لأحكام الفقرة الأولى المذكورة أعلاه. في حال عدم تزويد الطرف الأول للطرف الثاني بعدد المسافرين المؤهلين لاي سبب كان، يقوم الطرف الثاني بفوترة كل شركة ناقلة (باستثناء الشركات الناقلة المحظورة) على أساس تقرير العدد الشهري الاحدث للمسافرين مع الشركة الناقلة من الأشهر المنصرمة. تدفع الشركات الناقلة الى الطرف الثاني قيمة الفاتورة المُرسلة عملاً بأحكام هذه الفقرة 5 خلال ثلاثين يوم من تاريخ الفاتورة.

5. The Parties shall, at 6 monthly intervals during the Term, compare the number of Eligible Travelers generated by Second Party's system with those generated by the tools and systems of First Party. In the event of discrepancy, the Parties shall discuss appropriate courses of action.

5. كل ستة أشهر خلال مدة هذه الاتفاقية، يقوم الطرفان بمقارنة أعداد المسافرين المؤهلين التي يصدرها النظام العائد للطرف الثاني مع تلك الاعداد التي تصدرها الأدوات والأنظمة العائدة للطرف الاول. وفي حال الاختلاف يقوم الطرفان بالتباحث حول المسار المناسب الواجب تطبيقه.

Schedule 7 - Carrier Notification Schedule for Border Services

الجدول رقم 7 - جدول التعميم الى الشركات الناقلة لخدمات الحدود

1. Mandatory Items

1. البنود الملزمة

1.1. The mandate sent by First Party to Carriers must contain:

1.1. يجب أن يحتوي التكليف الذي يرسله الطرف الاول الى الشركات الناقلة ما يلي:

1.1.1. An obligation on Carriers to comply with Kuwait regulations relating to passenger data and fees, referring to applicable local laws and regulations.

1.1.1. الالتزام الشركات الناقلة بالامتثال للوائح التنظيمية الكويتية المتعلقة ببيانات ورسوم الركاب.

1.1.2. A reference to Second Party as the sole service provider appointed by First Party to receive Data for the Term.

1.1.2الإشارة إلى شركة الطرف الثاني بكونها مزود الخدمات الوحيد المعين لاستلام البيانات خلال مدة هذه الاتفاقية.

1.1.3.An obligation on all Carriers, except for Embargoed Carriers, to pay per Traveller Charges to Second Party as of the Services Commencement Date.

1.1.3.التزام جميع الشركات الناقلة، باستثناء الشركات الناقلة المحظورة، بسداد رسوم المسافر إلى الطرف الثاني من تاريخ بدء الخدمات.

1.1.4. A statement of the amount of the per Traveller Charge including the Traveller types that Carriers must pay the Traveller Charge for and the Traveller types excluded from the charge.

1.1.4.بيان برسم المسافر يتضمن فئة المسافرين الذي يتوجب على الشركات الناقلة ان تدفع عنهم والفئة التي لا يتوجب الدفع عنهم.

1.1.5. A statement that the Traveller Charges can be amended on notice.

1.1.5.بيان بأن رسم المسافر يمكن تعديله بموجب إخطار.

1.1.6. A statement that an IATA ticket charge will be created and communicated to Carriers, and that this charge can be used to collect the government-mandated charge from Travellers

1.1.6.بيان بإنشاء رمز (كود) أمن مع الاتحاد الدولي للنقل الجوي يتضمن رسم للتذاكر يتم تعميمه على الشركات الناقلة وان هذه الرمز يمكن استعماله لتحصيل رسم المسافر المفروض من الطرف الأول من المسافرين.

1.1.7. An obligation on all IATA and non-IATA affiliated Carriers, except Embargoed Carriers, to sign a Payment Undertaking in favor of Second Party within one month as of the date of this Notification.

1.1.7.التزام جميع الشركات الناقلة، باستثناء الشركات الناقلة المحظورة، (التابعة وغير التابعة للاتحاد الدولي للنقل الجوي(بتوقيع التعهد بالدفع لصالح الطرف الثاني خلال شهر من تاريخ هذا التعميم.

1.1.8. An all obligation on Carriers, except Embargoed Carriers, to complete the service indication forms attached to the mandate and to return these to Second Party within a period of one month as of the date of the Carrier Notification.

1.1.8.التزام جميع الشركات الناقلة، باستثناء الشركات الناقلة المحظورة، باستكمال "نموذج إثبات الخدمة" المرفق ربطاً مع هذا التعميم في خلال شهر من تاريخ التعميم وإعادته إلى الطرف الثاني.

1.1.9. A description of the penalties for non-compliance with the mandate

1.1.9.بيان العقوبات المترتبة على عدم الالتزام بهذا التعميم.

1.1.10. An obligation on all Carriers to pay Traveller Charges to Second Party based on the most recent number of monthly Passengers, in case the number of Passengers in any month is not available on time.

1.1.10. التزام جميع الشركات الناقلة، باستثناء الشركات الناقلة المحظورة، بتسديد رسوم المسافر، الى الطرف الثاني بناءً على أحدث إحصاء شهري للمسافرين، في حال عدم توفر الإحصاء الشهري للمسافرين في الوقت المحدد.

1.1.11. Two attachments – the Payment Undertaking and the Service Indication Form for signature by Carriers (neither of which may be amended without Second Party's prior written consent).

1.1.11. مرفق بهذا التعميم – "تعهد بالدفع" و "نموذج إثبات الخدمة" – للتوقيع من قبل الشركات الناقلة بحيث لا يجوز تعديل اي منهما بدون الموافقة الخطية المسبقة من الطرف الثاني.

Draft Mandate to Carriers

TO BE SENT ON DIRECTORATE GENERAL OF CIVIL AVIATION HEAD NOTEPAPER TO CARRIERS ARRIVING AND DEPARTING KUWAIT ADVISING OF NEW REGULATIONS.

Date:

Subject: Compliance for APIS, APP and PNR

Dear Sir/Madam,

As authorized by the Ministry of Interior of Kuwait AND the Directorate General of Civil Aviation requires to implement Advance Passenger Information (APIS) System, Advance Passenger Processing (APP) System and Passenger Name Record/Departure Control System (PNR/DCS) systems with effect from XX/XX, 2021 as per the circular/law dated XX/XX/202x issued by Directorate General of Civil Aviation, Kuwait.

Pursuant to the above and whereas Second Party was appointed as the sole authority reference to receive APIS, APP, and PNR data, the Directorate General of Civil Aviation mandates all carriers operating to and from Kuwait to provide APIS, APP and PNR/DCS data to Second Party and to levy a surcharge per passenger of ((1) Kuwaiti Dinars Only Or Its Equivalent In US Dollars) for all passengers entering and departing Kuwait including transit and transfer passengers and excluding crew members on duty and children under two years of age. The Directorate General of Civil Aviation has contracted Second Party to provide APIS, APP and PNR/DCS systems and Second Party shall collect the said per passenger surcharge for a contract term of 10 years after the 3rd month of this mandate.

Pursuant to the above, it is hereby declared that all Carriers operating to and from Kuwait shall become APIS APP and PNR/DCS compliant. It is mandated for all such Carriers to undertake all the requisite measures including providing Second Party with all necessary technical information, signing payment undertakings and making requisite payments to ensure compliance.

مسودة تعميم الشركات الناقلة

لإرسالها على مذكرة تحمل ترويسة الإدارة العامة للطيران المدني إلى "الشركات الناقلة" التي تسيّر رحلات جوية قادمة إلى الكويت ومغادرة له للإشعار باللوائح التنظيمية الجديدة.

التاريخ:

الموضوع: الالتزام بنظامي المعلومات المسبقة للركاب وسجل اسم الراكب

السادة الأعزاء

نفيدكم بأن وزارة الداخلية الكويتية والإدارة العامة للطيران المدني تطالب بتنفيذ نظام المعلومات المسبقة للركاب (APIS و APP) ونظام اسماء الركاب (PNR) ونظام سجلات المسافرين (PNR/DCS) اعتبارًا من XX / XX / 2021 كما ورد في تعميم الإدارة العامة للطيران المدني في الكويت بتاريخ XX / XX /

وبناء على ما تقدم ولكونه قد تم تعيين شركة الطرف الثاني مرجعاً وَحيداً لاستلام البيانات المتعلقة بنظام المعلومات المسبقة للركاب (APIS و APP) ونظام أسماء المسافرين (PNR)، وعليه فإنه يُعمّم على جميع الشركات الناقلة التي تسيّر رحلات جوية من وإلى الكويت بضرورة توفير بيانات المسافرين لغرض نظامي المعلومات المسبقة للركاب وسجل اسم الراكب الى شركة "الطرف الثاني" وبفرض رسم إضافي لكل راكب قدره ((1) دينار كويتي فقط لاغير) أو مايعادله بالدولار الأمريكي على كل الركاب القادمين إلى الكويت والمغادرين منها، بما فيهم ركاب الترانزيت والتحويل (transfer) وباستثناء طواقم الطائرات في الخدمة والأطفال دون السنتين عمراً، وسوف تقوم شركة "الطرف الثاني" بتحصيل الرسم الإضافي لكل راكب كما هو مذكور أعلاه طوال فترة التعاقد مع الإدارة العامة للطيران المدني والبالغة عشر سنوات على ان تبدأ شركة الطرف الثاني بتحصيل الرسم المذكور بعد ثلاثة أشهر من تاريخ هذا التعميم.

وبناء على ذلك تعلن الإدارة العامة للطيران المدني أنه يجب أن تُصبح جميع الشركات الناقلة التي تسيّر رحلات جوية قادمة إلى الكويت ومغادرة لها متوافقة مع أنظمة المعلومات المسبقة للركاب وسجل اسم الراكب. وجميع هذه الشركات الناقلة مكلفة وملزمة باتخاذ كافة التدابير المطلوبة بما يشمل تزويد شركة "الطرف الثاني" بكل المعلومات الفنية اللازمة، والتوقيع على التعهدات بالدفع وسداد المدفوعات المطلوبة لضمان التوافق والامتثال.

It is further mandated that the Carriers, in the event that the monthly number of passengers is not available in due time, Carriers will pay Second Party the per passenger surcharge mentioned here-above based on the most recent number of monthly passengers.

كما يتوجب على جميع الشركات الناقلة، في حال عدم توفر الإحصاء الشهري للمسافرين في الوقت المحدد، أن تسدد الى شركة الطرف الثاني الرسم الإضافي المذكور اعلاه بناءاً على أحدث إحصاء شهري متوفر للمسافرين.

The Directorate General of Civil Aviation of Kuwait shall create a new specific surcharge code with IATA for tickets to and from Kuwait issued pursuant to IATA tickets regulations for IATA affiliated Carriers to enable Carriers to pass this charge to passengers and for Second Party to collect the Traveler Charge. For non-IATA affiliated Carriers, Second Party will establish a direct arrangement with them.

وسوف تقوم الإدارة العامة للطيران المدني بإنشاء رمز (كود) جديد للرسم الإضافي مع الاتحاد الدولي للنقل الجوي على تذاكر السفر من وإلى الكويت الصادرة حسب ما هو معمول به بمقتضى اللوائح التنظيمية للاتحاد الدولي للنقل الجوي المعنية بتذاكر الشركات الناقلة التابعة له لتمكينها من فرض هذا الرسم على المسافرين وتمكين شركة "الطرف الثاني" من تحصيل "رسم المسافر". وسوف تنشئ شركة "الطرف الثاني" ترتيبًا مباشرًا مع الشركات الناقلة غير التابعة للاتحاد الدولي للنقل الجوي.

Each Carrier is required to complete and sign the attached documents and remit:

يتوجب على كل شركة ناقلة إكمال وتوقيع الوثائق المرفقة بهذا التعميم وإعادة إرسالها:

Attachment 1 - Payment Undertaking to be completed and remitted to Second Party within 1 month of the date of this Mandate.

المرفق الأول - التعهد بالدفع، يُستكمل ويُرسل إلى شركة "الطرف الثاني" خلال شهر واحد (1) من تاريخ هذا التعميم.

Attachment 2 - Service Indication Form to be completed and remitted within one month of the date of this letter to Second Party the service provider of Directorate General of Civil Aviation at the following address:

المرفق الثاني - نموذج إثبات الخدمة، يُستكمل ويُرسل إلى شركة "الطرف الثاني" باعتبارها مزود خدمات للإدارة العامة للطيران المدني خلال شهر من تاريخ هذا التعميم على العنوان التالي:

Second Party

XXXXXXXXXXXXXXXXXXXXXXXXXXXXXXXXXXXXXX

Name: XXXXXXXXXXXXXXXXXXXXXXXXXXXXXXX

In the event Carriers do not abide by this Notification and/or the timelines prescribed herein, financial penalties will be imposed thereupon amounting to /1000/ Kuwaiti Dinar per delayed day.

في حال مخالفة الشركات الناقلة لهذا التعميم و/أو عدم الالتزام بالمواعيد المحددة فيه ستُفرض غرامات مالية مقطوعة عليها تبلغ /1000/ دينار كويتي عن كل يوم تأخير.

Regards

مع التحيات

Directorate General of Civil Aviation of Kuwait

الإدارة العامة للطيران المدني

ATTACHMENT 1: Payment Undertaking

المرفق الأول: التعهد بالدفع

1. Carrier acknowledges that the Kuwait Directorate General of Civil Aviation is empowered to demand passenger data to be delivered to Second Party and that Second Party is authorized to collect certain charges detailed in circular .....dated XX/XX/2020 ("Traveler Charges"). The Traveler Charges are ((1) Kuwaiti Dinars Only or Its Equivalent in US Dollars) per passenger entering or leaving Kuwait (including transit and transfer passengers, excluding crew and infants) that shall be applied in accordance with the terms of the Mandate. The Traveler Charges collected by Second Party are to be added to each ticket (as per the Security Code established with IATA) for passenger air travel entering/departing Kuwait (including transit and transfer passengers, excluding crew and infants). For non-IATA Carriers, Second Party will establish a direct arrangement with them.

1. تقر الشركة الناقلة بأن الإدارة العامة للطيران المدني في الكويت مخولة بإلزامنا بإعطاء بيانات المسافرين إلى شركة "الطرف الثاني" وأن شركة "الطرف الثاني" مفوضة بتحصيل رسم المسافر المبيّن في كتاب الإدارة العامة للطيران المدني رقم (....) تاريخ (.....) ("رسم المسافر"). وبناء على ما تقدم وحتى إشعار آخر، فإن "رسم المسافر" هو ((1) دينار كويتي فقط لاغير) أو مايعادله بالدولار الأمريكي لكل مسافر قادم إلى الكويت أو مغادر منها (بما فيهم المسافرين عبر الترانزيت والتحويل Transfer ويُستثنى منهم طواقم الطائرات والأطفال الرضع الذين يقل عمرهم عن سنتين). وسوف يُضاف رسم المسافر التي تحصّله شركة "الطرف الثاني" إلى كل تذكرة سفر (بحسب رمز (كود) الأمن المقرر مع الاتحاد الدولي للنقل الجوي) للراكب المسافر جوًا قادمًا إلى الكويت أو مغادرًا منها (بما فيه ركاب الترانزيت والتحويل (transfer) باستثناء الطاقم والأطفال دون السنتين عمراً) على ان يبدأ تطبيق ذلك وفقاً لما هو منصوص عنه في التعميم. وسوف تنشئ شركة "الطرف الثاني" ترتيبًا مباشرًا مع الشركات الناقلة غير التابعة للاتحاد الدولي للنقل الجوي.

2. (In case is an IATA member) [Name of Carrier] undertakes to the Directorates General of Civil Aviation that it shall pay the Traveler Charges on all Travelers pursuant to IATA tickets payments regulations.

2. تتعهد الشركة الناقلة [اسم الشركة الناقلة] (في حالة كونها عضوًا لدى الاتحاد الدولي للنقل الجوي) للإدارة العامة للطيران المدني بالتزامها بدفع "رسم المسافر" عن جميع المسافرين عليها عملاً باللوائح التنظيمية للاتحاد الدولي للنقل الجوي المعنية بمدفوعات التذاكر.

3. [in case Carrier is not an IATA member] [Name of the Carrier] undertakes to the Directorate General of Civil Aviation that it shall pay the Traveller Charges to Second Party at such times and by such mechanisms as per the arrangement established by Second Party

3. تتعهد الشركة الناقلة [اسم الشركة الناقلة] (في حالة عدم كونها عضوًا لدى الاتحاد الدولي للنقل الجوي) للإدارة العامة للطيران المدني بالتزامها "رسم المسافر" إلى شركة "الطرف الثاني" في الأوقات وبالآليات وفق الترتيب الذي تنشأه شركة "الطرف الثاني".

4. In case Carrier] [Name of the Carrier] number of Passengers for any month is not available for any reason by the time the monthly Traveller Charges are due, [Name of Carrier] undertakes to pay the Traveler Charges to Second Party based on the most recent available [Name of Carrier] monthly number of Travellers.

4. تتعهد الشركة الناقلة [اسم الشركة الناقلة]، في حال عدم توفر الإحصاء الشهري للمسافرين في الوقت المحدد، أن تسدد الى شركة الطرف الثاني "رسم المسافر" المذكور اعلاه بناءً على أحدث إحصاء شهري متوفر للمسافرين.

5. [Name of the Carrier] acknowledges and agrees that this Payment Undertaking is directly enforceable against [Name of the Carrier].

5. تقر وتوافق [اسم الشركة الناقلة] على أن هذا "التعهد بالدفع" قابل للتنفيذ مباشرةً على [اسم الشركة الناقلة].

6. This Payment Undertaking is enforceable by Second Party and Directorate General of Civil Aviation and is governed by the laws of Kuwait.

6. هذا التعهد بالدفع قابل للتنفيذ من شركة "الطرف الثاني" والإدارة العامة للطيران المدني وتحكمه قوانين دولة الكويت .

Signed and agreed by [Name of Carrier] موقع وموافق عليه من [اسم الشركة الناقلة]

Date: التاريخ:

Positions: الوظيفة:

Attachment 2 Service Indication Form

المرفق الثاني: نموذج إثبات الخدمة

This is the Service Indication Form ("**SIF**") referred to the Carrier Notification from the Directorate General of Civil Aviation, Kuwait.

يشار الى نموذج إثبات الخدمة المرتبط بالتعميم الى الشركات الناقلة الصادر عن الإدارة العامة للطيران المدني، الكويت.

The information requested below is required for the purposes of testing the message format and information flows between [airline name] and Second Party before subsequent cutover to Production.

ان المعلومات المطلوبة أدناه تهدف الى فحص هيكل وتدفق المعلومات بين شركة الطيران وشركة الطرف الثاني قبل تفعيل الخدمة.

Therefore complete, sign and return this SIF to Second Party within one month as of the date of the Notification.

وعليه، يُطلب اليكم تعبئة وإمضاء نموذج إثبات الخدمة الحالي وإعادته الى شركة الطرف الثاني خلال شهر من تاريخ التعميم.

Complete

للاستكمال

Signed and agreed to on [date] by

موقع وموافق عليه بتاريخ [التاريخ] بواسطة

For and on behalf of

لصالح ونيابةً عن

[Airline name]

[شركة الطيران]

Airline Details

Airline name: _____
IATA Code: _____
ICAO Code: _____

Airline Project Manager or Representative

This is the airline contact that is responsible for delivering the airline data.

Contact Name: _____
Contact Title: _____
Email Address: _____
Phone Number: _____

Airline Technical Contact or Representative

This is the technical contact that Second Party will work with regarding APIS, APP, PNR, and DCS data.

Contact Name: _____
Contact Title: _____
Email Address: _____
Phone Number: _____

Emergency Contact

This is the contact who can be contacted out of office hours in the event of an emergency

Contact Name: _____
Contact Title: _____
Email Address: _____
Phone Number _____

Data Required by Kuwait Immigration			
☒ APP	☒ PNR	☒ DCS	☒ APIS

Specify the transmission details for each data element.

1. APIS data

APIS DATA		
In scope:		
API for Pax - YES/NO	airline code used for this message	
API for Crew - YES/NO	airline code used for this message	
Type B Connection Details	**Test**	**Prod**
Airline Type B Address(es) *Enter the airline Type B address(es). More than one may be entered.*		
SITA Type B Address *(Internal Use Only)* *The SITA Type B address associated with the servers*		
Does your airline have connectivity to SITA messaging mega switch? if yes please supply your connection details including type B sender address		

2. APP data

Questions	Answers
Please indicate the computerized departure check-in (DCS) system which you are currently using and will be using to comply with the Kuwait Immigration APP service for inbound flights?	Specify system used: _____
Please indicate the computerized departure check-in (DCS) system which you are currently using and will be using to comply with the Kuwait Immigration APP service for outbound flights?	Specify system used: _____
Does your DCS system already have connectivity to Second Party Government gateway?	Yes/No
Are you using a computerized crew management system? If so, is your crew management system capable of handling integrated APP data?	Yes/No
Does your crew management system already have connectivity to the Second Party Government Gateway?	Yes/No
Are you connected to an airline/host telecommunication system? Please provide details on how you connect and through which provider.	Please specify:
Please note that the Government reserves the right to require additional data elements if needed.	

3. PNR (RES) data

3.1. For PNR data, select one of the following transmission methods:

Airline	Transmission Method	Second Party
RES Push	Airline MQ to Second Party MQ	Receive from airline as: Ex: PNRGOV EDIFACT v 11.1, or XML

3.2. Airline Reservation System name:

3.3. Existing connection with Second Party? (Yes/No):

3.4. For RES Push, provide the associated MQ connection details:

3.5. Airline must complete Second Party MQ Configuration form

3.6. Second Party to provide Second Party MQ details.

3.7.

3.8. Data format (Enter the type of data and versions to be transmitted e.g. PNRGOV v11.1):

3.9. Transport type (Details of the transport mechanism to be used e.g. Airline MQ to Second Party MQ):

3.10. Please enter any additional comments about PNR connectivity below:

Other Information *Enter any additional PNR information that may be useful*	

4. DCS data

4.1. For DCS data, select one of the following transmission methods:

Airline	Transmission Method
DCS Push	Airline MQ to Second Party MQ
DCS Push PRL	Airline Type B to Second Party Type B

4.2. Airline Departure Control System (DCS) name:

4.3. Existing connection with Second Party? (Yes/No):

4.4. If you selected DCS Push, provide the associated MQ connection details:

4.5. Airline must complete Second Party MQ Configuration form

4.6. Second Party to provide Second Party MQ details.

4.7. Data format (Enter the type of data and versions to be transmitted e.g. PNRGOV v11.1):

4.8. Transport type (Details of the transport mechanism to be used e.g. Airline MQ to Second Party MQ):

4.9. If you selected DCS Push PRL, provide the associated Type B connection details:

PRL Type B Connection Details	Test	Prod
Airline Type B Address *Enter the airline Type B address(es). More than one may be entered.*		
Second Party Type B Address *(Internal Use Only)* *The Second Party Type B address associated with the servers*	TBA	TBA

4.10. Please enter any additional comments about DCS connectivity below:

Other Information *Enter any additional DCS information that may be useful*	

4.11. Any Other comments from Airline:

_____

_____

_____

Return this completed form to: Second Party Airline Engagement Manager

Email:

"Airline must ensure that the provision of actual passenger data to Second Party has the consent of such passengers."

ANNEX 3
CONTRACTING STANDARDS

ANNEX 3
CONTRACTING STANDARDS

Contracts and leases entered into between the Concessionaire and a third party pursuant to Clause 5.4 of the Particular Conditions shall comply with the principles set forth below.

1. All such contracts and leases shall be entered into on an arm's-length basis (meaning, in the ordinary course of business and upon fair and reasonable terms no less favorable to the concessionaire than it would obtain in a comparable transaction with a Person which is not an Affiliate), shall contain market-based terms and conditions and shall be determined by competitive procedures.

2. The procurement, negotiation, execution and performance of all such contracts and leases shall not involve any dishonest or fraudulent conduct, including, but not limited to, any bribes, kick-backs, unlawful payments or similar actions by any of the parties thereto or their employees, representatives, agents or similar Persons.

3. Subject to appropriate confidentiality provisions to ensure the commercially reasonable protection of proprietary or commercially sensitive information, the procurement, negotiation, execution, and performance of all such contracts and leases shall be transparent. The Concessionaire shall use commercially reasonable efforts to harmonize the contract terms offered to similarly situated counterparties.

4. The Concessionaire shall use commercially reasonable efforts to treat all similarly situated counterparties to such contracts and leases in a consistent and even-handed manner. Similarly situated parties may only be treated differently by the concessionaire for good cause or where objectively justifiable circumstances exist.

ANNEX 4
Charges

ANNEX 5
MONTHLY AND QUARTERLY FINANCIAL AND OPERATIONS REPORT

ANNEX 5
MONTHLY AND QUARTERLY FINANCIAL AND OPERATIONS REPORT

Pursuant to and in accordance with Clause 9.9.2, the Concessionaire shall Monthly and Quarterly provide to the Employer a detailed report setting forth data generated, as the case may be, during the preceding calendar quarter (and, in the case of the first such report, the period from the Effective Date to the end of the first calendar quarter after the Effective Date) including year-to-date data and comparison data to the same quarter of the previous year, if applicable, till the end of the contract, with respect (but not limited) to:

1. **Financial Performance:**

- Amount of revenues earned and collected (with detailed breakdown of each source of revenue.
- Amount of Gross Revenues
- Amount of operation and maintenance costs
- Value of total assets on the last Business Day of the calendar quarter
- Amount of Dinars on deposit in the Maintenance Reserve Account on the last Business Day of the calendar quarter

2. **Monthly Traffic Statistics:**

- Total number of Aircraft Operations and passengers
- Number of Scheduled and non-scheduled Aircraft movements by Airline and Aircraft Type
- The aggregate ICAO-rated Maximum Take-Off Weight (MTOW) by Aircraft Type from KIA for calculating an aeronautical Regulated Charge
- Actual Take-off Weight by flight departure
- Volume of Cargo at KIA.

3. **Monthly Operating Performance**

- Aircraft movement analysis for arrival and departure and passengers per aircraft
- Delay, cancellation, diversion, and re-routing analysis
- Apron movement utilization analysis
- Actual waiting time for customer and forwarders
- First and last cargo time analysis (calculated from Aircraft to “on blocks” time of last piece delivered on cargo mover reclaim)
- First and last passenger time analysis
- Average number of passengers, aircraft and cargo volume per employee
- KPI data analysis

4. Monthly General Report

- Number of service complaints received
- Description of any unforeseen occurrences
- Description of nature and duration of any disruptions or suspensions of the Works or operations
- Descriptions of nature and duration of any closures

ANNEX 6
INSURANCE

Policies

The Concessionaire, at its sole cost and expense, shall obtain or cause to be obtained, and maintain or cause to be maintained, in force from the Effective Date and throughout the Term of this Agreement insurance policies issued by financially sound and reputable insurance and reinsurance companies licensed in the Kuwait, with such terms and conditions as shall be acceptable from time to time to the Employer, including at least the following:

Part A-Operational Insurance

"All Risks" Insurance

"**Cover**" means all assets, including but not limited to Moveable Property, any passenger processing systems and Border protection system and equipment and Development, against "all risks" of physical loss or damage, including fire, lightning, explosion, natural hazards (flood, earthquake, etc.), terrorism, sabotage, strikes, civil commotion, and machinery breakdown; provided that cover against terrorism, war, sabotage and civil commotion shall only be required to the extent available to the Concessionaire on commercially reasonable terms.

"**General**" means to include a waiver of subrogation in favor of each party insured hereunder from the insurers and the reinsurers.

"**Insured**" means the Concessionaire and the Employer. "**Sum Insured**" means an amount sufficient to reinstate the property in full.

Business Interruption

"**Cover**" means to indemnify the Concessionaire in respect of Gross Revenues (without any deduction in respect of sums due to the Employer) as a direct consequence of loss of or damage to passenger processing systems and Border protection system assets insured under paragraph 1 of Part A above.

"**General**" means to include a waiver of subrogation in favor of each party insured hereunder from the insurers and the reinsurers.

"**Indemnity Period**" means eighteen (18) months. "**Insured**" means the Concessionaire.

"**Sum Insured**" means Gross Revenues for a period of not less than eighteen (18) months.

Miscellaneous Insurances

Any other insurance which:

- is customary or necessary to comply with local or other requirements, such as contractual insuring responsibility, workers' compensation and employers' liability insurances in relation to all workmen employed in ground handling or in connection with its operation; motor vehicle liability insurance for all vehicles owned, hired, leased, used or borrowed for use in the Kuwait in connection with ground handling;
- is considered by the Concessionaire to be desirable or prudent, or required by the Employer, such as Directors' and Officers' insurance; or is required by law.

Part B - Provisions Common to all Insurances

The Concessionaire shall procure that each policy effected pursuant to this Annex 14 shall provide:

1. cut-through clauses/assignment of reinsurance proceeds as may be required under the Financing Agreements;
2. that policies are not to be cancelled, lapsed, suspended or changed in any material respect without prior written notice (at least thirty (30) days) to the Employer and its agreement obtained, or such lesser period as may be specified from time to time in respect of war and kindred perils;
3. that the protection which is granted to the insured under the policies is not to be invalidated by any act or failure to act on the part of the other insured including any failure by any such insured, to disclose any material fact, circumstance or occurrence, any misrepresentation by any such insured, any breach or non-fulfillment by any such insured of any condition, warranty or provision implied or contained in the policy;
4. that the Employer shall not be responsible to the insurers or reinsurers for the payment of insurance premiums or any other obligations of the Concessionaire;
5. that the insurers agree to waive any subrogation howsoever arising which they may have or acquire against any of the Concessionaire, the Employer and the Lenders arising out of any occurrence in respect of which any claim is admitted under the policy save with regard to that party who invalidated its right in the insurance by willful or fraudulent behavior;
6. that, if the Employer reasonably considers that, as a result of a material change in the identified risk exposure, any of the terms, conditions, amounts and deductibles of insurances procured pursuant to this Annex 14 are inadequate or inappropriate, the Employer may require that the Concessionaire procure such amended and/or additional insurances as may be reasonably required to cover such material change;
7. a severability of interest clause which provides that the insurance will operate to give each insured the same protection as if there was a separate policy issued to each insured party subject to this not increasing the insurer's liability and that the non-compliance with any policy, terms, condition or warranties or the non-disclosure and/or misrepresentation of material does not affect the rights and/or interests of the Employer under the policies;
8. a clause confirming that the relevant policy is primary and without right of contribution and the liability of the insurers is not affected by any other insurance of which the Concessionaire or the Employer may have the benefit so as to reduce the amount payable to any insured party under such policy except where customary (including a 50/50 Clause) or as otherwise agreed between the Parties;
9. that no reduction in limits or coverage or increases in deductibles, exclusions or exceptions may be made to the policy during its currency without the prior written consent of the Employer other than a reduction in aggregate limits following payment of a claim by the insurer;

10. that all monies payable in respect of the policy may be paid without deduction or set-off (howsoever and whensoever arising) other than for unpaid premiums; and
11. that the insurers may consult with the Employer in relation to any claim in circumstances where the Employer requests such consultation.

Part C - General

All insurance policies are to remain valid and be maintained by the Concessionaire during the entire course of the contract without any interruption. Any interruption in the policies shall be treated as default from the part of the Concessionaire.

ANNEX 7
KEY PERFORMANCE INDICATORS

ANNEX 7
KEY PERFORMANCE INDICATORS

Pursuant to Clauses 9.1.1 and 9.1.14, the Concessionaire shall operate the passenger processing systems and Border protection system operations and facilities in order to achieve at least seventy per cent (80%) customer satisfaction in respect of each of the following operational matters and criteria:

Operational Matter	**Criteria**
Signage	Understandability; usefulness;
Information Services	Employee courtesy; employee friendliness; degree of employee expertise; quickness of response;
Flight Information Directory Service	Location; frequency of updates; quality of information provided;
Public Address System	Employee courtesy; employee friendliness; degree of employee expertise; quickness of response; clarity/understandability;
passengers Services	Employee courtesy; employee friendliness; degree of employee expertise; queuing time;
Aircraft Services	Employee courtesy; employee friendliness; degree of employee expertise; queuing time;
Security Screening	Employee courtesy; employee friendliness; degree of employee expertise; queuing time;
Transit Services	Convenience; employee friendliness; waiting time;
Flight Delays	On time performance, status information provided; responsiveness of employees;
Check-in Services	Employee courtesy; employee friendliness; degree of employee expertise; queuing time;
Cargo Delivery	Employee courtesy; delivery time; status information provided; quality of employee assistance

ANNEX 8
DGCA AUTHORIZED REPRESENTATIVE TEAM

ANNEX 8
DGCA AUTHORIZED REPRESENTATIVE TEAM

DGCA Authorized Representative Team will be communicated to the Concessionaire after signing the contract

ANNEX 9 - SERVICE PROVIDER'S KEY PERSONNEL POSITIONS

ANNEX 10
PENALTIES

Specific Operational Penalties

The Service Provider is subject to the following penalties if failed to comply with ICAO, KCASR and Kuwait regulation and when failed to meet his obligation stipulated in the ToR, RFP, the Contract, and all tender documents

يخضع مقدم الخدمات للعقوبات التالية في حالة عدم امتثاله لقواعد منظمة الطيران المدني الدولي ولوائح سلامة الطيران المدني الكويتية ولوائح دولة الكويت، وعند فشله في الوفاء بالالتزامات المنصوص عليها في الشروط المرجعية وطلب تقديم العروض والعقد وجميع مستندات الممارسة

CATEGORY	Type of Penalty	Amount	الكمية	نوع العقوبة	الفئة
Non-Compliance (Administrative)	1. Delays in timely executing deliverables 2. Lack of meeting approved work schedules 3. Employee repeated unjustified absence 4. Changing Service Provider's own staff without approval 5. Lack of effective training delivery 6. Lack of timely reporting 7. Compiling wrong information or data 8. Lack of internal quality assurance and deficiency report plus gap assessment	1000 KD Per each	1000 دينار كويتي لكل بند	1. التأخير في تنفيذ المخرجات في الوقت المناسب 2. عدم الالتزام بجداول العمل المعتمدة 3. تكرار غياب الموظف غير المبرر 4. تغيير كادر مقدم الخدمات دون موافقة 5. عدم تقديم التدريب الفعال 6. عدم تقديم التقارير في الوقت المناسب 7. تجميع المعلومات أو البيانات الخاطئة 8. عدم وجود تقرير داخلي لضمان الجودة والإبلاغ عن النقص بالإضافة إلى تقييم الفجوة	**عدم الامتثال (إداري)** **غرامة عن كل حالة او مخالفة في كل بند**
Service Quality	1. Customer Satisfaction per month if < 7/10 2. Delays in responding or in Corrective actions 3. Failure to follow up equipment failure 4. Failure to follow up ICT failure 5. Failure of large systems 6. Failure to comply with int. standards	10,000 KD 10,000 KD 1000 KD 1000 KD 1000 KD 10,000 KD 10,000 KD 5000 KD	30,000 دينار كويتي 10,000 دينار كويتي 1000 دينار كويتي 1000 دينار كويتي 1000 دينار كويتي 15,000 دينار كويتي 15,000 دينار كويتي 5000 دينار كويتي	1. رضا العملاء شهريًا إذا كان < 7 / 10 2. التأخير في الاستجابة أو في الإجراءات التصحيحية 3. الفشل في متابعة أعطال المعدات 4 الفشل في متابعة تكنولوجيا المعلومات 5. فشل أنظمة الكبيرة لل 6. الفشل في الامتثال بالمعايير الدولية	**جودة الخدمة** **غرامة عن كل حالة او مخالفة في كل بند**

General Note:

ملاحظة عامة:

The above penalties will apply after the first warning (Notice to Correct) by DGCA except for items related to Safety and Security. The penalty applies for each occurrence and will double if the same occurrence is repeated.

سيتم تطبيق العقوبات المذكورة أعلاه بعد التحذير الأول (إشعار بالتصحيح) من قبل الإدارة العامة للطيران المدني . تسري العقوبة على كل حالة وقوع وستتضاعف إذا تكرر نفس الحالة.